

Liberty in the Nineteenth Century

Frederic May Holland

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Title: Liberty in the Nineteenth Century

Author: Frederic May Holland

Release date: December 22, 2011 [eBook #38373]

Most recently updated: January 29, 2013

Language: English

Other information and formats: www.gutenberg.org/ebooks/38373

Credits: Produced by David Widger

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LIBERTY IN THE NINETEENTH CENTURY

By Frederic May Holland

1899



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PREFACE

THIS book is a result of having studied the development of political and religious liberty for forty years. How well I have selected my authorities the reader can judge. I will merely say that I have mentioned no writer whom I have not studied carefully. The sun-dial has been so far my model that victories in the cause of freedom are more prominent than defeats in the pages that follow. It did not seem necessary to give much space to familiar authors, though I should have liked to do justice to Buckle, George Eliot, and Swinburne.

I regret that I have been unable to tell at any adequate length how the Republic which was proclaimed at Paris in 1870 has survived longer than any other government set up in France during the century. Its enemies have been voted down repeatedly everywhere; the schools have been made free from ecclesiastical control; and the hostility of the clergy has been suppressed by the Pope. The French are still too fond of military glory, and too ignorant of the value of personal liberty and local self-government; but rapid advance in freedom is already possible under the Constitution of 1884. Not only France, but also Great Britain, Canada, and Australia, give proof that the time has gone by when Americans had any right to claim, as they did in my boyhood, to be the only people able to govern themselves.

If any nation can maintain a free press, just laws, and elections of local magistrates, it ought to enjoy these rights, however slight may be its fitness for becoming a real republic; and the suppression of such rights by Cromwell and Napoleon cannot be pardoned consistently by any friend to liberty. Napoleon's chief guilt, as I must here mention, was in ordering the expulsion from office by soldiers, in 1797, of representatives of the people who were striving to maintain liberty at home and establish peace abroad. If there were any necessity for his usurpation two years later, it was largely of his own making. Despotism had already been made tolerable, however, even during the first Republic, by the national fondness for war. This is according to a principle which is taught by Herbert Spencer, and which is illustrated in the following pages by many instances from the history of France and other nations. The horrors of the Reign of Terror may be

explained, though not excused, by the greatness of the danger from invaders as well as rebels. And there were very few cases of punishing differences merely about religion by the guillotine.

I have also tried to show how the centralising tendencies of a government are strengthened by the wish of its citizens to gain private advantages by state aid. John Stuart Mill and Herbert Spencer have published timely warnings against the danger of checking the development of individual energy and ability by meddlesome laws. Whether the power of the government ought to be reduced to the narrow limits proposed by these great thinkers, is a question which has been discussed at some length in my last chapter. It is there suggested that such a reduction would be much more practicable in the case of national than of local governments. It is not likely to be made anywhere at present; but it might be well for reformers to try to restrict the operations of governments according to the following rule: nothing to be undertaken by a national government which can be done as well by municipalities; and nothing to be attempted by either a local or central government which can be done as well by private citizens, acting singly or in voluntary associations. This rule would justify towns and cities in taking such care of roads, streets, and schools as is not sanctioned by Spencer; but it would leave municipalities free to decide the question whether they ought to carry on gas- and water-works, electric roads, and other enterprises according to the merits of each special case. Here in America internal improvements seem to be the proper charge of the State, rather than of the nation; but whether the former has any right to enforce Sunday laws, and the latter to impose protective tariffs, are questions which I have taken the liberty of discussing thoroughly. Herbert Spencer should not be held responsible for any opinions not printed plainly as his. Most of the instances of the working of Sunday statutes were taken from a religious newspaper entitled *The American Sentinel*. Among very recent cases are these. A Georgian was sentenced on May 16, 1899, to pay a fine of twenty dollars or spend six months in the chain-gang for working on his farm. That same month a clergyman was arrested in Mississippi, merely for taking a little exercise with a hoe in his garden. In 1898, a farmer in the State of New York was arrested for picking a few apples from one of his own trees. The total number of Sabbath-breakers arrested that year in New York City is estimated at a thousand; and there were nearly four thousand arrests for Sunday trading in England and Wales in 1897.

The principle of giving each citizen every opportunity of development compatible with the general welfare, is so plainly irreconcilable with Socialism, that I have thought it well to give several instances of the fact that a man seldom does his best work except for his own benefit and that of his family. Even the exceptionally energetic and conscientious founders of New England did not raise food enough until it was agreed that "They should set corn, every man for his own particular." Another difficulty in the way of state Socialism is that the requisite number of competent managers could not be found after the abolition of the competitive system. It is that which brings forward men of unusual ability and energy, though scarcely in sufficient numbers. Socialism would increase the demand, but lessen the supply. Spencer calls it "the coming slavery." It might better be called a slavery which is becoming obsolete. Our existing system of industry certainly needs improvement; but this will have to be made by following the laws of social science. Their action has done much during the present century to improve the condition of the poor; and we may trust that it will do more hereafter. The nineteenth might be called the philanthropic century, if that title did not belong also to the eighteenth.

The latter has the peculiar merit of doing so much to abolish persecution that there have been comparatively few instances during the period covered by this book. Much more has been done during the last hundred years to extend political than religious liberty; but I have not neglected to mention the most active champions of the great principle, that human rights ought not to be affected by individual differences about theology. If there is too little agitation at present for this principle in the United States, it is largely on account of an unfortunate occurrence of which I have written at some length in the last chapter but one. Here I had the valuable assistance of Francis E. Abbot, Ph.D., author of *Scientific Theism*, and Benjamin F. Underwood. If the words, "militant liberals," had been used in this chapter, they would express my meaning more plainly than the term "aggressive."

The least pleasant part of my work has been the pointing out defects in a system of philosophy, ethics, and theology which I once delighted to honour. As valuable results may have been reached by the metaphysical method as by the scientific; but if the latter is right the former is certainly wrong. When we find so consistent and warmhearted a Transcendentalist as Miss Cobbe placing pantheism and scepticism among "the greatest of sins" (see her *Religious Duty*, pp. 19, 65, and 100), we may suspect that this

philosophy aggravated Carlyle's natural bitterness against opponents. There has been comparatively little intolerance among American intuitionists, thanks to the genial influence of Emerson.

F. M. H.

August, 1899.

LIBERTY IN THE NINETEENTH CENTURY

CHAPTER I. NAPOLEON AND HIS WORK

I. France had been freed by the Revolution from many ghosts of kingly, feudal, and priestly privileges; but she was still the prey of the most deadly of vampires,—military glory. The followers of this fatal guide had driven the party of peace and liberty from power by force and fraud, and found a ruler after their own hearts in the conqueror who, in 1804, became the Emperor Napoleon.

Thus was established what some metaphysicians suppose to be the best form of government,—an enlightened despotism. The autocrat knew that he had risen to power as the most popular champion of political equality; and he gave this democratic principle such additional authority that it has continued supreme in France. Her sons are still equals before the law, owners of the land they till, exempt from taxes levied for the benefit of any privileged class, and free to choose their own career and mode of worship. This is due in great part to the usurper who reduced representative government to an empty shell, and who centralised the administration of schools, police, streets, roads, and bridges, and all other local concerns even more completely than had ever been done before the Revolution.

He knew the real needs of France well enough to give her peace with all her enemies; but scarcely had he signed the last treaty when he took possession of Switzerland, and continued to annex territory, in defiance of the protests of the British ministers that he was making peace impossible. War was declared by them in 1803 and kept up against him for eleven years continuously, with occasional assistance from Russia, Austria, Prussia, Spain, and other countries. This was a period of great glory for France, but also of great suffering. Her boundaries were enlarged; but her most patriotic citizens were slaughtered in foreign lands; her shipping was swept away by British cruisers; her people were hindered in obtaining American grain, British cloth, and other necessities of life, in exchange for wine, silk, lace, and other luxuries; the Emperor could not supervise the prefects who managed, or mismanaged, all internal interests, and who were responsible to him alone; freedom of the press was prohibited; and all the arts of peace decayed.

This was the price which France paid for Auster-litz, Jena, and other famous victories over Russia, Austria, and Prussia, which in 1807 brought peace with every enemy but England, and made Napoleon master, either directly through his prefects, or indirectly through tributary kings, not only of France but of the Netherlands, Denmark, Switzerland, Spain, Venice with the rest of Italy, and about three-fourths of Germany, including one-half of what had formerly been Prussian territory. Eight years from the usurpation in 1799 brought him to his zenith: eight years later, he was at Saint Helena.

His German, Swiss, and Italian subjects gained political equality, and also the permanent advantage of the code which bears his name. It had really been made by his lawyers, on foundations laid by the Convention. Throughout his dominions, Jew, Catholic, and Protestant became equals before the law. The fact that these reforms survived his authority proves that they could have been established without it. They were unavoidable results of the eighteenth century.

How little he was influenced by philanthropy is shown by his driving into exile a statesman named Stein, who had abolished serfdom in Prussia, and made it equally possible for the members of all classes to buy land and choose occupations. The establishment of the Empire had been preceded by the revival of slavery in several colonies where it had been abolished by the Convention. It was for helping the Haytians preserve their independence by heroic resistance, that Toussaint was sent by Napoleon to die in prison. The conquered nations in Europe were handed over from one master to another, without being even invited to consent; but what was still more oppressive was inability to exchange their own products for cloth and hardware from England, grain from the United States, coffee and sugar from the West Indies, and many other articles whose lack was keenly felt. This trouble was largely due to the blockade kept up by British Ships; but Napoleon was so ignorant of the advantage of commerce to both parties engaged in it as to suppose he could conquer England by a plan which really injured only himself and his subjects. He forbade all importation from Great Britain and her colonies wherever he had power or even influence; and many of the prohibited goods were taken from merchants and destroyed without compensation. Germany suffered also from having her manufactures forbidden to compete with the French. The latter asked in vain for freer trade, and were told by Napoleon that he understood their business better

than they did. Countless outrages on prominent individuals helped the growth of disaffection.

II. The British ministry retaliated against Napoleon's attack on the right to trade freely, with a success which led to a great outrage on individual liberty in the United States. The war with Europe gave much of the world's commerce to American ships; but they were forbidden by Great Britain, in 1806, to trade with some of their best customers unless they stopped to pay tribute in her ports. The seizures for disobedience increased the anger which had been long felt against the British for impressing sailors on board of American ships. Three thousand citizens of the United States had been forced into a hostile navy before the refusal of our frigate, *Chesapeake*, in 1807, to submit to a search brought on a bloody contest.

Napoleon was then at the height of his power; and Great Britain was fighting against him single-handed. It was an unusually good time for declaring a war which soon proved inevitable in defence of merchants' and sailors' rights. Jefferson preferred to violate those rights himself, as had been done by the Federalists in 1794, and Congress aided him in forbidding American ships to sail for foreign ports. This embargo was so plainly unnecessary that every captain who was able to get out of New York harbour did so at once without caring what crew, cargo, or papers he had on board. Fifty million dollars' worth of shipping was kept idle for more than a year; a hundred thousand sailors and mechanics were thrown out of work; farms and plantations ceased to be profitable; clothing and tools became ruinously dear; thirteen hundred New Yorkers, who had been ruined by the embargo, were imprisoned for debt; and laws for protection against creditors were passed by the Southern and Western States. No one gained by the embargo except the smugglers; and attempts to suppress them called out dangerous manifestations of popular discontent. No one suffered less than the British merchants.

III. Meantime, Napoleon took the first step towards ruin in placing his brother on the throne of Spain. The Spaniards had borne patiently the loss of ships, commerce, and colonies; but this fresh wrong stirred up insurrection. The new King was brought to Madrid by French troops; but not a single Spaniard would enter his service; and he was soon obliged to leave the city. He said to his brother, "Your glory will be wrecked in Spain"; but Napoleon kept on sending in armies, whose victories made him hated,

but not obeyed. He offered to abolish feudal privileges, the inquisition, and the tariffs which separated province from province. The only result was to make reform odious to a people which cared much more for nationality than progress. The clergy encouraged the peasants to keep up a guerilla war, in which his veterans perished ignominiously; and British auxiliaries won victories which made Wellington famous.

Austria took advantage of the situation to try to reconquer the lost provinces. The Tyrolese had been made subjects of the King of Bavaria; but they rose at the call of Hofer, and gained glorious victories over French and Bavarian soldiers. Other defeats were suffered by Napoleon; but he soon succeeded in forcing Austria to grant him, not only much more of her territory, but the hand of a young princess, who had never thought of him but with abhorrence. This involved his divorce from the loving Josephine. He pleaded desire for a son who might succeed him; but he was not likely to live until any child who might be born after this would be old enough to keep together an empire whose basis was conquest.

The Austrian princess had been demanded before Napoleon's application for a Russian one had been answered decisively; his plans for restoring Poland had given additional offence to the Czar; and the welfare of Russia demanded freedom to use the products of her forests, fields, and mines in buying British goods. This right was insisted upon by the Czar; and Napoleon had only abuse for the friends who warned him that defeat in Russia would call all Germany to arms against him. He was already so unpopular at Paris, that he had to remove with his Court.

The enormous army with which he invaded Russia might easily have taken possession of her Polish provinces, where the people were friendly. He preferred to march a thousand miles, through a hostile and barren country, to Moscow. The city was set on fire at his arrival; but he wasted so much time there, that winter helped the Russians turn his retreat into a rout. Hundreds of thousands of soldiers perished miserably.

The Prussians flew to arms; and Austria demanded restoration of her provinces. He replied that he should not yield an inch, and cared nothing for the loss of a million lives. He was driven out of Germany by "the Battle of the Nations," which was won at Leipsic, in October, 1813, by zealous cooperation of the Russians with Prussians, Austrians, Bavarians, and other Germans.

One result was described by saying that "The Dutch have taken Holland." Need of a strong government in time of war had given a power almost monarchical to the successors of that Prince of Orange who had saved his republic from Philip II. One of these princes was driven out by a democratic rebellion in 1787, but restored by a Prussian army. The French Revolution enabled Holland to return to republicanism; but alliance with the Directory meant continual spoliation; and there were grievous conscriptions under Napoleon, whose rule was extremely unpopular in a nation which lived by commerce. When the Dutch heard of his defeat at Leipsic, they rose against him without waiting for auxiliaries; and the French garrisons were soon driven out by the help of soldiers from Russia, Prussia, and England. The rulers of these countries sanctioned the desire of the Orange faction to make the prince a king. The people were not consulted, but were reconciled by a constitution, under which there was a legislature with some power, local self-government, freedom of worship, political equality, and liberty in commerce.

Napoleon might have remained emperor; but he refused to make any concessions, and kept on fighting until his generals abandoned him, and his deposition was voted by the Senate. The people would not rise for him, as they had done for the Republic; and the Parisians refused to cry "Vive l'Empereur" as he returned from Elba, to be overthrown at Waterloo. Three million Frenchmen perished in his wars; and he left France smaller than he found her. His restrictions on commerce were removed so suddenly as to destroy the industries which he had tried to foster; and the proportion of paupers to the population was three times as great as in 1880.

France was still desirous that the press should be free, and that taxation should be controlled by representatives of the people. Louis XVIII. had to promise that he would respect these rights which his predecessors had violated. Toleration continued; and the peasants kept the property and equality which the Revolution had given them, and which no sovereign could take away.

Napoleon is the most famous of generals; but his greatness as a statesman would have been plainer if he had not undertaken so many showy enterprises which had little chance of success. He failed signally in founding a dynasty, in making France the greatest of manufacturers, and in giving her an invincible navy, though he might have gained the first of these

objects by peace, and the last by free trade. He could not even leave to his successor the territory which had been conquered by the Revolution. Yet these were his dearest purposes, except the wild dream of humbling England. Was he the greatest of architects, every one of whose colossal structures fell under their own weight before they could be used? Greater is he who builds what lasts for ages.

Napoleon made the twenty years ending with 1815 more glorious than any later period, and much more wretched. Western Europe was afflicted by bloody wars, and impoverished by restrictions on commerce. If his reign had been peaceable, he might have deprived France much more completely of what liberty she had enjoyed under the Directory. Every despot, however enlightened and benevolent, must necessarily interfere so much with the liberty of his subjects as to hinder their making themselves happy. France and Germany lost nothing in freedom and gained much in prosperity by his defeat; for it gave the world many years of peace. What he brought of political and religious equality to Prussia, Western Germany, and Switzerland survived him; for it was part of his inheritance from the Revolution which he closed treacherously. France had received her legacy without his help; and she retained much of it in spite of his interference. His victories over hereditary monarchs were so suggestive that books about him are still prohibited in Russia; but no people lost much by his overthrow except the Italians.

IV. Waterloo might have been called a "of the Nations" as well as Leipsic; but the best fighting was under the British flag. The English had suffered much from Napoleon, in spite of his never succeeding in making an invasion. The worst injury he did was in forcing them to remain in that absorption in war which had checked the growth of toleration, democracy, and prosperity in 1793. George III. was personally popular; but his weak, unprincipled successor was merely a figurehead. Two-thirds of the members of the House of Commons in 1815 had been appointed by the Ministry, or by some nobleman, and most of the others owned or rented some pocket-borough almost destitute of inhabitants. The House of Lords was overwhelmingly opposed to government by the people; and no Tories were more consistent than those sons or protégés of noblemen, the bishops. The successors of the apostles had no sympathy with the struggle of the Cross against the Crescent in lands where Paul had preached. They helped to vote down propagation of the Gospel in India, as well as enfranchisement of

Roman Catholics, and mitigation of laws which punished pilfering with death. They tried in vain to save the slave-trade from prohibition; and most of the clerical and lay members of both Houses were in league to keep the tax on importation of wheat heavy enough to give them large incomes from their real estate.

This tariff and the depreciation of currency made food excessively dear. The country labourer was often unable to earn more than the price of a loaf a day. Employers agreed on wages so low that the peasants had to ask continually for parochial relief, and could not afford to go out of the parish to seek higher pay. Their degradation was increased by their almost universal illiteracy; and their misdemeanours, especially poaching, were punished cruelly; for the rural magistrate was either the squire or his ally, the parson. There was little chance of justice for the poor against the rich; the rural labourer could seldom improve his position; and the bad harvests of 1816, 1817, and 1818 helped to make him worse off than ever before or since.

The operatives had higher wages, but suffered under the friction of an industrial revolution, which has done more than any political convulsion for human happiness. The factory had been enabled by the invention of the steam-engine and other machines, shortly before 1800, to take the place of the cottages in making cloth. British goods were in great demand abroad during the war, and had to be carried in British ships. Improved roads and canals led merchants and manufacturers to opulence. The rich grew richer, as has usually been the case; but there were some exceptional years during which the poor really grew poorer. One man could make as much cotton cloth in a day as two hundred could have done before; but what was to become of the one hundred and ninety-nine? Demand for factory labour kept increasing until 1815; but population grew faster still. Wages were already falling; the return of peace lessened the demand abroad; and hundreds of thousands of discharged soldiers and sailors were added to the multitude of unemployed. Labourers were forbidden either to emigrate or to combine in order to keep up wages; and their earnings were lowest at the time when bread was the highest. Meat, sugar, foreign fruit, and many other articles now in common use were almost unattainable by the poor until late in the century. There was much more intelligence in the towns than in the country; but there were no opportunities of education in 1818 in England for one-half of the children.

Boys and girls entered the factory at the age of six, and often from the poor-house, where they had been sold into slavery. The regular time was fourteen hours a day; sitting down was seldom permitted; food was scanty and bad; punishment was constant and cruel; deformity and disease were frequent; and the death-rate was unusually high. Terrible cases occurred of pauper children, kept sixteen hours at a stretch without rest or food, driven by hunger to rob the troughs in the pig-sty, tortured merely for amusement by the overseer, and even advertised for sale with the mill.

The middle class differed much more widely than at present, both from the masses on one hand and from the aristocracy on the other, as regards food, dress, culture, amusements, and political liberty. Taxation was heavy and vexatious; representation in Parliament was notoriously inadequate; and honest men and women were still liable to imprisonment for debt. No one but an Episcopalian had a right to study at a university, enter Parliament, or hold any civil, naval, or military office in England; and neither Dissenters nor Catholics could marry without going through ceremonies which conscience forbade. The press was fettered by laws which kept Leigh Hunt imprisoned for two years, on account of an article acknowledging the unpopularity of the Prince Regent. Cobbett underwent an equally long imprisonment in Newgate for blaming the cruelty of sentencing insubordinate militiamen to be flogged five hundred lashes. No plays could be performed in London in 1814 until they had been read and licensed by the Lord Chamberlain's deputy.

As soon as a strong government ceased to be needed for protection against Napoleon, there broke out much agitation for relief of the disfranchised as well as of the destitute. There was an unprecedented circulation of the cheap pamphlets in which Cobbett advised the discontented to abstain from lawless violence, which could only give them another Robespierre, and devote themselves to striving peaceably for their political rights. Among these he asserted that of every man who paid taxes to vote for members of Parliament. The serious riots which took place in many parts of Great Britain, even London, made the aristocracy consider all opportunities of addressing the people dangerous. The ministry were empowered in 1817 to arrest speakers and authors without any warrant, and keep them in prison without a trial. Prohibition of public meetings was made possible by an act which extended to reading-rooms, debating societies, even among students at Cambridge, and scientific lectures.

The mounted militia was sent to disperse a meeting of fifty thousand unarmed men and women at Manchester, on August 16, 1819, in behalf of parliamentary reform. The people were packed together so closely that they were unable to separate quickly. Fear that some of the young gentlemen who had ridden into the throng might get hurt led the magistrates to order several hundred hussars to charge, without notice, into the dense crowd. The meeting was soon reduced to heaps of fallen men and women, who had been overthrown in the general struggle to escape or cut down by the soldiers; and the field was covered with bloody hats, shawls, and bonnets. Six people were killed, and more than thirty others wounded severely. There was indignation everywhere against this wanton cruelty; and the Common Council of London voted their censure; but Parliament passed laws that same year which made public meetings almost impossible, and put cheap pamphlets under a prohibitory tax, by requiring that they must have such an expensive stamp as kept newspapers beyond the reach of people generally. Arrests for printing and selling unstamped publications were thenceforward frequent. There were many bloody riots; and a conspiracy for assassinating the Ministry was organised in 1820. A dangerous revolution might then have broken out, if food had not been made plenty by abundant harvests.

Roman Catholics were still forbidden to hold any office under the British Government. They could not sit in either House of Parliament, or be married legally in Ireland, where they formed four-fifths of the population, and almost all the offices on that island were filled by Protestants who had been sent over from England, or else elected by close corporations containing scarcely any Catholics. The disfranchised nation was all the more indignant on account of such facts as that two-thirds of the soil of Ireland had been taken away without compensation by English invaders before 1700, and that the share of the Irish in 1800 was only one-tenth. This was held mostly in great estates, as was the rest of the island. Rents were everywhere high and wages low, for population was superabundant; manufactures had been crushed by laws to protect British interests; the people were left ignorant, even of agriculture; and there were frequent famines. Both the land and the government were mismanaged by an anti-Irish minority which took little pains to keep its own partisans from lawless violence, but did its utmost to extort money for a legion of priests, who were merely servants of oppression to nine-tenths of the people. How little

they cared about their professed duty may be judged from the case mentioned by a traveller named Inglis (vol. i., p. 349), of a bishop who drew four or five hundred pounds a year for calling himself rector of a parish where there was no pretence of any public worship but the Catholic. Indignation of Irish Presbyterians had been one main cause of the bloody rebellion of 1798; and all patriotic Irishmen were exasperated at the oppression of the poor by the rich. Removal of religious disabilities was urgently demanded, and most of the men were members in 1825 of an independent association, which could easily have turned the island into one vast camp.

V. Germany had been devastated by twenty years of battles; and many thousand Germans had perished, either in defending their homes against Napoleon, or in serving under him in Russia. His overthrow left them in deeper subjection than ever to a league of despots, who differed in pomp of title and extent of territory, but agreed in obstinately denying any political liberty to the people. The servitude of Germany was confirmed by the agreement of clergymen and philosophers, that absolute monarchy was "ordained of God." The ban of church and university was on the revolutionary rationalism which had inspired the eighteenth century. The predominant philosophy during the first half of the nineteenth century insisted on the infallibility of what was called intuition, but was often merely tradition. This was already the case in Germany, where moribund ideas of politics and theology were worshipped as the loftiest revelations of pure reason.

Devout disciples still hold that all established institutions are justified and all knowledge revealed by Hegel's method of deduction from his own peculiar definition of the Infinite. That definition seems self-contradictory; but this is only a trifle, compared with the method's permitting the master to prefer absolute monarchy, and forcing him to deny that any nation, not extremely limited in area, can long remain a democracy. Hegel's indifference to the existence of the United States was like his asserting, after the discovery of Ceres, that the place where it had been found, and where hundreds of other planets are now known to exist, must be empty. Among other results of his system were a denial that lightning is electricity, and an assertion that rain is merely a change of air into water. Neither liberty nor knowledge gains by disregard of experience in favour of deductions from imaginary intuitions.

Unfortunately, the experience of Europe under Napoleon, as well as during the Revolution, seemed to justify restoration of old institutions as well as of former boundaries. The latter purpose was ostensibly that for which the conquerors of Napoleon met at Vienna, soon after he had retired to Elba; but their real object was to divide the spoils among themselves. The Emperors of Russia and Austria had the assistance, or opposition, of five kings, and of so many princes and nobles that three hundred carriages of state were kept in constant readiness. Lovely ladies of high rank came from many lands; and it seemed to the uninitiated as if nothing was going on but masked balls, private theatricals, hunting parties, stately dinners, and concerts. Beethoven was among the musicians. There was no general meeting of the monarchs and ambassadors; but there were frequent conferences of those most interested in one point or another; and the name of Congress of Vienna was amply justified by the number of bargains and compromises. The only persons never consulted were the thirty millions whose masters were thus selected.

Belgium, for instance, was forced into a union with Holland, which led to civil war; and the Norwegians were put under subjection to the Swedes, against whom they had just been fighting. Ten millions more of Poles were made subjects of the Czar; and his original wish to rule mildly was frustrated by their rebellion. The Italians had been brought by Napoleon into such unity and sense of nationality as they had not felt for many centuries. Offers of greater liberty made Lombardy and Venice take sides against him; they were rewarded by being put under the most hated of rulers, the Austrians; and the latter were made virtually masters of all Italy. When all the plunder had been divided, the royal robbers united in a declaration, acknowledging Jesus as the only sovereign and recommending the daily and universal practice of religion.

The only sovereign who kept his promise, that he would give his subjects a new constitution if they would help him conquer Napoleon, was Goethe's patron at Weimar. He presided over the University of Jena, which Schiller, Fichte, and other professors had made the centre of democratic influence in Germany. A secret political society was formed by students who had fought at Waterloo; and all the universities were invited to help celebrate, on October 18, 1817, the anniversary, not only of the victory at Leipsic, but of the opening of the Protestant Reformation. Five hundred students from various parts of Germany met in the Wartburg, the castle where Luther

found refuge after bidding defiance at Worms to both Pope and Emperor. It was agreed that the new society should extend through all the universities, and should have banners of black, red, and yellow. These henceforth were the colours of liberty in Germany.

Napoleon had reduced Prussia's army to a minimum; among the preparations for breaking his yoke had been the practice of such gymnastics as are still kept up by the Turners; and a public exhibition was given that evening near the castle, before an immense bonfire. Reference was made there to kings who broke their word; and as the audience broke up, some of the students fed the blaze with various emblems of despotism, such as the canes with which soldiers were flogged by corporals. Then they burned a number of blank books, with titles copied from those of pamphlets recently published in opposition to progress.

The King of Prussia had taken some steps towards constitutional liberty, but these boyish freaks brought him completely under the influence of Prince Metternich. This crafty but kind-hearted Austrian worked steadily, from 1814 to 1848, at much sacrifice of ease and pleasure, in hope of preserving civilisation and religion from being destroyed by any new revolution. He was now the real Emperor of Germany; the British Ministry was in sympathy; and the Czar, who had at first been an admirer of parliamentary government, was converted by an outrage in the name of liberty on the right of free speech. One of the literary champions of Russian autocracy, Kotzebue, was assassinated, early in 1819, by a divinity student who had been at the Wartburg. That same year the representatives of the leading German states met at Carlsbad, and agreed, with the Czar's approval, that all German journals and universities should be under strict supervision, that political offenders should be tried by a special central tribunal, and that the new colours should be prohibited.

VI. Louis XVIII. cared as little as Charles II. of England about promises, but was quite as unwilling to have to travel abroad. He dissolved a legislature which was too reactionary; subsequent elections returned liberal candidates, though only one man in a hundred could vote; the National Guard was revived; and progressive ideas were expressed freely. France was moving forwards until February 13, 1820, when a Bonapartist murdered the King's nephew, in hope of cutting off the succession. The legislature was obliged, two days later, to let the press be muzzled;

sanctions of individual liberty were thrown aside; and a law was passed to give rich men two votes apiece. The Liberal Ministry was dismissed; and its successor put all education under control of the priests, forbade Cousin and Guizot to lecture, and sent Béranger to prison for publishing incendiary songs. Louis XVIII., like Charles II., left the crown to a bigoted brother, who had been taught by the Jesuits to care much more for religion than human rights, or the duty of chastity; and Charles X. did his utmost to make himself an absolute monarch. Still worse results of assassination in the name of liberty had already been suffered in Spain and Italy.

No people had really lost much by the overthrow of Napoleon except the Italians. They were learning how to love each other as fellow-citizens of one common country, and how to care more for the welfare of the people than for that of the priests. The Congress of Vienna restored the supremacy of the clergy, and cut up Italy once more into little principalities, whose stupid and cruel despots were guided by Metternich. The people were already conscious of the tie of nationality, desirous to be governed with some regard to their own welfare, and destitute of faith in the divine right of kings. Few of them have been so plainly not "ordained of God" as Ferdinand of Naples and Sicily. He had run away basely from the invaders, and been brought back to promise amnesty, and to massacre men, women, and children by thousands. No criminals but patriots were watched closely; and brigands defied the government. There was no pretence of liberty, even on the stage; and the Jesuits kept literature and education down to merely nominal existence. The only refuge of freedom was among the Carbonari, or members of a secret society, half a million strong. Their flags of black, red, and blue were hoisted in many towns and villages on July 2, 1820, when the army led the revolt. The King swore on the Bible, and after hearing mass, that he would establish a constitution like the French one of 1791, and then asked help from Metternich. The latter brought the Austrian, Russian, and Prussian monarchs together at Troppau, Silesia, where they agreed, on December 8, 1820, to put down all rebels, especially in Italy. An Austrian army won a decisive victory next March over the Neapolitans, whose best troops were fighting against an attempt at secession in Sicily.

Austria took part, a month later, in suppressing a revolt which had just broken out against the petty despot nicknamed "King of Sardines." His first step on his restoration, in 1814, had been to reappoint every man who had been in office in 1798; and Napoleon's code gave way to ancient statutes

which, for instance, forbade the Piedmontese to send wheat they could not use themselves to the Savoyards, who were starving. He was forced to abdicate by a revolt of citizens who wanted a constitution and of soldiers who wished to free Lombardy from Austria. Her help enabled his successor to keep the monarchy absolute; and her influence became paramount in Sardinia, as elsewhere in Italy.

VII. The month of April, 1821, brought an end of rebellion in Italy, and the outbreak of a ferocious revolution in Greece. The Turkish rule was intolerant, and intentionally oppressive. Exportation of food and clothing, for instance, was forbidden in hope of keeping down prices; and the result was to check production. The country was full of brigands; and the worst of wrongs were inflicted on unbelievers by the officials. Priests and rulers in other lands refused to help their fellow-Christians against Moslem tyrants; and the famous victory won by Bozzaris was over Roman Catholics. The new republic had only nominal authority. Independent bands of patriots fought desperately; and the Crescent soon gave place to the Cross in the Archipelago as well as in the Morea, once famous as the Peloponnesus; but the cause was continually disgraced by pillage, perfidy, massacre, and civil war. Several millions of contributions, mainly English, were squandered by the captains. Byron sacrificed his life in a vain attempt to create military discipline; and lack of any permitted the Morea to be conquered in 1825 by the regular army sent over by the Pasha of Egypt.

All resistance, north of the Isthmus of Corinth, was soon suppressed by the co-operation of Egyptians and Turks; and the islanders could do nothing better than ask help from foreigners. The only government which had thus far aided Greece was the American; and Congress had done much less than the people to relieve distress. An alliance between Great Britain, France, and Russia, for preventing extermination of the Greeks, was brought about by Canning. The sovereigns of Turkey and Egypt were so obstinate that their ships were destroyed by the allied fleet at Navarino, Messenia, on October 20, 1827. The Egyptians were driven out of the Morea by French soldiers; and Northern Greece rose against the Turks with a success which secured the present boundary. The Greeks were not permitted to establish a republic; but the monarchy finally became constitutional under the pressure of insurrection.

VIII. No nation had been less capable than the Spanish of appreciating the advantage, either of a vigorous government, or of toleration, freedom of the press, political equality, and personal liberty.

All the time-honoured abuses abolished by Napoleon had been at once restored with the help of the populace; but nothing effective was done to suppress the insurrections which had broken out, during the war, in Mexico and South America. Up to that time, the Indians were serfs and the negroes were slaves. All political power was monopolised by officials sent over from Spain. Spanish interests were protected so thoroughly that all domestic industries were crippled, and goods often cost six times as much as in Europe. Schools and newspapers were almost unknown; no books but religious ones could be bought; and heresy was punished pitilessly.

The invasion of Spain by Napoleon gave opportunity for several simultaneous insurrections. That in Venezuela was crushed by a great earthquake, which was accepted as a sign of divine wrath. Among the leaders was Bolivar, who retreated to Colombia. A Spanish version of Paine's *Rights of Man* had been circulated there, and the patriots were fighting gallantly. There were many bloody battles in Venezuela and Colombia; but both countries were finally made free by the battle of Carabobo, won on June 24, 1821, by Bolivar.

On July 28th, in that same year, the independence of Peru was proclaimed by General San Martin, who had liberated Chili, three years previously, with an army which he led from the Argentine Republic across the Andes by paths never used thus before. His decisive victories were won by the help of emancipated slaves. Chili would have made him her ruler; but he asked only her help against the Spaniards, who were concentrated in Peru. There he found such disorder as led him to declare himself Protector; but this made him so unpopular that he resigned his power and left the continent which he had done more than anyone else to liberate.

The war went on until the hold of Spain on America was broken forever by a battle fought, 12,000 feet above the sea, on December 9, 1826, at Ayacucho, a name given long before by Indians who had fought there among themselves, and meaning "the Corner of Death." Constitutions like that of the United States had already been proclaimed; too much power was held by Bolivar and other despots; but they did not keep the people in such poverty, ignorance, and apathy as had been inflicted by Spain. Paraguay,

however, had a tyrant who dressed himself after a caricature of Napoleon, and tried to imitate his despotism, but had nothing of his genius. Francia was one of Carlyle's model rulers, perhaps because he allowed no elections, juries, public meetings, or newspapers, and sent everyone who talked politics to prison. Men who would not take off their hats to him were cut down by his guards; and timid boys were seen running through the streets with no other article of dress. There were no imports or exports, except by special permission; and goods cost ten times as much as at Buenos Ayres. Equality of races was sought by degrading the whites; but Francia's reign had the one merit of peace.

IX. Intelligent Spaniards were provoked at their king's failure to suppress the rebellion; and the soldiers who were called together for this purpose in 1819 had been so badly paid that they plotted with the friends of progress. A revolt broke out in the camp on the first day of 1820; and it was soon followed by one at Madrid, where the dungeon of the Inquisition was broken open. The King was forced to restore the Constitution which had been framed by the patriots in 1812, after the model of the French instrument of 1791. The prospect of freedom in religion made the clergy and peasantry mutinous. The reactionists in France and Spain found favour with the sovereigns of Russia, Austria, and Prussia. The Liberal Government was overthrown in April, 1823, by a French army. The peasants took sides with the invaders, and many patriots were massacred by the populace. Absolute monarchy and other ancient iniquities were restored, but not the Inquisition. France would have gone on to subdue the rebels in South America for her own benefit; but this was prevented by the British Ministry, which was now showing the liberalising influence of peace.

Napoleon's despotism had the awful and baneful grandeur of an eruption of Vesuvius; but his despicable enemies merely kept up the oppression of his empire without its glory. Their work completed his, as the last of the petty emperors at Rome and Constantinople showed the legitimate tendency of the political system of the mighty founder. Caesar and Napoleon had much in common as conquerors; but it showed far more greatness to found an empire which endured for fifteen centuries, than one which held together for scarcely as many years. Even that length of despotism was sadly too long for the welfare of mankind.

CHAPTER II. FRUITS OF PEACE

EXIGENCIES of war had given the British nobles a despotic power, which they retained long after it ceased to be needed for the nation's safety. The King was their puppet and Parliament their property. The laws were framed and administered for their protection and emolument. Clergy, army, militia, and police were all organised for keeping the people down; and education could do nothing to raise the lowly. Pensions and salaries, even in the Church, were reserved for members and servants of the aristocracy, with little care for the public good. Wages were low, food dear, illiteracy common, and paupers numerous. Even the middle class was in great part disfranchised; taxation was needlessly severe; the press was restricted grievously; and Ireland was shamefully oppressed.

I. As public attention ceased to be absorbed by victorious generals, it turned to the miseries of the poor; and there was much discussion of plans for their relief. Early in the century it became generally known that Robert Owen's factories were unusually profitable, on account of what he did for the intelligence, health, and happiness of the operatives. His pamphlet, published in 1813, and often reprinted as a *New View of Society* argued strongly for universal education as the remedy for poverty and crime; public opinion was much enlightened on the Continent, as well as in England; but a sagacious member of the British aristocracy said to him: "Oh, I see it all! Nothing could be more complete for the working-classes; but what will become of us?"

Owen complained in this pamphlet that Sabbatarianism denied "innocent and cheerful recreation to the labouring man"; and he spoke in public of the influence of religion on progress, with a hostility which sadly injured his popularity. His life was examined with a jealousy which brought to light only its elevation. The opposition of people who thought themselves respectable drove him into agitation for what he was the first to call "Socialism." He published on May 1, 1820, his plan for forming villages, where the people were to work under the supervision of the eldest, and "be freely permitted to receive from the general store of the community whatever they might require." These last words contain the characteristic

principle of Socialism, that every labourer is to be paid according to his needs, whatever the value of the work.

A dozen such experiments were made in the United States, about 1825; but it was found impossible to unlearn the experience of the race. Progress has consisted in bringing each man's welfare into more exact proportion to the value of his work. This tendency has never safely been suspended, except under such coercion as has kept up industry and economy among monks, Rappites, Shakers, and other docile enthusiasts. The cooperative stores which Owen was among the first to open seem to have failed because the salaries were not high enough to secure skilful managers.

II. The proof that a reformer was before his age is the fact that later years caught up with him; and this is by no means so true of Owen as of Bentham, who declared Socialism impracticable. He was one of the first to advocate woman suffrage (*Works*, vol. iii., p. 463), savings banks, cheap postage, collection of statistics, direction of punishment towards reformation, and repeal of usury laws. His bulky volumes are in great part occupied with suggestions for making the courts of justice less dilatory and uncertain, less expensive to the poor, and less partial to the rich. His *Principles of Morals and Legislation* declared, in 1787, that the sole end of a ruler ought to be the happiness of all the people, and that this rule should be the basis of ethics as well as politics. One of his publications in 1817 claimed the suffrage for every man and woman who could read, but insisted that this would be "worse than nothing" without that "shield to freedom," the secret ballot. An opponent who feared that this would destroy private property was answered thus: "Has he ever heard of Pennsylvania?" The complaint that freedom of the press to expose corrupt officials might weaken the government was met by showing that there can be no good government without it. To think our ancestors wiser than us, he says, is to take it for granted that it is not experience but inexperience that is the "mother of wisdom."

Bentham's best work was in sowing seed that his friends might reap the harvest. Other authors were generously assisted by his manuscripts, purse, and library; and there has been no stronger advocate of reform than the *Westminster Review*, which he founded in 1824. The first number showed that the Whigs were too much like the Tories. Their leaders were noblemen or millionaires; their favourite measure, abolition of rotten boroughs, was

mainly in the interest of the middle class; and their policy towards the masses was a seesaw between promising elevation and permitting oppression. This article was by James Mill, who showed in a later number that any church which was established must, on that account, be bigoted. His essay *On Government* urges that the masses cannot be protected unless fully represented. They had not yet found out all they needed; but education would teach it; and occasional mistakes would not be so bad as systematic oppression. Among his ablest books is a defence of the rationalism, bequeathed by the eighteenth century, against Transcendentalism, which eclipsed it during the first half of the nineteenth.

The inspiration of the new philosophy was added to that of many new reforms; and a glorious literature blossomed in the long summer of peace. Wordsworth's fear of "too much liberty" did not prevent his encouraging intellectual independence most impressively. Scott tried "to revive the declining spirit of loyalty"; but the result was universal admiration of rebels and sympathy with peasants. Many authors who adapted themselves much more closely and intentionally to the needs of the age ceased long ago, for this very reason, to find readers. This, for instance, was the fate of the indefatigable Cobbett.

Landor, on the other hand, was unpopular from the first, because devotion to Greek and Latin literature made his style as well as some of his favourite topics uninteresting, except for scholarly people who were soon offended by such remarks as "Law in England and in most other countries is the crown of injustice. According to her laws and usages, Brutus would have been hanged at Newgate; Cato buried with a stake through his body in the highroad; Cicero transported to Botany Bay." "Certain I am, that several of the bishops would not have patted Cain upon the back while he was about to kill Abel." "A peerage I consider as the park-paling of despotism." In his *Imaginary Conversations*, Hofer and Metternich, the emperors of Russia and China, the kings of Spain and Portugal, the Spanish priest, Merino, and many other extraordinary personages tell how badly England was governed by "the hereditarily wise," and what a misfortune it was for all Europe, to have her rulers enjoy such an intimate and universal friendship as was never known among their predecessors.

No writer has spoken more mightily than Byron against the "blasphemy" of ascribing divine authority to these "royal vampires." He knew that

Napoleon had been "the scourge of the world"; but he was indignant to see the men who had struck down the lion kneeling before wolves; and yet he looked forward to the reign everywhere of "equal rights and laws." He spoke freely of the "sacerdotal gain but general loss" in superstition; and his own highest faith was that "they who die in a great cause" would

*"Augment the deep and sweeping thoughts
Which overpower all others and conduct
The world at last to freedom."*

His poems revealed the grandeur of scenery, as well as history, and made delight in mountains and thunderstorms felt as an ennobling influence. His speeches in the House of Lords were pleas for parliamentary reform, Catholic emancipation, and mercy to rioters infuriated by famine. In 1820, he was one of the leading Carbonari in Italy; he gave his life to help the Greeks become free; and his name is still a watchword of revolution.

His friend, Shelley, went so far in the same direction as to call himself a republican, as well as an atheist. His life was pure in his own eyes; but his opinions about divorce were punished by a decision in Chancery that he was unfit to be trusted with his own children. He had consecrated himself in boyhood to war against all oppressors; and his position to the last was that of his own Prometheus, suffering continually with the enslaved, but consoled by faith that his sympathy will hasten the glorious day when every man shall be "king over himself," when women, free "from custom's evil taint," shall make earth like heaven, when "thrones, altars, judgment-seats, and prisons" shall seem as antiquated as the pyramids, and when human nature shall be "its own divine control." He took the side of the poor against the rich in a drama which was suppressed on account of its severity against George IV., and which ends with a portentous scene, where

*"Freedom calls Famine, her eternal foe,
To brief alliance."*

He spoke as well as wrote for the independence of Ireland; and he would have done much for that of Greece, if he had not died soon after publishing a magnificent tragedy, in which he showed what cruel massacres were perpetrated while the rulers of Christendom refused to help Christian patriots against the Turks. Byron is called the poet of revolution; but Shelley was the poet of liberty. One was like a painter who captivated the multitude, sometimes by his brilliancy of colour, sometimes by his tragic

pathos, and sometimes by his amorous warmth. The other was like a sculptor who left a few statues and tablets, fanciful in design and majestic in execution, for the delight of connoisseurs. Fortunately the marble is likely to outlast the canvas.

III. These poets and philanthropists helped the people of England contrast the wrongs they were suffering with the rights they ought to have. That love of liberty which drove out the Stuarts revived, as despotism was seen to increase pauperism and excite more crime than it suppressed. The conflict between republicanism and monarchy in Europe had changed to one between despotism and constitutionalism; and peace made England free to resume the advanced position she had held in the eighteenth century. The declaration of President Monroe, in December, 1823, that the United States would not permit the South American republics to be overthrown by any despot in Europe, gained much authority from the concurrence of the British Ministry; and the latter was induced by Canning to form that alliance with France and Russia which gave independence to Greece.

The attack on the slave-trade, which began while England was at peace with her neighbours, had slackened in the shadow of the long war. The wicked traffic was prohibited in 1807; but little more could be done before 1823. Then an appeal for emancipation in the West Indies was made to Parliament by Wilberforce and other organised abolitionists; and the agitation went on until victory was made possible by the rescue of the House of Commons from the aristocrats. The acts forbidding workingmen to combine for higher wages, or to emigrate were repealed in 1824. The criminal laws had already been mitigated, and some protection given to children in factories; and the duties on wool and raw silk were now reduced, to the common benefit of consumer, manufacturer, and operative.

The Whigs were strong enough in 1828 to repeal the Test Act, which had been passed in 1673, for the purpose of enabling the Episcopalians to hold all the offices, but had become a dead letter so far as regarded Protestants. The House of Lords gave way unwillingly; and one of the bishops secured such a compromise as kept Jews out of Parliament for the next thirty years. Conscientious scruples against taking oaths were treated at this time with due respect; and all British Protestants became equals before the law. Canning had already made the House of Commons willing to emancipate Catholics; but neither this reform nor that of abolishing rotten boroughs

could pass the bench of bishops; and the Church stood in the way of a plan for free public schools. It was the organised resistance of all Ireland to disfranchisement of Catholics which won toleration from a Tory Ministry. Its leader, Wellington, cared nothing for public opinion or the people's rights; but he was too good a general to risk a war with a united nation. Even the minister whose sympathy with Orangemen had won the nickname of "Orange Peel" declared that it was time to yield. Popular prejudice against Romanism had been much diminished by gratitude for the aid given by Catholic allies against Napoleon. The bishops rallied around the King, who had never before been influenced by what he called religion; but he was forced to sign, on April 13, 1829, the bill which ended a strife that had cursed Europe for three hundred years. Two-thirds of the bishops resisted to the last; and the Tory party was so badly divided as to be unable to prevent England from following the example set next year by France.

IV. By the Constitution of 1814, the power belonged mainly to the Parisian bankers, merchants, and manufacturers. These men preferred constitutional monarchy to either democracy or military despotism; but they meant to maintain their own rights; and they were much offended at the attempts of Charles X. to check mental progress and revive superstition. His plans for fettering the press were voted down in the Chamber of Nobles; journalists prosecuted by his orders were acquitted by the courts; and he could not enforce a law under which burglars who robbed a Catholic church would have mounted the guillotine.

Early in 1830, he dissolved the Legislature for declaring that he was not governing according to the wish of the people. The candidates next elected were two to one against him. On Monday, July 26, appeared his ordinances forbidding publication of newspapers without his permission, unseating all the deputies just chosen, and threatening that subsequent elections would be empty formalities. The plan was like that of 1797; but this time the soldiers in Paris were few in number and ill-supplied with provisions, while their general was not even notified of his appointment. The police allowed the journalists to spread the news throughout Paris and publish a protest declaring that they would not obey the ordinances and appealing to the people for support. The leader, Thiers, had already called for a king who would reign but not govern. Lawyers and magistrates pronounced the ordinances illegal. Printers and other employers told their men that the next day would be a holiday.

On Tuesday, the crowds of operatives, clerks, students, ragged men and boys could not be dispersed by the police. Marmont took command of the troops that afternoon, and shot a few insurgents. That night all the street-lamps were put out; thousands of barricades went up, after plans but recently invented; and gun-shops, powder-magazines, arsenals, and even museums were broken open. On Wednesday, there was a new city government in the Hôtel de Ville; everywhere hung the tri-coloured banner of Napoleon and the Republic; and the tocsin called out a hundred thousand rebels in arms. The weapons of Crusaders were seen side by side with the bayonets and uniforms of the National Guard, which had been revived by Napoleon but disbanded by Charles X.

Marmont's orders were to clear the streets that afternoon; but the soldiers were met everywhere by a heavy fire and a shower of paving stones and furniture. One patriotic girl was said to have sacrificed her piano. All the detachments were finally hemmed in between barricades and crowds of rebels with pikes, muskets, and bayonets. During the night they were concentrated around the Tuileries, where they suffered greatly from hunger and thirst, as they had done during the day. Their ammunition was almost exhausted; and new barricades were put up around them. Marmont ordered that there should be no more firing, except in self-defence, and tried in vain to make truce with the rebels. The latter were joined on Thursday by the regiments in the Place Vendôme. This position was entrusted to part of the Swiss who had defended the Louvre; but the others were soon driven out by men and boys who swarmed in at unguarded doors and windows. All the soldiers took flight that noon from Paris.

All this time the King was amusing himself at St. Cloud, and boasting that there would be no concessions. He now offered to dismiss his Ministry and revoke the ordinances; but more than a thousand lives had been lost. The Parisians marched against him: he abdicated and fled: the Bourbons had ceased to reign. The men who had fought against him called for a republic with universal suffrage and no State church; but the wealthier citizens were afraid of war with Russia and Austria. A descendant of Louis XIII. and a friend of Thiers was made King by the Legislature. He called himself Louis Philippe, and promised cordially to carry out the Constitution, which now meant freedom of the press, and equal privileges for all Christian churches. The supremacy of Rome in France was at an end. Seats in the Upper House could no longer be inherited; and the right to vote

for deputies was given to twice as many Frenchmen as before. Patriots in all nations were encouraged; and the Swiss cantons became more democratic; but Hegel was frightened to death.

Among other results were unsuccessful revolts in Rome and Warsaw, with successful ones in Brussels, Cassell, and Dresden. The subjection to Holland, which had been imposed by the Congress of Vienna, was hated by the Belgians, partly because it made education secular, and partly because it gave them only half the Legislature, and very few offices elsewhere, although they formed three-fifths of the population. Priests were active in stirring up the revolt which began at Brussels on August 25, 1830, after the performance of an opera telling how Masaniello had set Naples free. The Dutch were driven out; Belgium was made a separate constitutional monarchy by the vote of a convention of deputies; France and England helped her maintain political independence; but it was to the loss of intellectual liberty.

V. The success of rebellion with the pressure of hard times enabled the Whigs to carry England for parliamentary reform. Peel and Wellington hastened their fall by boasting that there could be no improvement of a Legislature which accepted members for places without any inhabitants, but not for Birmingham, Leeds, Manchester, or some parts of London, and which actually enabled one Scotchman to elect himself as sole representative of fourteen thousand people, in a district where he was the only voter.

The people were so discontented with the whole system of Church and State, that thousands of sympathisers gathered around Cobbett in July, 1831, when he was tried for printing a statement that riots of farm hands were doing good in forcing the clergy to reduce their tithes. Lord Brougham, who had been made Chancellor, was among the witnesses to the generally pacific tendency of Cobbett's writings. The jury did not agree; and the Government gave up the case. There was but little more political persecution of British authors.

Reform triumphed that autumn in the House of Commons. The House of Lords would then have been conquered, if the bishops had acted like successors of the apostles; but twenty-one out of twenty-three voted for prolonging their own dominion. Their conduct made it unsafe for them to wear their peculiar costume in the streets. Bells tolled, and newspapers put

on mourning. There were riots in all the cathedral towns. A duke's castle was burned, because he insisted that the votes of his tenants were his private property, and attempts to punish the incendiaries brought Bristol, one Sunday, into the hands of a mob which burned the bishop's palace, the custom-house, and many other buildings. It was agreed by a meeting of a hundred thousand people at Birmingham, that no more taxes should be paid until Parliament was reformed; and on very many houses, especially in London, there was the following notice: "To save the Collector unnecessary trouble, he is informed that No Taxes on this house will be paid, until the Reform Bill pass into a Law." It was at a meeting to encourage this course that Sydney Smith, who had done good service for Catholic emancipation, told how vainly Mrs. Partington tried to sweep back the Atlantic, during a great storm, and added: "Be quiet and steady. You will beat Mrs. Partington."

The episcopal Partingtons continued to be even more hostile than the lay members of the House of Lords; but all finally yielded to the threat that there would be new peers enough created to vote them down. A popular song made the Reform Bill boast that, "Twenty peers shall carry me, If twenty won't, then forty will; For I 'm his Majesty's bouncing Bill."

The throne was then filled by William IV., who reigned from 1830 to 1837, and who gave his consent, though sometimes unwillingly, to several of the greatest reforms ever passed in England. The bill which he signed on June 7, 1832, enabled 141 members of Parliament to be elected by populous districts hitherto unrepresented, instead of by little boroughs where the voters were so few as to be bought up easily, or else intimidated constantly; and the franchise was also much extended, though not outside of the middle class. Thus Great Britain ceased to be governed by a league of irresponsible nobles, bishops, and other lords of vast estates.

VI. They had kept the lower classes ignorant, in order to secure obedience; and their methods were not given up at once. Newspapers had already become the chief teachers of politics; and therefore they were under a triple tax. A duty on paper added one-fourth to the cost of publication. There was also a tax of three-and-sixpence on each advertisement; and more of this lucrative business was done by the publishers in New York City than by all those in Great Britain. A third exaction was that of fourpence for a stamp on every copy; and prices were thus prevented from

falling below seven-pence, except in case of violation of the laws. These threatened fine or imprisonment to whoever should publish or sell any periodical costing less than sixpence, and containing "news, intelligence, occurrences, and remarks and observations thereon, tending to excite hatred and contempt of the government and constitution of this country as by law established, and also to vilify religion." This purpose was avowed explicitly, in so many words, by *The Poor Man's Guardian*, which announced that it was published "contrary to law" and would be sold for one penny. The circulation was twice that of *The Times*, and the language often violent. The publisher, Hetherington, was sent twice to prison for six months; and could not go about except disguised as a Quaker. His papers were packed in chests of tea, by an agent who was afterwards mayor of Manchester. Another publisher, who devoted himself to reports of criminal trials, used to send them out in coffins. Many unstamped periodicals were in circulation. Some dealers carried them about in their hats and pockets. Others hawked them in the streets, and declared, when sentenced to prison, that they should resume the business on the same spot as soon as they were released. Paid informers and spies helped the Whig Government carry on more than two hundred prosecutions in 1835, and more than five hundred previously. Subscription boxes for the relief of the martyrs could be seen everywhere. Remonstrances were signed and indignation meetings held in London and Manchester. "The Society for the Repeal of All Taxes on Knowledge" kept up a vigorous agitation, which was aided by Bulwer in Parliament. At last the publishers who bought stamps found they could not compete with men who bought none. This duty, and also that on advertisements, were reduced in 1836; and the result was so gratifying, even to publishers of the best periodicals, that all these taxes have been abolished.

Protestant bigotry had not prevented unsectarian public schools from being opened in Ireland in 1833; and that year is also memorable for the abolition of slavery in the West Indies, the extension of universal suffrage in Scotland, the beginning of free trade with India and China, the removal of disability for office from Hindoo subjects of Great Britain, the protection of children from being overworked in factories, and the suppression of supernumerary bishops and rectors in Ireland.

During the next three years, the local government of most English towns and cities, though not yet of London, was taken from corrupt oligarchies and given to all inhabitants who paid even a moderate rent; seamen ceased

to be impressed; Irish Catholics and English dissenters were enabled to marry without apostasy; vexatious methods of collecting tithes were abolished in England; the poor-laws were made less favourable to the increase of pauperism; and the growth of prosperity and independence among the poor was assisted by the introduction of a system of unsectarian education, in 1839, though the bishops would have preferred that one-third of the people of England should remain illiterate. Penny postage was established in 1840, the last year when Great Britain was governed by the Whigs.

Parliament was so philanthropic and tolerant as to reject repeatedly a proposal to impose heavy fines for attending secular meetings, visiting eating-houses, travelling, fishing, or hiring horses on Sunday. Labour, too, was to be forbidden, but not that of "menial servants." This bill would have prevented the poor from enjoying their only holiday; but there was to be no interference with the pleasures of the rich; and the fact was pointed out by a young man, whose *Pickwick Papers* had just begun to appear in monthly parts. His illustrated pamphlet is entitled: *Sunday as it Is; as Sabbath Bills would Make it; as it might be Made*. It has been reprinted with his plays and poems. He tells how much was done for the health and happiness of London by those privileges which the Sabbatarians were trying to abolish; and he shows what gain there would be in knowledge and virtue from opening all the museums and galleries Sunday afternoons.

The pamphlet shows that delight in the bright side of life, and that sympathy with the pleasures of the poor, which won popularity for *The Pickwick Papers* in 1836, and afterwards for *The Old Curiosity Shop* and the *Christmas Carol*. The novels most like *Sunday as it Is*, however, are such protests against bigotry and cruelty as *Oliver Twist*, *Nicholas Nickleby*, and *Barnaby Rudge*. Powerful pictures of the gloom of that British Sabbath which locked up everything "that could by any possibility afford relief to an overworked people," may be found in *Little Dorrit*; and the plot turns on the Sabbatarianism of a cruel fanatic who had made felony part of her religion. Much was done by this novel, as well as by *Pickwick* and *Nicholas Nickleby* towards the abolition of imprisonment for debt in 1869. His tone was very mild, compared with that of the popular orators. Resistance to bad laws was urged by Richard Carlile; and a clergyman named Taylor, who held the Gospel to be a solar myth, was imprisoned on October 24, 1827, for saying that the first martyrs for Jesus Christ were the Gadarene pigs. Another

London lecturer declared on Sunday evening, December 2, 1832, that "The elective franchise should belong to women, as a part of the people," and again that "Women are qualified to elect and to be elected to all public offices." "Any argument for exclusion is of that kind which has justified every tyranny," says this discourse, which was printed for the first time, on May 11, 1833, in an American newspaper, *The Free Enquirer*. Its columns show that a young lady had already presented very advanced ideas as a lecturer at the Rotunda in London; but the general opinion of the sex was expressed by the wife of the Rev. John Sandford, whose popular book declared that "There is something unfeminine in independence. A really sensible woman... is conscious of inferiority." The Irish have supported themselves so successfully in America, and obeyed the laws so generally, as to prove that failure to do either in Ireland should not be attributed to their race or their religion, but wholly to their oppression. Memory of the seventeenth and eighteenth centuries was all the more bitter in the nineteenth, because the destitution of the peasantry was increasing hopelessly. Removal of religious disabilities and reform of Parliament did not prevent bands of armed peasants from fighting against attempts to take away their cattle in payment of the tithes exacted by well-paid dignitaries of the hated Church. It sometimes happened that a dozen of the combatants were killed. Sydney Smith estimated that this way of keeping up a state church cost a million lives, from first to last, and Ireland had to be as heavily garrisoned as India, until a less vexatious system was established in 1838. Municipal government was wholly in the hands of little corporations, which had the sole power of electing new members and seldom admitted a Catholic. The ruling oligarchy was to the population as one to two hundred in Limerick, and only as one to twenty-five hundred in Protestant Belfast. The right of local self-government was given to the people of these cities and a few others in 1840; but even this small and tardy justice provoked an English bishop to threaten that it would call down vengeance from God. Full municipal suffrage throughout the island and a domestic Parliament were demanded by all Ireland, under the guidance of the mighty orator O'Connell; but the prejudice against his cause in Great Britain was made invincible by his denouncing "the Saxons," as he called the English, for the crimes of their ancestors.

VII. All reforms stopped in 1841, when the Whigs lost the supremacy. It was not their fault that excess in speculation on both sides of the Atlantic

had brought on a panic which threw thousands of people out of work in the factory towns, and reduced other thousands to earning only twopence a day. A succession of bad harvests, just before 1841, made wages very low on the farms, and food too dear everywhere. Bread was sold in halfpenny slices; labourers robbed pigs of swill; children fought with dogs for bones in the streets; one person in every eleven was a pauper; and England seemed to Dickens like one vast poorhouse. The old ways of giving charity had been so lavish and indiscriminate as to encourage pauperism; the new system of relief proved really kinder; but at first it was administered too slowly and cautiously for the emergency; and there was some ground for the complaints in *Oliver Twist*. Knowledge that paupers were neglected strengthened the belief of the working-men, that all they needed to make them as well off as their brethren in America was the ballot. Paine, Cobbett, and Hetherington were widely read; manhood suffrage and a secret ballot were called "the People's Charter"; and there were more than a million signatures to the Chartist petition in 1839. These demands were just; but about one Englishman in three was unable to write his name at this time; and many who had acquired this accomplishment knew dangerously little about politics. When we think how much mischief has recently been done in the United States by illiterate and venal votes, we cannot blame Englishmen of the upper and middle classes for delaying to grant universal suffrage. They ought to have made rapid preparation for it, by liberal encouragement of popular education through free schools and a cheap press; but even the Whigs were too indignant at the violence of the Chartists, who made bloody riots in 1841. How ignorant these men were was shown by their doing their worst that year to help carry the elections against the Whigs, who were much less hostile to Chartism than the Conservatives, as those Tories were called who still condescended to politics.

The most culpable blunder of the Whigs had been that of allowing the revenue to fall below the expenses; and the policy they had proposed for making up the deficit was too much like that halfhearted way of dealing with slavery which brought ruin upon the party of the same name in America. The British tariff was raised by the war against Napoleon, as the American was under similar pressure afterwards, so high as in some cases to prohibit imports and actually check revenue. Either tariff could have been used as an almost complete list of the world's products; and both were

framed on the principle of protecting everybody, except consumers, against competition. Great Britain unfortunately could produce only part of the food needed by the people; and the tariff was so much in the interest of owners of land as to make bread and meat dearer than if the island had been barren. Importation of cattle was prohibited; and that of wheat and other grain was not permitted until prices were high enough to cause famine. Then importation would begin slowly, and keep increasing until the supply of both foreign- and home-grown wheat would become large enough to glut the market and make farmers bankrupt. These duties on grain, which were known as the corn laws, acted with similar taxes on all other necessities of life in impoverishing factory hands and other members of the working class. They were told that the laws which kept living dear kept wages high; but we shall see that this turned out not to be the fact. The only real gainers by the corn laws were those wealthy owners of great estates of whom Parliament was composed entirely, with the exception of a few members of the House of Commons.

That body allowed Manchester and other factory towns to send representatives who had found out the tendency of protectionism from their own business experience, as well as from study of political economy. Among these men was Cobden, who had already planted himself in the road to wealth, but who preferred to remain poor that he might make England rich. He and his associates knew that imports are paid for by exporting what can be produced most profitably; that nothing is imported which could be produced as cheaply at home; that large imports make large exports; that the average Englishman knows how to carry on his own business; and that the Government could not encourage any otherwise unprofitable industry without checking the really profitable ones. On these facts were based the following predictions. In the first place, free trade in grain and cattle would lower the average price of food in England, and make the supply so regular that there would be no more famines. Second, those countries which were allowed to send grain and cattle, cotton and other raw materials, etc., to England would buy British manufactures in return. Third, removal of duties from raw materials would enable factories to produce goods more cheaply, and sell larger quantities at home as well as abroad. Then, fourth, this increased activity in manufacturing would raise wages, while remission of duties would make all the necessities of life cheaper, so that pauperism would diminish and prosperity become more general in the working class.

And finally, the commerce of England with other countries would grow rapidly to their mutual benefit; and thus international relations would be kept friendly by free trade.

In this faith the reformers at Manchester and Birmingham asserted the right of all men to buy and sell freely, and demanded the removal of all duties except those best adapted to bring in necessary revenue. They were wise enough to attack the monstrous tariff at its weakest point, the tax on bread. The Anti-Corn-Law League was organised in 1839; the spot where the Peterloo massacre had been perpetrated, twenty years before, was soon used for a free trade banquet in which five thousand working-men took part; and appeals to the people were made in all parts of England. The Conservatives were all protectionists; and so many Whigs were on that side that those leaders who were opposed to the bread tax did not dare to come out against it. They did propose in 1841 to meet the deficit in the revenue by reducing some duties which were so high as to prevent importation, for instance, the tax on all sugar not grown in British colonies. The protectionist Whigs voted with the Conservatives against the Ministry; and it had to go out of office without having done enough against the corn laws to secure the support of the League. Protectionists, Chartists, and opponents of the new poor-law helped to give the Conservatives control of the next Parliament, where the free-traders were one to four.

Such was the state of things in October, 1841, when the League went to work more vigorously than before in educating the people, and especially voters of the poorer class. During the next twelve months, half a million dollars was spent in this work. In 1843, there were fourteen regular lecturers in the field, besides countless volunteers, and five hundred distributors of tracts. The annual number of publications was about ten million copies; and the annual weight exceeded a hundred tons. The dissenting ministers did good work for reform; but the Episcopalian clergy were too friendly to a tax which kept up the value of tithes. The League soon had the support of John Bright, who was one of the greatest of British orators. Prominent among opponents was the Chartist leader, Feargus O'Connor; and those Chartists who were not protectionists held that their cause ought to take the lead. Public opinion was so strongly for free trade in 1845 that Parliament took off the duties from cotton and other raw materials, in hope of conciliating the manufacturers; but these latter redoubled their efforts to abolish the tax on food. Subscriptions were larger

than ever; and much land was bought by free-traders who wished to qualify themselves as voters for members of the next Parliament, which would have to be elected in or before 1848.

Reform seemed still distant, when Shelley's prophecy was fulfilled. Freedom's eternal foe, Famine, came suddenly to her help. Dearthness of wheat and meat had obliged half of the Irish and many of the English to live entirely on potatoes. Wages were often paid in Ireland by loan of land for raising this crop. The rot which began in August, 1845, soon became so destructive that Peel, who was then Prime Minister, proposed in October that grain should be made free of duty. Wellington and other members of the Cabinet demurred; and the question had to be submitted to Parliament. Disraeli insisted to the last on keeping up the tariff; but famine was increasing; and both Houses finally agreed, after long debate, to accept Peel's proposal, that not only the duties on food and raw materials, but most of the others, should be either reduced or abolished. His conservatism did not keep him from seeing that the whole system of protecting home industries must stand or fall together. Prominent among obstructionists were the bishops. The House of Lords did not agree before June 25, 1846, to the reform which had been accepted on May 15th by the House of Commons, and which was publicly acknowledged by Wellington to be inevitable. Such was the exasperation of the protectionists that they helped the opponents, of coercion in Ireland to drive Peel out of office, by a vote which was taken in the House of Commons on the very day when his plan of tariff reform gained that victory in the House of Lords which made free trade for ever the system of Great Britain.

About one-half of the import duties are now levied on tobacco, one-fourth more on wine and strong drink; and most of the rest on tea and other groceries. Duties on articles which could be produced in Great Britain are offset by internal-revenue taxes. No monopoly is given to farm or factory; no necessary article is made too dear for the poor; and there are no needless violations of the right of the labourer to spend his wages in the best market.

This reform made the relief of Ireland possible, though the loss of life was terrible. Never again has England been so near to a famine as in 1841. Food is now so plenty that five times as much sugar is used in proportion to population as in 1842, and more than twice as much butter and eggs. This does not mean that the millionaire eats five times as much sugar, or twice as

many eggs, as before, but that poor people can now buy freely what formerly were almost unattainable luxuries. The proportion of money in savings banks in England and Wales has doubled; and that of paupers sank from 1 in 11 in 1842 to 1 in 37 in 1895. Wages have risen fifty per cent., while other prices have fallen; and British workmen are better off than any others in Europe. The annual value of English exports declined steadily from 1815 to 1842; but it is now four times as great as in the latter year; and it is more than twice as large in proportion to population as in those highly protected countries, the United States and France. Low tariffs also enable Belgium to export nearly three times as much for each inhabitant as France, and New South Wales to export five times as much as the United States. Large exports do not depend on density of population but on ability to import freely. Readiness of any country to buy freely of her neighbours keeps them able and willing to buy whatever she has to sell. Free trade has given Great Britain, New South Wales, and Belgium their choice of the world's markets. Great Britain has also been enabled to keep up much more friendly relations with the rest of Europe than would otherwise have been the case. Liberty of commerce has helped her enjoy peace; and peace has preserved free institutions.

The reforms which culminated in free trade showed Englishmen that they could right any wrong without resort to violence. The attempt of the Chartists to overawe Parliament in 1848 was seen to be inexcusable; and it failed ridiculously. Never since then has insurrection in England been even possible. The atmosphere of thought has been so quiet that suffrage was greatly extended in 1867, and made practically universal in 1894. Voters gained the protection of a secret ballot in 1872; and municipal self-government was given in 1894 to every part of England where it had not already been established.

No wonder that there is little of the revolutionary ardor of Shelley and Byron in Tennyson, Browning, and other recent poets. They have delighted in progress; but they have seen that it must come through such peaceable changes in public opinion, and then in legislation, as are caused by free discussion. The benign influence of peace has enabled them to display such brilliancy as had not been seen in England for more than two hundred years. No other writers ever paid so much attention to public health and the general happiness. The ablest thought of the century has been devoted to enriching human life, and not to destroying it. This has enabled science to

make unprecedented progress. A new period of intellectual history has been opened by Spencer and Darwin.

VIII. Prominent among reformers who had no wish for revolution, and no respect for science, were Dickens and Carlyle. The latter's ("former's" Ed.) aversion to political economy as "the dismal science" was echoed in the pages of *Hard Times*; and the absence of any reference in *Dombey and Son* to the great movement against the corn laws is characteristic of a novelist whose *Pickwick Papers* made fun of scientific investigation. What was there called the "tittlebat" is really that nest-building fish, the stickleback. Passages ridiculing the use of statistics might be quoted at great length from both authors. Dickens had too much sympathy with paupers, especially those who suffered under the poor-law of 1834; and Carlyle had much too little. They agreed in opposition to model prisons and other new forms of philanthropy. Perhaps it was mainly the habit of indiscriminate ridicule which suggested such caricatures as Mrs. Jellaby and Mrs. Pardiggle. Carlyle's belief that abolitionism was "an alarming Devil's Gospel" and his denunciation of "the sugary, disastrous jargon of philanthropy" were legitimate results of idolatry of what he called "early, earnest times," namely the Dark Ages. His sympathy with mediaeval methods was so narrow that he spoke of a poet of weak health and high culture, whom he saw suffering under a sentence of two years in a pestilential prison, forbidden books or writing materials, kept most of the time alone and on bread and water, but guilty of nothing worse than a Chartist speech, as "master of his own time and spiritual resources to, as I supposed, a really enviable extent." Dickens shows much more appreciation of the real superiority of modern times, though personal disappointments, during his visit to America, prevented him from acknowledging the merits of democracy. Carlyle's reverence for the early Hebrews and other primitive barbarians made him present hero-worship as the only secure corner-stone of politics. His receipt for a perfect government is this: "Find in any country the ablest man that exists there; raise him to the supreme place; and loyally reverence him." "Such a government is not to be improved by voting or debating." "Neither except in obedience to the Heaven-chosen is freedom so much as conceivable." This theory showed its own absurdity in prompting eulogies on Francia and other despots; but Carlyle's apologies for Cromwell were of some service to the cause of liberty fifty years ago, when England had forgotten to honour the champions of the Long Parliament. Dickens

thought more about the asceticism than the independence of the Puritans. He and Carlyle have dispelled some of the prejudices against the heroes of the First Republic; but they perpetuated others. Carlyle's best work was in encouraging the readers of his first books to think for themselves. The power of Dickens to call out sympathy with the unfortunate will never cease to bless mankind.

As much pity for the outcast has been shown by his great rival, Victor Hugo, and even more fellow-feeling with the oppressed. The spirit which has made France free animates all his writings, especially those grand poems which were called out by the usurpation of Louis Napoleon Bonaparte. His early dramas dealt so vigorously with royal weakness and vice that *Marion de Lorme* was suppressed by Charles X. and *Le Roi s'amuse* by Louis Philippe. The work which has made him best known, and which appeared in 1862 in nine languages, is a plea for mercy to criminals, or in his own words, to "the miserable." The chief aim is to show "the oppression of laws," and the mistake of aiding the tyranny of the police by thinking too severely of the fallen. He finds an opportunity to introduce an enthusiastic panegyric on the victories of Napoleon, closing with the question: "What could be more grand?" "To be free," is the reply. Full justice to the French Revolution is done by that most dramatic of novels, *Ninety-Three*. Here he says: "The agony of the nations ended with the fall of the Bastille." "Perhaps the Convention is the culmination of history." "It declared poverty and disability sacred." "It branded the slave-trade, and freed the blacks." "It decreed gratuitous education." "The object of two-thirds of its decrees was philanthropic." Such facts are all the more worthy of mention, because they were omitted by Carlyle.

SUPPLEMENT TO CHAPTER II

I. Thomas Carlyle's prejudice against democracy was strengthened by the failure of the revolutions of 1848. Constitutional monarchy was as hostile to reform in France as it was friendly in England.

Only one Frenchman in thirty could vote; and the legislature cared nothing for public opinion. Louis Philippe was hated for habitual dishonesty. There had been several attempts at regicide and some bloody revolts. One of the latter gave a basis from history for Victor Hugo's *Misérables*. Restrictions on the press and on public meetings increased the unwillingness of the working-men at Paris to be governed by the rich.

Socialism was popular, and employment insufficient. The prohibition of a reform banquet caused barricades to be thrown up on February 22d in Paris. The militia took sides with the populace; the King fled to England; and all France accepted the Republic, which was proclaimed on February 24th. Slavery had been reestablished in the colonies by Napoleon; but it was now abolished; and so was capital punishment for political offences.

The example of Paris was followed in March by successful insurrections at Berlin, Vienna, and other German cities, as well as in Lombardy and Venice. Home rule was demanded by Hungary and Bohemia, and constitutional governments were soon established there as well as in Austria, Prussia, and other German states, and in every part of Italy. The King of Sardinia took the lead in a war for driving back the Austrians across the Alps. Co-operation of French, German, Hungarian, and Italian patriots might have made all these countries permanently free.

Such a union would have been difficult on account of international jealousies; and it was made impossible by the Socialists at Paris. Scarcely had a provisional government been set up, when recognition of "the right of employment" was demanded by a workman, who came musket in hand, and was supported by a multitude of armed artisans. They extorted a decree which promised every citizen work enough for his support. A ten-hour law was passed. Co-operative factories were started with aid from the city authorities, and had some success. Opening national workshops was not advised by leading Socialists; but it was considered necessary by some of the Ministry in order to keep the unemployed from revolt. Every applicant drew money constantly, even if not at work. What little labour was actually performed was done so lazily, and paid so highly, that the number of men soon rose to 120,000. The expenses became enormous; and the tax-payers insisted that they too had rights. In order to be able to employ all the labourers a government would have to own all the property; and it would also have to be strong enough to enforce industry. Even Victor Hugo admitted that the experiment had failed. The National Assembly, of which he was a member, notified the men in the shops that they must enlist in the army, or go to work at a safe distance from Paris on state pay, or look out for themselves. They rose in arms against the Republic, and took possession of nearly one-half of the city on June 23, 1848. "Bread or Lead" was the motto on their red flags; and two of their terrible barricades are described at the beginning of the last Part of *Les Misérables*. They held out against

regular troops and cannon during four days of such fighting as had never been seen before in Paris. More Frenchmen are supposed to have fallen than in any of Napoleon's battles. Two thousand of the soldiers were slain; but no one knows how many times that number of insurgents perished in the fight or in penal colonies.

Thenceforth the French Government was much more desirous to repress insurrection at home than to sustain it abroad. Louis Napoleon Bonaparte was elected President that same year, partly on account of his name, and partly on account of his promise that he would defend the right of private property against Socialism. Austrian generals of the rough and reckless type which Carlyle loved forced Lombardy and Bohemia back into the Empire, and restored absolute monarchy at Vienna, while the King of Sardinia was obliged to abdicate after such a defeat in March, 1849, as almost extinguished liberty in Italy. Venice alone held out against them under that purest of patriots, Manin, and suffered terribly during a siege of twenty-one weeks. Hungary was subdued that summer with the aid of Russia. France did nothing except to revive the papal despotism at Rome. Mazzini's republic was crushed by that which had a Bonaparte for President. His power had been increased by the disfranchisement of several million French voters of the poorer class. His promise to restore universal suffrage joined with memory of the massacres of June, 1848, in preventing much resistance to his usurpation of absolute power on December 2, 1851. There was a monstrous vote, next November, for an empire, where the centralisation of administration was complete, and the legislature merely ornamental. Thus the liberation of Europe was prevented, partly by race prejudices, but mainly by attempts to benefit the poor by overtaxing the rich. France and Hungary were left with less political liberty than before; and Italy gained very little; but some of the constitutional freedom acquired in 1848 was retained in Prussia and other parts of Western Germany.

II. It was contrary to the general tendency of wars, that those of the latter half of the century aided the growth of free institutions in Italy. An honoured place among nations was given by the Crimean war to Sardinia. Then her patriotic statesman, Cavour, persuaded Napoleon III. to help him rescue Lombardy from Austria. Garibaldi took the opportunity to liberate Naples; and Victor Emanuel made himself King over all Italy except Rome and Venice. The latter city also was brought under a constitutional and friendly government by a third great war, which made the King of Prussia

and his successors Emperors of Germany, while Austria was compelled to grant home rule to Hungary. The liberation and secularisation of Italy were completed in 1870 by the expulsion from Rome of the French garrison. The Emperor had lost his throne by waging war wantonly against a united Germany.

III. The Third Republic was soon obliged to fight for her life against the same enemy which had wounded her sister mortally. Socialism was still the religion of the working-men of Paris, who now formed the majority of the National Guard. Indignation at the failure of the new Government to repulse the Prussians led, on March 18, 1871, to the capture of all Paris by what was avowedly the revolution of the workmen against the shopkeepers, "in the name of the rights of labour," for "the suppression of all monopolies," "the reign of labour instead of capital," and "the emancipation of the worker by himself." This was in harmony with the teaching of the International Working-men's Association, which endorsed the insurrection fully and formally, and which held with Karl Marx that wealth is produced entirely by labour and belongs only to the working class. Socialists were active in the rebellion; but property-holders in Paris took no part; and all the rest of France took sides with the Government. What professed to be the rising of the many against the few turned out to be that of the few against the many. Impressment was necessary for manning the barricades, and pillage for raising money. The general closing of stores, factories, and offices showed that capital had been frightened away by the red flag. One of the last decrees of its defenders was, "Destroy all factories employing more than fifteen workers. This monopoly crushes the artisan." This spirit would have caused the confiscation of the funds of the National Bank, if the managers had not said: "If you do that, you will turn the money your own comrades have in their pockets to waste paper." The priceless pictures and statues in the Louvre were condemned to destruction because they represented "gods, kings, and priests." Millions of dollars worth of works of art perished in company with docks, libraries, and public buildings; but this vandalism, like the massacre of prisoners, was largely the work of professional criminals. The capture of Paris, late in May, was accompanied with pitiless slaughter of the rebels, though many lives were saved by Victor Hugo.

Since then the French Republic has been able to keep down not only the Socialists but the Bonapartists and Royalists. It has also succeeded, with the help of writers like Renan, in checking the ambition of the clergy.

Continuance of peace in Europe has assisted the growth of local self-government in France, and also in Germany. The famous Prussian victories seem, however, to have increased the power of the German Emperor; and there is still danger that the growth of standing armies may check that of free institutions.

CHAPTER III. DEMOCRATS AND GARRISONIANS

I. The fall of the English aristocracy was hastened by the success of democracy in America. Nowhere were the masses more willing to obey the law; and nowhere else were they so intelligent and prosperous. The gains of the many made the country rich; territory and population increased rapidly; and Britannia found a dangerous competitor on every sea. Political liberty and equality were secured by the almost uninterrupted supremacy of the Democratic party from 1800 to 1860. Twelve presidential elections out of fifteen were carried by Jefferson and his successors; and the Congress whose term began in 1841 was the only one out of the thirty in which both Houses were anti-Democratic.

Political equality was increased in State after State by dispensing with property qualifications for voting or holding office. Jefferson and his successor, Madison, refused to appoint days for fasting and giving thanks, or grant any other special privileges to those citizens who held favoured views about religion. Congress after Congress refused to appoint chaplains; so did some of the States; and a national law, still in force, for opening the post-offices on every day of the week, was passed in 1810. Many attempts were made by Sabbatarians to stop the mails; but the Senate voted in 1829, that "Our government is a civil, and not a religious institution"; and the lower House denied next year that the majority has "any authority over the minority except in matters which regard the conduct of man to his fellow-man." The opposition made by the Federalists to the establishment of religious equality in Connecticut, in 1816, increased the odium which they had incurred by not supporting the war against Great Britain. Four years later, the party was practically extinct; and the disestablishment of Congregationalism as the state church of Massachusetts, in 1833, was accomplished easily.

The Northern States were already so strong in Congress that they might have prevented Missouri from entering the Union that year without any pledge to emancipate her slaves. The sin of extending the area of bondage

so far northwards was scarcely palliated by the other conditions of the compromise. The admission of Maine gave her citizens no privileges beyond what they had previously as citizens of Massachusetts; and the pledge that slavery should not again be extended north of latitude thirty-six, thirty, proved worthless.

The North was so far from being united in 1820 that it was not even able to raise the tariff. New York, Pennsylvania, and Ohio wished to exclude foreign competition in manufacturing; but the embargo was too recent for New England to forget the evils of restricting commerce. The Salem merchants petitioned for "free trade" "as the sure foundation of national prosperity"; and the solid men of Boston declared with Webster that "A system of bounties and protection" "would have a tendency to diminish the industry, impede the prosperity, and corrupt the morals of the people."

II. The dark age of American literature had ended in 1760. Before that date there were few able books except about theology; and there were not many during the next sixty years except about politics. The works of Franklin, Jefferson, and other statesmen were more useful than brilliant. Sydney Smith was not far wrong in 1820, when he complained in the *Edinburgh Review* that the Americans "have done absolutely nothing for the sciences, for art, for literature." He went on to ask, "In the four quarters of the globe, who reads an American book?" His question was answered that same year by the publication in London of Irving's *Rip Van Winkle* and *Legend of Sleepy Hoi-low*. Bryant's first volume of poems appeared next year, as did Cooper's popular novel, *The Spy*; and the *North American Review* had begun half a dozen years before. But even in 1823, Channing could not claim that there really was any national literature, or much devotion of intellectual labour to great subjects. "Shall America," he asked, "be only an echo of what is thought and written in the aristocracies beyond the ocean?"

This was published during the very year in which President Monroe declared that the people of the United States would look upon attempts of European monarchs "to extend their system to any portion of this hemisphere as dangerous to our peace and liberty." Channing was much interested in the study of German philosophy; but he rested his "chief hopes of an improved literature," on "an improved religion." He maintained that no man could unfold his highest powers until he had risen above "the

prevalent theology, which has come down to us from the Dark Ages," and which was then "arrayed against intellect, leagued with oppression, fettering inquiry, and incapable of being blended with the sacred dictates of reason and conscience."

Unitarianism claimed for every individual, what Protestantism had at most asked for the congregation,—the right to think for one's self. This right was won earlier in Europe than in America, for here the clergy kept much of their original authority and popularity. Their influence over politics collapsed with Federalism. On all other subjects they were still listened to as "stewards of the mysteries of God," who had been taught all things by the Holy Spirit, and were under a divine call to preach the truth necessary for salvation. The clergyman was supposed to have acquired by his ordination a peculiar knowledge of all the rights and duties of human life. No one else, however wise and philanthropic, could speak with such authority about what books might be read and what amusements should be shunned. Scientific habits of thought, free inquiry about religion, and scholarly study of the Bible were put under the same ban with dancing, card-playing, reading novels, and travelling on Sunday. The pulpit blocked the path of intellectual progress. Its influence on literature was wholly changed by the Unitarian controversy, which was at its height in 1820. Still more beneficial controversies followed.

The trinitarian clergymen tried to retain their imperilled supremacy by getting up revivals. One of these, in the summer of 1828, was carried so far at Cincinnati that many a woman lost her reason or her life. These excesses confirmed the anti-clerical suspicions of Frances Wright, who had come over from England to study the negro character, and had failed, after much labour and expense, to find the slaves she bought for the purpose capable of working out their freedom. She had made up her mind that slavery is only one of many evils caused by ignorance of the duties of man to man, that these duties needed to be studied scientifically, and that scientific study, especially among women, was dangerously impeded by the pulpit.

That autumn she delivered the first course of public lectures ever given by a woman in America. Anne Hutchinson and other women had preached; but she was the first lecturer. The men and women of Cincinnati crowded to hear the tall, majestic woman, who stood in the court-house, plainly dressed in white. Her style was ladylike throughout; but she complained of the

many millions wasted on mere teachers of opinions, whose occupation was to set people by the ears, and whose influence was stifling the breath of science. "Listen," she said, "to the denunciations of fanaticism against pleasures the most innocent, recreations the most necessary to bodily health." "See it make of the people's day of leisure a day of penance." Her main theme was the necessity of establishing schools to teach children trades, and also halls of science with museums and public libraries.

This course was repeated in Baltimore, Philadelphia, New York, Boston, and other cities. Her audiences were always large, but she charged no admission fee. What were called "Fanny Wright societies" were formed in many places. A Baptist church in New York City was turned into a Hall of Science, which remained open for three years, beginning with the last Sunday of April, 1829. It contained a hall for scientific lectures and theological discussions, a free dispensary, a gymnasium, and a bookstore. Here was published *The Free Enquirer*, the only paper in America which permitted the infallibility of Christianity to be called in question. The principal editor, Robert Dale Owen, son of the famous Socialist, claimed to have twenty thousand adherents in that city, and a controlling influence in Buffalo. Celebrations of Paine's birthday were now frequent. It was fortunate for the clergy that controversies about religion soon lost their interest in the fierce struggle about politics.

III. The fame won by Jackson as a conqueror of British invaders in 1815, blinded Americans to a fact which had been made manifest by both Napoleon and Wellington, as it is said to have been still more recently by Grant. The habit of commanding an army has a tendency to create scorn of public opinion, and also of those restrictions on arbitrary authority which are necessary for popular government, as well as for individual liberty. Jackson had the additional defect of holding slaves; and it is probable that if he had never done so, nor even had soldiers under his orders, he would have been sadly indifferent to the rights of his fellow-citizens and to the principles of free government. He was elected in 1828, and proved enough of a Democrat to renounce the policy, which had recently become popular, of making local improvements at the national expense; but he was the first President who dismissed experienced officials, in order to appoint his own partisans without inquiry as to their capacity to serve the nation. He was especially arbitrary about a problem not yet fully solved, namely, what the Government should do with the banks. The public money was then

deposited in a National Bank whose constitutionality was admitted by the Supreme Court. Its stock was at a premium and its notes at par in 1829; and it had five hundred officials in various States. Jackson thought it had opposed his election; and he suggested that the public money should be removed to the custody of a branch of the Treasury, to be established for that purpose. The plan has since been adopted; but his friends were too much interested in rival banks, and his opponents thought only of preventing his re-election in 1832. They could not, however, prevent his obtaining a great majority as "the poor man's champion."

The Bank had spent vast sums in publishing campaign documents, and even in bribery; and Jackson suspected that it would try to buy a new charter.

He decided, with no sanction from Congress, and against the advice of his own Cabinet, that the public money already in the Bank should be drawn out as fast as it could be spent, and that no more should be deposited there. He removed the Secretary of the Treasury for refusing to carry out this plan; and obliged his successor to set about it before he was confirmed by the Senate. To all remonstrances he replied, "I take the responsibility"; and he met the vote of the Senators, that he was assuming an authority not conferred by the Constitution, by boasting that he was "the direct representative of the American people." Webster replied that this would reduce the government to an elective monarchy; and the opponents to what they called Jackson's Toryism agreed to call themselves Whigs. Their leader was Henry Clay; and they believed, like the Federalists, in centralisation, internal improvements, and protective tariffs.

Jackson was sustained by the Democrats; but their quarrel with the Whigs prevented Congress from providing any safe place for the public money. It was loaned to some of the State banks; and all these institutions were encouraged to increase their liabilities enormously. Speculation was active and prices high. That of wheat in particular rose so much after the bad harvest of 1836 that there was a bread riot in New York City. Scarcely had Jackson closed his eight years of service, in 1837, when the failure of a business firm in New Orleans brought on so many others that all the banks suspended payment. Prices of merchandise fell so suddenly as to make the dealers bankrupt; many thousand men were thrown out of employment; and

so much public money was lost that there was a deficit in the Treasury, where there had been a surplus.

IV. These bad results of Jackson's administration strengthened the Whigs. They had not ventured to make protectionism the main issue in 1832; and Clay had acknowledged that all the leading newspapers and magazines were against it in 1824. Its adoption that year was by close votes, and in spite of Webster's insisting that American manufactures were growing rapidly without any unnatural restrictions on commerce. The duties were raised in 1828 to nearly five times their average height in 1789; and there was so much discontent at the South, that some slight reductions had to be made in the summer of 1832; but the protectionist purpose was still predominant. If the opponents of all taxation except for revenue had done nothing more than appeal to the people that autumn, they would have had Congress with them; Jackson was already on their side; and the question might have been decided on its merits after full discussion. The threat of South Carolina to secede caused the reduction, which was actually made in 1833, to appear too much like a concession made merely to avoid civil war; and this second attempt to preserve the Union by a compromise was a premium upon disloyalty. This bargain, like that of 1820, was arranged by Henry Clay; and one condition was that the rates should fall gradually to a maximum of twenty per cent. Before that process was completed, the Treasury was exhausted by bad management; and additional revenue had to be obtained by raising the tariff in 1842. The Whigs were then in power; but they were defeated in the presidential election of 1844, when the main issue was protectionism. The tariff was reduced in 1846 by a much larger majority than that of 1842 in the House of Representatives; and the results were so satisfactory that a further reduction to an average of twenty per cent, was made in 1857, with the general approval of members of both parties. The revenue needed for war had to be procured by increase of taxation in 1861; but the country had then had for twenty-eight years an almost uninterrupted succession of low tariffs.

The universal prosperity in America between 1833 and 1842 is mentioned by a French traveller, Chevalier, by a German philanthropist, Dr. Julius, by Miss Martineau, Lyell, and Dickens. The novelist was especially struck by the healthy faces and neat dresses of the factory girls at Lowell, where they began to publish a magazine in 1840. Lyell said that the operatives in that city looked like "a set of ladies and gentlemen playing at

factory for their own amusement." Our country had seven times as many miles of railroads in 1842 as in 1833; our factories made more than nine times as many dollars' worth of goods in 1860 as in 1830; and they sold more than three times as many abroad as in 1846. Twice as much capital was invested in manufacturing in 1860 as in 1850; the average wages of the operatives increased sixteen per cent, during these ten years; America became famous for inventions; her farms doubled in value, as did both her imports and her exports; and the tonnage of her vessels increased greatly. Such are the blessings of liberty in commerce.

Especially gratifying is the growth of respect for the right of free speech. The complaints by Dickens, Chevalier, and Miss Martineau of the despotism of the majority were corroborated by Tocqueville, who travelled here in 1831 and published in 1835 a very valuable statement of the results and tendencies of democracy. The destruction that year of a Catholic convent near Boston by a mob is especially significant, because the anniversary was celebrated next year as a public holiday. The worst sufferers under persecution at that time were the philanthropists.

V. In order to do justice to all parties in this controversy we should take especial notice of the amount of opposition to slavery about 1825 in what were afterwards called the Border States. Here all manual labour could have been done by whites; and much of it was actually, especially in Kentucky. There slaves never formed a quarter of the population; and in Maryland they sank steadily from one-fourth in 1820 to one-eighth in 1860. Of masters over twenty or more bondmen in 1856, there were only 256 in Kentucky and 735 in Maryland. It was these large holders who monopolised the profits, as they did the public offices. White men with few or no slaves had scarcely any political power; and their chance to make money, live comfortably, and educate their children, was much less than if all labour had become free. Such a change would have made manufacturing prosper in both Kentucky and

Maryland; but all industries languished except that of breeding slaves for the South. The few were rich at the expense of the many. Only time was needed in these and other States to make the majority intelligent enough to vote the guilty aristocrats down.

Two thousand citizens of Baltimore petitioned against admitting Missouri as a slave State in 1820; and several avowed abolitionists ran for the

Legislature shortly before 1830. At this time there were annual anti-slavery conventions in Baltimore, with prominent Whigs among the officers, and nearly two hundred affiliated societies in the Border States. There were fifty in North Carolina, where two thousand slaves had been freed in 1825, and three-fifths of the whites were reported as favourable to emancipation. Henry Clay was openly so in 1827; and the Kentucky Colonisation Society voted in 1830 that the disposition towards voluntary emancipation was strong enough to make legislation unnecessary. The abolition of slavery as "the greatest curse that God in his wrath ever inflicted upon a people" was demanded by a dozen members of the Virginia Legislature, as well as by the *Richmond Inquirer*, in 1832; and similar efforts were made shortly before 1850 in Kentucky, Delaware, Maryland, Western Virginia, Western North Carolina, Eastern Tennessee, and Missouri.

From 1812 to 1845 the Senate was equally divided between free and slave States; and any transfer, even of Delaware, from one side to the other would have enabled the North to control the upper House as well as the lower. The plain duty of a Northern philanthropist was to co-operate with the Southern emancipationists and accept patiently their opinion that abolition had better take place gradually, as it had done in New York, and, what was much more important, that the owner should have compensation. This had been urged by Wilberforce in 1823, as justice to the planters in the West Indies; the legislatures of Ohio, Pennsylvania, and New Jersey recommended, shortly before 1830, that the nation should buy and free the slaves; and compensation was actually given by Congress to loyal owners of the three thousand slaves in the District of Columbia emancipated in 1862. Who can tell the evils which we should have escaped, if slavery could have continued after 1830 to be abolished gradually by State after State, with pecuniary aid from Congress or the North?

This was the hope of Benjamin Lundy, who passed much of his life in the South, though he was born in New Jersey. He had advocated gradual emancipation in nearly every State, visiting even Texas and Missouri, organising anti-slavery societies, and taking subscriptions to his *Genius of Universal Emancipation*, which was founded in Tennessee in 1821, but afterwards was issued weekly at Baltimore. He published the names of nine postmasters among his agents, and copied friendly articles from more than forty newspapers. One of his chief objects was to prevent that great extension of slavery, the annexation of Texas.

VI. The election of the first pro-slavery President, Jackson, in 1828, discouraged the abolitionists; and Lundy was obliged to suspend his paper for lack of subscribers early next year. When he resumed it in September, he took an assistant editor, who had declared on the previous Fourth of July, in a fashionable Boston church: "I acknowledge that immediate and complete emancipation is not desirable. No rational man cherishes so wild a vision." Before Garrison set foot on slave soil, it occurred to him that every slave had a right to instant freedom, and also that no master had any right to compensation. These two ideas he advocated at once, and ever after, as obstinately as George the Third insisted on the right to tax America. Garrison, of course, was a zealous philanthropist; and he was as conscientious as Paul was in persecuting the Christians. But he seems to have been more anxious to free his own conscience than to free the slaves. Immediate emancipation had been advocated in Lundy's paper at much length, and even as early as 1825, but so mildly as to call out little opposition. Insisting on no compensation was much more irritating; and Garrison's writings show that his mind was apt to free itself in bitter words, even against such men as Whittier, Channing, Longfellow, Douglass, and Sumner. He had been but three months in Baltimore when he published a censure by name of the owner and captain of one of the many vessels which were permitted by law to carry slaves South, as "highway robbers and murderers," who "should be sentenced to solitary confinement for life," and who deserved "to occupy the lowest depths of perdition." He was found guilty of libel, and imprisoned for seven weeks because he could not pay a moderate fine.

The money was given by a generous New Yorker; but Garrison's work in the South was over, and Lundy's was of little value thenceforth. The man who brought the libel suit was an influential citizen of Massachusetts; and Boston pulpits were shut against Garrison on his return. He could not pay for a hall; but one was given him without cost by the anti-clerical society, whose leader, Abner Kneeland, was imprisoned thirty days in 1834 for a brief expression of atheism which would not now be considered blasphemous.

Two weeklies, which were unpopular from the first, began to be published at Boston early in 1831. Kneeland's *Investigator* was pledged "to contend for the abolition of slavery" and "advocate the rights of women." It was friendly to labour reform as well as to scientific education, and opposed

capital punishment, imprisonment for debt, and legislation about religion; but its predominant tone has been skeptical to the present day. Garrison was too orthodox in 1831 to favour the emancipation of women; he was in sympathy with other reforms; but his chief theme was the "pernicious doctrine of gradual abolition." The next mistake of his *Liberator* was the prominence given to negro insurrection and other crimes against whites. The Southerners were naturally afraid to have such subjects mentioned, even in condemnation; and guilty consciences made slave-holders think the danger much greater than it was. The first number of the *Liberator* contained Garrison's verses about the horrors of the revolt which might bring emancipation. He announced at the same time that he was going to review a recent pamphlet which he described thus: "A better promoter of insurrection was never sent forth to an oppressed people." His contributors spoke often of the right of slaves to resist, and asked, "In God's name, why should they not cut their masters' throats?" Many women and children were massacred by rebel slaves in Virginia that autumn; and Garrison promptly declared that the assassins "deserve no more blame than our fathers did for slaughtering the British," and that "When the contest shall have again begun, it must again be a war of extermination." Similar language was often used in the *Liberator* afterwards.

Garrison was too firm a non-resistant to go further than this; but the majority of Northerners would have agreed with the Reverend Doctor Wayland, President of Brown University, who declared slavery "very wicked," but declined to have the *Liberator* sent him, and wrote to Mr. Garrison that its tendency was to incite the slaves to rebellion. Of course this was not the editor's intention; but history deals mainly with causes and results.

The consequences were especially bad at the South. Calhoun and other Democrats were striving to unite all her people in resistance to emancipation, as well as to protectionism. They appealed to the insurrection in 1831, and to the treatment of this subject in the *Liberator*, as proofs that abolitionism was incendiary; and the feeling was so intense in Georgia, that the Governor was authorised by the Legislature, before the end of 1831, to offer five thousand dollars for the head of the editor or of any of his agents in that State. Southerners were generally provoked at such comparisons of slave-holders to thieves as were often made in the *Liberator* and were incorporated into the formal declaration made by Garrison and the other

founders of the New England Anti-Slavery Society at Boston early in 1832. Planters friendly to emancipation were discouraged by Garrison's insisting that they ought not to have compensation, an opinion which was adopted by the American Anti-Slavery Society at its organisation at Philadelphia in 1833. Such protests on moral grounds were of great use to politicians who opposed any grant of money for emancipation, because they wished to preserve slavery. The national Constitution provided that emancipation should not take place in any State which did not give its consent; and this was much less attainable in 1835 than it had been ten years earlier.

So fierce was the hatred of anti-slavery periodicals, that many pounds of them were taken from the Charleston post-office and burned by the leading citizens in July, 1835; and this action was praised by a public meeting, which was attended by all the clergy. The papers were printed in New York, and do not seem to have been destroyed on account of their own mistakes, but of those made by the *Liberator*. Southern postmasters refused after this to deliver any anti-slavery matter; and their conduct was approved by the Postmaster-General, as well as by the President. The legislatures of North Carolina and Virginia demanded, in the session of 1835 and 1836, that all such publications be suppressed legally by the Northern States.

South Carolina, Georgia, and Alabama took the same course; and it was agreed everywhere that abolitionists were to be lynched. Loyalty to slavery was required of all preachers and editors; no other qualification for every office, in the service either of the nation or of the State, was exacted so strictly; other controversies lost interest; and men who would have gained greatly from the introduction of free labour helped the slave-holders silence those intelligent Southerners who knew what urgent need there was in their section of emancipation for the general welfare.

Garrison, meantime, made both friends and enemies at the North. He had the support of nearly four hundred anti-slavery societies in 1835; but some of these had been founded in Ohio by Lundy on the principle of gradual emancipation, and others in New York by Jay, whose main objects were repeal of the Fugitive Slave Act and emancipation in the District of Columbia. Agitation for immediate abolition without compensation was nowhere active at that time, except in New England. The highest estimate of its partisans in 1840 was only two hundred thousand; most of them had already renounced the leadership of Garrison; and there is no reason to

believe that the number of his thorough going followers ever reached one hundred thousand.

Most of the original abolitionists were church members; and the agitation was never opposed, even at first, by so large a proportion of the clergy at the North as of the people generally. Several ministers joined Garrison at once; 125 enrolled their names for publication as abolitionists in 1833; and two years later he had the open support of the New England Methodist Conference, the Maine Baptist Convention, and the Detroit Presbytery, as well as of many Congregationalists, and of most of the Quakers, Unitarians, and Free-Will Baptists. Preaching against slavery was not common in denominations where the pastor was more liable to be gagged by ecclesiastical superiors.

One reason that this authority, as well as that of public opinion in the Northern cities, was directed against agitation, was the pressure of business interests. The South sent most of her products, especially cotton, to manufacturers or merchants in Philadelphia, New York, and New England. This region in return supplied her with clothes, tools, and furniture. Much of her food came from the Western farmers; and these latter were so unable to send grain or cattle eastward until after 1850, that the best road for most of them to market was the Mississippi. The slave-holders were such good customers, that people along the Ohio River, as well as in Eastern seaports and factory towns, were slow to see how badly the slaves were oppressed.

Enlightenment on this subject, as well as about capacity for free labour, was also delayed by prejudices of race and colour, while there was much honest ignorance throughout the North. What was best understood about slavery was that it was merely a State institution, not to be abolished or even much ameliorated by the national Government. The main responsibility rested accordingly upon the Southern States; and the danger that these might be provoked to secede could not be overlooked. These considerations prevented the majority of the Northerners, and especially the leading members of every sect, from opposing slavery as actively as they would otherwise have been glad to do.

The most active partisan of the slave-holders was the politician who knew they had votes in Congress and in the electoral college for all the whites in the South and also for three-fifths of the coloured people. The views of the Democratic party about the tariff, the bank, and State rights

had made it in 1832 victorious everywhere south of Maryland and Kentucky; and its preponderance in the cotton States, as well as in Virginia, enabled it long to resist the growing disaffection at the North. The Whigs went far enough in the same course for their own destruction; and the principle of individual liberty found few champions.

VII. Politicians and merchants worked together in getting up the series of mobs against abolitionists, which began in 1833, under the lead of a Methodist bishop in New York, and kept breaking out in that city, Philadelphia, Cincinnati, Boston, and less important places, until they culminated in the burning of Pennsylvania Hall in 1838. After that year, they were neither frequent nor violent. The worst crime of the rioters was murdering a clergyman named Lovejoy in 1837 for trying to save his printing-press. Most of the Baptist, Methodist, and Presbyterian preachers and editors were now doing what they could to suppress the agitation; but the riots called out no indignation like that which had poured forth from all the churches in 1828 against Sunday mails.

There was little freedom of speech for unpopular opinions in America in 1835, when Channing declared that the mob against Garrison had made abolitionism "the cause of Freedom." There were many readers, even in the South, for the little book in which he insisted that "Slavery ought to be discussed." He protested against depriving the slave of his right to improve and respect himself, and vindicated "the sacredness of individual man." He was the first to appeal from the Fugitive Slave Law to that "everlasting and immutable rule of right revealed in conscience." And few other clergymen gave such help to John Quincy Adams, who was then asserting the right of petition and of discussion in Congress. Memorials with a hundred and fifty thousand signatures had been presented against the annexation of Texas, and in favour of emancipation in the District of Columbia, when it was voted by all the Southern Representatives, as well as by the Northern Democrats, in January, 1837, that all petitions relating to slavery "shall be laid on the table and no action taken thereon." The ex-President, who was then a Representative from Massachusetts, protested indignantly, as did other Whigs, and they continued to plead for the constitutional rights of the North until 1844, when the gag-rule was abolished. On July 4, 1837, Adams told the people that "Freedom of speech is the only safety-valve which, under the high pressure of slavery, can preserve your political boiler from a

fearful explosion." The number of names, including many repetitions, signed in the next two years to anti-slavery petitions was two millions.

Emancipation in the District of Columbia was out of the question, if only because the South chose half the Senate. The North was strong enough in the House of Representatives to prevent any pro-slavery legislation; and the annexation of Texas was actually postponed until 1845, in consequence partly of the petitions and partly of remonstrances from the legislatures of Massachusetts, New York, Pennsylvania, Ohio, and other States. These bodies also protested against the neglect of petitions in Congress. The subsidence of mobs after 1838 was due to a general feeling at the North, not only that the rioters were too violent, but also that the South was too dictatorial in gagging Congress, in tampering with the mails, in asking Northern legislatures to suppress public meetings, and in trying to annex Texas.

VIII. On all these points the Whigs were so far in advance of the Democrats in 1840, as to receive much support from abolitionists. These last, however, were widely and unfortunately divided among themselves. Many of the men still called themselves Democrats; for the old party which had been founded by Jefferson had liberal members, who had formerly been called "Fanny Wright men," and were now known as "Loco Focos." A few abolitionists took the Gospel aphorisms about non-resistance so blindly as to say it would be a sin for them to vote. Garrison renounced the franchise "for conscience" sake and the slave's; but it is hard to see precisely what any slave gained by his friends' refusing to vote for Adams, Sumner, or Lincoln. The most consistent abolitionists voted regularly, and selected a candidate for his work in the cause, without regard to his party record.

The Democrats took decided ground in the national convention of 1840 and afterwards against abolitionism. Their nominee, Van Buren, was then at the head of a corrupt administration. The Whig candidate, Harrison, was in favour of free speech and honest government. He had been chosen in preference to Clay, because of the latter's attacking the abolitionists. Another slave-holder who wanted to lynch them, had, however, been nominated by acclamation for Vice-President at the Whig convention; and the party had no platform.

It is hard to see what ought to have been done under these circumstances by abolitionists. Some who were afterwards known as "Liberty men" set up

an independent ticket, headed by a martyr to the cause. They had quite as much right to do this as Garrison had to refuse to vote. He had hitherto taken little responsibility for the proceedings of the national society; but when the annual meeting was held at New York in May, 1840, he brought on more than five hundred of his own adherents from New England, in order to pack the convention. Thus he secured the passage of a declaration that the independent nominations were "injurious to the cause" and ought not to be supported. Garrison has justly been compared to Luther, and this was like Luther at his worst.

Most of the officers and members seceded and organised a rival society which did good work in sympathy not only with the Liberty men but with the Free Soilers; and these parties gained most of the new converts to abolitionism. In 1847 the *Liberator* published without comment an estimate that it did not represent the views of one active abolitionist in ten; and a coloured clergyman of high ability, Dr. Garnett, declared in 1851 that the proportion was less than one per cent. Most of the clergymen who were friendly to Garrison before 1840 were thenceforth against him. So many pulpits were suddenly closed against the agitators, that one of them, named Foster, kept insisting on speaking in meeting without leave in various parts of New England. He was usually dragged out summarily, and often to the injury of his coat-tails, though never of his temper. Boston was one of the most strongly anti-slavery cities; but twenty pastors out of forty-four refused to asked the people to pray for a fugitive slave who was imprisoned illegally in 1842. Those who complied had comparatively little influence. The rural clergy in New England, New York, Michigan, and Northern Ohio, had much more sympathy with reform than their brethren to the southward, especially in large cities. Garrison's personal unpopularity in the churches had been much increased by his violent language against them, and also by his asserting the injustice of Sunday laws, as well as the right of women to speak for the slave. His position on these points will be considered later.

IX. His worst mistake was the demand, which he published in the *Liberator*, in May, 1842, for "a repeal of the Union between Northern Liberty and Southern Slavery." This he called "essential" for emancipation. In January, 1843, the Massachusetts Anti-Slavery Society passed the resolution which was afterwards published regularly in the *Liberator* as the Garrisonist creed. It declared the Union "a covenant with death and an agreement with hell" which "should be immediately annulled." This

position was held by Garrison, Phillips, and their adherents until 1861. It was largely due, like their refusal to vote, to indignation at the support given to slavery by the national Constitution, the Fugitive Slave Act, and some recent legislation at Washington. Garrison was also confident, as he said at a Disunion convention in 1857, that if the South were to secede, she would not "be able to hold a single slave one hour after the deed is done." Phillips, too, declared that "All the slave asks of us is to stand out of his way." "Let no cement of the Union bind the slave, and he will right himself." It is true that secession brought on emancipation; but it would not have done so if Phillips and Garrison had succeeded in quenching love of the Union in the North. That patriotic feeling burst out in a fierce flame; and it was the restoration of the Union which abolished slavery. Another important fact is that the chief guilt of slavery rested on the South. The national Government was only an accessory at worst. No Northerner was responsible for any clause in the Constitution which he had not sanctioned, or for any action of Congress which he had done his best to prevent.

The best work against slavery which could be done in 1843 and 1844 was to defeat a new attempt to annex Texas. This scheme was avowedly for the extension of slavery over a great region where it had been prohibited by Mexico. There would probably be war with that country; and success would increase the power of the slave-holders in the Senate. One half of its members were from the slave States in 1844; but annexation was rejected in June by a vote of two to one; and the House of Representatives was plainly on the same side, though otherwise controlled by the Democrats.

Public warning of the danger to liberty had been given by Adams and other Whigs in Congress early in 1843; but little heed was taken either by the clergy or by the Garrisonists. Both were too busy with their own plans. Channing died in 1842; and Parker went to Europe in September, 1843. It was not until two months later that the *Liberator* found room for Texas. Garrison never spoke against annexation until too late; and it was scarcely mentioned in the May meetings of 1843 at New York and Boston, in the one hundred anti-slavery conventions which were held that summer in Western New York, Ohio, and Indiana, with the powerful aid of Frederick Douglass, or in the one hundred conventions in Massachusetts early in 1844. At the May meeting in New York, Foster said he should rejoice to see Texas annexed; and Phillips exulted in the prospect that this would provoke the North to trample on the Constitution. Annexation had been opposed by

three candidates for the presidency: Birney, who had already been selected by the "Liberty men"; Van Buren, who was rejected soon after on this account by the Democrats; and Clay, who had already been accepted by the Whigs. All three were formally censured, under various pretexts, in company with John Quincy Adams, at this and other gatherings of the Garrisonians. Their convention soon after in Boston voted ten to one for disunion, and closed on June 1st with the presentation to Garrison of a red flag bearing on one side the motto, "No Union with Slave-holders," and on the other an eagle wrapped in the American flag and trampling on a prostrate slave. Two months later, and three before the election, this banner was carried through gaily decorated streets in Hingham, amid ringing of church bells, to a meeting attended by several thousand disunionists. The Garrisonians thought so much about getting out of the Union, that they had nothing to say in favour of keeping out Texas.

Among the few abolitionists who saw the duty of the hour were Whittier and Lowell. The full force of their poetry was not much felt before 1850; but among the stirring publications early in 1842 was a Rallying-Cry for New England against the Annexation of Texas, which Lowell sent forth anonymously. It was reprinted in Harper's Weekly for April 23, 1892, but not in the earlier editions of the poems. Among the most striking lines are these:

*"Rise up New England, buckle on your mail of proof sublime,
Your stern old hate of tyranny, your deep contempt of crime.*

*One flourish of a pen,
And fetters shall be riveted on millions more of men.*

*One drop of ink to sign a name, and Slavery shall find
For all her surplus flesh and blood a market to her mind.*

*Awake New England! While you sleep, the foe advance their lines,
Already on your stronghold's wall their bloody banner shines.*

*Awake and hurl them back again in terror and despair!
The time has come for earnest deeds: we 've not a man to spare."*

If the Whigs had nominated Webster that May, on a platform opposing both annexation and disunion, they would have gained more votes at the North than they would have lost at the South. They might possibly have carried that election; and their strength in the Border States would have enabled them, sooner or later, to check the extension of slavery without bringing on civil war. Their platform was silent about Texas, as well as about the Union; their chief candidate, Clay, had already made compromises in the interest of the South in 1820 and 1833; he did so again

in 1850; and he admitted, soon after the convention, that he "should be glad to see" Texas annexed, if it could be done without war. This failure of the Whigs to oppose the extension of slavery, together with their having made the tariff highly protective in 1842, cost them so many votes in New York and Michigan that they lost the election.

Negligence and dissension at the North had enabled the South to set aside Van Buren in favour of Polk at the Democratic convention. The party was pledged to annex Texas; and Northern members were appeased by a crafty promise that all which was worth having in British America, west of the Rocky Mountains, should be acquired also. The declaration in the platform of 1840, that the government ought not "to foster one branch of industry to the detriment of others," was repeated in 1844, as often afterwards, but it was so cunningly explained away in Pennsylvania that this State voted for the President who signed the low-tariff bill of 1846.

The election of 1844 strengthened the influence of the South. Texas was soon annexed by the same Congress which had refused to do so previously, and was admitted like Florida, as a slave State, in spite of remonstrances made by the legislatures of Massachusetts and Vermont, as well as by two-thirds of the Unitarian ministers.

In March, 1846, Polk's army invaded Mexico; her soldiers resisted; the Democrats in Congress voted that she had begun the war, which lasted for the next eighteen months; and the Whigs assented reluctantly. Most of the volunteers were Southerners, and there was much opposition at the North to warfare for the extension of slavery. The indignation was increased by the publication of Whittier's pathetic poem, *The Angels of Buena Vista*, as well as of that series of powerful satires, Lowell's *Biglow Papers*. The greatest achievement of literary genius thus far in America was the creation of *Birdofre-dom Sawin*; and no book except Mrs. Stowe's famous novel did so much for emancipation.

A foremost place among abolitionists was taken by Parker in 1845, when he began to preach in Boston. His first sermon against the war with Mexico was delivered the same month as the publication of the first of the *Biglow Papers*, June, 1846.

Early in 1847 he spoke with such severity, at an indignation meeting in Faneuil Hall, that his life was threatened by drunken volunteers. Other preachers that year in Massachusetts followed his example so generally as

to win praise from the Garrisonians, as well as from the most patriotic abolitionists; and great effect was produced by his *Letter to the People*, which showed, early in 1848, that slavery was ruining the prosperity, as well as the morals, of the South. More about his work may be found in Chapter V. There we shall see how active the Transcendentalists were in carrying on the revolt begun by Channing. The most important victory for liberty recorded in this chapter was that of 1844 over the protectionists. The defeat of the Garrisonians was due largely to their mistakes; and there was urgent need of a new anti-slavery movement on broader ground.

CHAPTER IV. EMANCIPATION

THE revolutionary movements of 1848 did much to encourage love of liberty in America, where the anti-slavery agitation was now becoming prominent in politics. The indignation against the Mexican war increased as it was found that nothing would be done to keep the promise of 1844, that Great Britain should be excluded from the Pacific. The purpose of the South, to enlarge the area of slavery but not that of freedom, was so plain that the northern Democrats proposed the Wilmot Proviso, by which slavery would have been forbidden in all territory acquired from Mexico; and they actually carried it through the House of Representatives, with the help of the Whigs, in 1846. Similar action was taken by the legislatures of New York, Ohio, Pennsylvania, Delaware, and seven other States. The Senate was so unwilling to have slavery prohibited anywhere as to oppose, merely on this account, a bill for giving a territorial government to Oregon.

I. Many of the New York delegates to the national Democratic convention in 1848 came pledged to "uncompromising hostility to the extension of slavery," and were so badly treated that they withdrew. Cass was nominated as a friend to the South; the Mexican war was declared "just and necessary"; and abolitionism was denounced, as it had been in 1840 and 1844. Van Buren was nominated soon after by the anti-slavery Democrats. A similar movement had already been made by Sumner, Wilson, and other men who were known as "conscience Whigs," and who had some support from Clay and Webster. Both these candidates for the presidency were set aside in favour of a slave-holder, who had been very successful in conquering Mexico, but never cast a vote. In fact, General Taylor had taken so little interest in politics, that he was supported in the North as a friend, and in the South as an enemy, to the Wilmot Proviso. No opinion on this or any other question could be extorted from the majority; Wilson declared in the convention that he should do all he could to defeat its nominee; the conscience Whigs made an alliance with the Van Buren Democrats; and the new movement was joined by the "Liberty men," whose vote of sixty thousand had decided the election of 1844. Thus was formed the Free Soil party, whose fundamental idea, like that afterwards held by the

Republicans, was preservation of the Union by checking the extension of slavery.

Douglass and other Garrisonists were present at the Free Soil convention, where he was invited to speak. The new party pledged itself to "Free Soil, Free Speech, Free Labour, and Free Men." The national Government was to relieve itself of "all responsibility for slavery," and begin by prohibiting its extension. There should be "no more slave States," "no more slave territory," and "no more compromises with slavery." The convention also demanded that Oregon should be organised as a territory with free labour only; and this was granted at once by President Polk and both Houses of Congress. Most of the members of the convention were Transcendental enough to think that wisdom must be spontaneous; and their scorn of political machinery left it to be used for making Van Buren the candidate. Lowell, who was then at his height of productiveness, complained that,

"He aint half anti-slav'ry 'nough";

but Whittier exclaimed, that September:

*"Now joy and thanks forever more!
The dreary night has well-nigh passed:
The slumbers of the North are o'er:
The giant stands erect at last!"*

The anti-slavery vote was nearly five times as large as in 1844. Cass would have been elected if the Free Soilers had supported him in New York. Their hostility gave that State, as well as Vermont and Massachusetts, to Taylor, who thus became President. He also carried Georgia and seven other Southern States; but the West was solidly Democratic. It was not an anti-slavery victory, but a pro-slavery defeat.

II. The first question before the new President and Congress was about California. The discovery of gold, before the country was ceded by Mexico, had brought in crowds of settlers, but scarcely any slaves. Unwillingness to have another free State prevented Polk and his Senate from allowing California to have any better government than a military one; and this was deprived of all authority by the desertion of the soldiers to the diggings. The settlers knew the value of a free government, and made one independently. The constitution which they completed in October, 1848, was so anti-slavery that it was not sanctioned for nearly two years by Congress.

Meantime there was no legal authority in California to levy taxes, or organise fire departments, or arrest criminals. Robberies and conflagrations were numerous; the mushroom cities were not graded, paved, or lighted; the uncertainty of titles to land caused fights in which lives were lost; and criminals became so desperate that several were lynched by a Vigilance Committee.

The duty of admitting California as a free State was urged upon the new Congress in December, 1849, by Taylor, who promised to make an unexpectedly good President. This plan had become so popular at the North that it was recommended by the Democratic State conventions of Massachusetts and Wisconsin, as well as by the legislature of every Northern State, except Iowa. The House of Representatives could easily have been carried; for the Whigs and Free Soilers constituted a majority, and would have had some help from Northern Democrats. The Senate would probably not have consented until after another appeal to the people; but this might have been made with success at the elections of 1850.

Taylor had carried Kentucky, Tennessee, Louisiana, Florida, Georgia, North Carolina, Maryland, and Delaware. The last two States had permitted some Free Soil votes to be cast; this was also the case in Virginia; and anti-slavery meetings had been held publicly in St. Louis. The pro-slavery defeat in 1848 encouraged Southerners who knew the advantage of free labour to agitate for emancipation. The convention held for this purpose in Kentucky, in 1849, was attended by delegates from twenty-four counties; and its declaration that slavery was "injurious to the prosperity of the Commonwealth," was endorsed by Southern newspapers. Clay himself proposed a plan of gradual emancipation; and such a measure was called for, according to the *Richmond Southerner* (quoted in Hoist's *Constitutional History*, vol. iii., p. 433), by "two-thirds of the people of Virginia." Admissions that "Kentucky must be free," that "Delaware and Maryland are now in a transition, preparatory to becoming free States," and that "Emancipation is inevitable in all the farming States, where free labour can be advantageously used," were published in 1853, at New Orleans, in De Bow's *Industrial Resources of the Southern and Western States* (vols. i., p. 407; ii., p. 310; Hi., p. 60). A book which was written soon after by a North Carolinian named Helper, and denounced violently in Congress, shows how much those Southerners who did not hold slaves would have gained by emancipation; and what was so plainly for the interest of the majority of the

voters would have been established by them, sooner or later, if it had not been for the breaking out of civil war.

How much danger there was, even in 1849, to slave-holders is shown by their threats to secede. They wished to increase the hostility between North and South in order to check the spread southwards of Northern views. It was in this spirit that Senators and Representatives from the cotton States demanded a more efficient law for returning fugitives. Most of the thirty thousand then at the North had come from Maryland, Virginia, Kentucky, and Missouri; and these States were invited to act with their southern neighbours against abolitionism.

There were very few secessionists at this time, except in South Carolina, Mississippi, and Texas. President Taylor was so popular at the South, and so avowedly ready to take command himself against rebels, that no army could have been raised to resist him. Webster declared, in February, 1850, that there was no danger of secession; and the same opinion was held by Benton of Missouri, Seward, and other Senators. There was not enough alarm at the North to affect the stock-market. All that the Whigs needed to do for the Union was to sustain it with all the strength which they could use for that purpose at the South. If they had also insisted that California should be admitted unconditionally, they would soon have had support enough from Northern Democrats in Congress. The demand for a national party of freedom was urgent. The Free Soilers were too sectional; but the Whigs had so much influence at the South that they could have checked the extension of slavery without bloodshed; and this would have ensured the progress of emancipation.

III. All this might have been done if Clay's hatred of the abolitionists, who had refused to make him President, had not made him try to cripple them by another compromise. He proposed that California should be admitted at once and without slavery; that it should be left to the settlers in Utah and New Mexico to decide whether these territories should ultimately become free or slave States; that Texas should receive a large sum of money, as well as a great tract of land which she had threatened to take from New Mexico by force; and, worst of all, that a new fugitive-slave bill should be passed. The law then on the statute books left the question whether the defendant should be enslaved to be decided by a magistrate elected by the people or appointed by the governor; and the court was so apt

to be restricted by local legislation or public opinion, that recovery of fugitives was practically impossible in New England. The new law retained the worst provision of the old one; namely, that no jury could be asked to decide whether the defendant had ever been a slave. The principal change was that the judge was to come into such close relations with the national administration as to be independent of the people of the State. In short, fugitive slaves were to be punished, and disloyal Texans rewarded, in order that California might get her rights.

This plan was approved by Webster, who hoped that the grateful South would make him President, and then help him restore those protective duties which had been removed in 1846. Other Northerners called the compromise one-sided; and so did men from those cotton States which were to gain scarcely anything. President Taylor would yield nothing to threats of rebellion. It was not until after his death that Clay's proposals could be carried through Congress; and it was necessary to present them one by one. The bill by which California was admitted, in September, 1850, was sandwiched in between those about Texas and the fugitives. The latter were put under a law by which their friends were liable to be fined or imprisoned; but the new Fugitive Slave Act had only three votes from the northern Whigs in the House of Representatives; and there were only four Senators who actually consented to all Clay's propositions.

The compromise seemed at first to have silenced both secessionists and abolitionists. The latter were assailed by worse mobs in Boston and New York than had been the case in these cities for many years. The rioters were sustained by public opinion; enthusiastic Union meetings were held in the large cities; and Webster's course was praised by leading ministers of all denominations, even the Unitarian. Abolitionism had apparently been reduced to such a position that it could lead to nothing but civil war. Parker complained, in May, 1850, that the clergy were deserting the cause. Phillips spoke at this time as if there were no anti-slavery ministers left. I once heard friendly hearers interrupt him by shouting out names like Parker's and Beecher's. He smiled, and began counting up name after name on the fingers of his left hand; but he soon tossed it up, and said with a laugh, "I have not got one hand full yet."

Webster's friends boasted that Satan was trodden underfoot; but the compromise was taken as an admission by the Whigs that their party had

cared too little about slavery. Many of its adherents went over, sooner or later, to the Democratic party, which had at least the merit of consistency. About half of the Free Soilers deserted what seemed to be a lost cause; but few if any went back to help the Whigs. The latter did not elect even three-fourths as many members of Congress in November, 1850, as they did in 1848; and they fared still worse in 1852. Democratic aid enabled the Free Soilers in 1851 to send Sumner to represent them in the Senate, in company with Hale and Chase. Seward had already been sent there by the anti-slavery Whigs, and had met Webster's plea for the constitutionality of the new Fugitive Slave Law by declaring that "There is a higher law than the Constitution." Sumner maintained in Washington, as he had done in Boston, that the Constitution as well as the moral law forbade helping kidnappers. He was never a disunionist; but he insisted that "Unjust laws are not binding"; and he was supported by the mighty influence of Emerson.

The effects of Transcendentalism will be so fully considered in the next chapter but one, that I need speak here merely of what it did to encourage resistance to the new law which made philanthropy a crime. The penalties on charity to fugitives were so severe as to call out much indignation from the rural clergy at the North. In November, 1850, the Methodist ministers of New York City agreed to demand the repeal of the law; and Parker wrote to Fillmore, who had been made President by Taylor's death, that among eighty Protestant pastors in Boston there were not five who would refuse hospitality to a slave. The first hunters of men who came there met such a resistance that they did not try to capture the fugitives. A negro who was arrested was taken by coloured friends from the court-house; and a second rescue was prevented only by filling the building with armed hirelings, surrounding it with heavy chains under which the judges were obliged to stoop, and finally calling out the militia to guard the victim through the streets of Boston. A slaveholder who was supposed to be trying to drag his own son back to bondage, was shot dead by coloured men in Pennsylvania. Other fugitives were rescued in Milwaukee and Syracuse. The new law lost much of its power in twelve months of such conflicts; and it was reduced almost to a dead letter by Personal Liberty bills, which were enacted in nearly every Northern State. The compromise was not making the North and South friends, but enemies.

The hostility was increased by the publication of the most influential book of the century. *Uncle Tom's Cabin* had attracted much attention as a

serial; and three thousand copies were sold on the day it appeared in book form, March 20, 1852. There was a sale that year of two hundred thousand copies, which were equally welcome in parlour, nursery, and kitchen. Dramatic versions had a great run; and one actress played "Little Eva" at more than three hundred consecutive performances. Some of the most effective scenes were intended to excite sympathy with fugitive slaves.

The total number of votes for all parties did not increase one-third as fast between 1848 and 1852 as between 1852 and 1856, when many of "Uncle Tom's" admirers went to the polls for the first time. The Whigs were so much ashamed of their party, that they permitted every State, except Massachusetts, Vermont, Kentucky, and Tennessee to be carried by the Democrats. The latter had the advantage, not only of unity and consistency as regards slavery, but of having made their low tariff so much of a success that there was another reduction in 1857. The two parties had been made nearly equal in Congress by the election of 1848; but the proportion was changed four years later, to two to one, and the beaten party soon went to pieces.

The Free Soil candidates and platform were singularly good in 1852; yet the vote was but little more than one-half as large as in 1848. There was no election between 1835 and 1865 when anti-slavery votes seemed so little likely to do any immediate good. The compromise looked like an irreparable error; and many reformers thought they could do nothing better than vote with the Democrats for free trade.

IV. The victors in 1852 might have had many years of supremacy, if they had kept true to the Jeffersonian principle of State rights. They were consistent in holding that the position of coloured people in each State ought to be determined by the local majority. The rights of Northerners had been invaded by the new law, which forbade hospitality to fugitives and demanded participation in kidnapping; but this wrong might have been endured if the South had not denied the right of Kansas to become a free State. This was guaranteed by the compromise of 1820, which had been kept by the North. Early in 1854, Senator Douglas of Illinois proposed that the compact should be repudiated, and that it should be left for future settlers to decide whether there should be freedom or slavery in a region ten times as large as Massachusetts, with a fertile soil and a climate warm enough for negro labour.

There was such prompt and intense indignation throughout the North at this breach of faith, that Douglas said he could find his way from Chicago to Boston by the light of the bonfires in which he was burned in effigy. The difference of opinion between city and country clergy ceased at once. An Episcopalian bishop headed the remonstrance which was signed by nearly every minister in New York City. Two other bishops signed the New England protest in company with the presidents of Yale, Brown, Williams, and Amherst, with the leaders of every Protestant sect, and with so many other clergymen that the sum total rose above three thousand, which was four-fifths of the whole number. Five hundred ministers in the North-west signed a remonstrance which Douglas was obliged to present; and so many such memorials came in from all the free States, as to show that there was very little pro-slavery feeling left among the clergy, except in the black belt north of the Ohio.

One-half of the Northern Democrats in the House of Representatives refused to follow Douglas. Leading men from all parties united to form the new one, which took the name of Republican on July 6, 1854, and gained control of the next House of Representatives. It was all the more popular because it began "on the sole basis of the non-extension of slavery." Victory over the South could be gained only by uniting the North; but Garrison still kept on saying, "If we would see the slave-power overthrown, the Union must be dissolved." On July 4, 1854, two days before the Republican party adopted its name, he burned the Constitution of the United States amid several thousand spectators. Then it was that Thoreau publicly denied his allegiance to Massachusetts, which was already doing its best to save Kansas.

Emigrants from New England were sent into that territory so rapidly that the Douglas plan seemed likely to hasten the time when it would be a free State. The South had insisted on the rights of the settlers; but they were outvoted, in November, 1854, and afterwards, by bands of armed Missourians, who marched off when they had carried the election. The Free State men were then supplied with rifles; and an anti-slavery constitution was adopted by the majority of actual residents. The minority were supported by the President, as well as by the "border-ruffians"; two rival governments were set up; and civil war began early in 1855. Lawrence, the principal town in Kansas, was sacked by command of the United States Marshal, the most important buildings burned, and much private property

stolen. Five settlers, whose threats of violence had offended John Brown, were slain in cold blood by him and his men, in retaliation for the Lawrence outrage, in May, 1856. Anarchy continued; but the new State was not admitted until 1861.

Prominent among the Northerners who insisted on the right of Kansas to govern herself, was Sumner. His speech in the Senate in May, 1856, was so powerful that half a million copies were printed as campaign literature, and Whittier said, "It has saved the country." The orator had attacked some of his colleagues with needless severity; and on the day after the sack of Lawrence, he was assaulted by a Representative from South Carolina in the Senate Chamber with such ferocity that he could not return to his seat before 1860. This cruel outrage against freedom of speech was universally applauded throughout the South.

There was indignation enough at the North in 1856 to have given the election to the Republicans, if the field had been clear; but Protestant bigotry enabled the South to choose the President who failed to oppose rebellion. The Catholics had objected as early as 1840 to the Protestantism which was taught, in part at their expense, to their children in the public schools. Some ways in which this was done then have since been abandoned; but the principal controversy has been about using a book which is universally acknowledged to be a bulwark of Protestantism. There would not be so much zeal at present for having it read daily in the schools, if it has no religious influence; and our Catholic citizens have a right to prefer that their children should be taught religion in ways not forbidden by their Church. Pupils have not had much moral or even religious benefit from school-books against which their conscience rebelled, however unreasonably.

The Catholic position in 1841, according to Bishop Hughes, afterwards Archbishop, was this: "We do not ask money from the school fund;—all our desire is that it should be administered in such a way as to promote the education of all" and "leave the various denominations each in the full possession of its religious rights over the minds of its own children. If the children are to be educated promiscuously, as at present, let religion in every shape and form be excluded."

The Catholics soon changed their ground, and demanded that their parochial schools should be supported by public money. This called out the

opposition of a secret society, which insisted on keeping the Bible in the schools and excluding Catholics from office. The Know Nothings had the aid of so many Whigs in 1854 as to elect a large number of candidates, most of whom were friendly to the Republicans. The leaders wished to remain neutral between North and South; but it is hard to say whether the pledge of loyalty to the Union did not facilitate the capture of the organisation by the insatiable South early in 1856. Beecher had already declared that the Know Nothing lodges were "catacombs of freedom" in which indignation against slavery was stifled.

The presidential election showed that the outburst of bigotry had done more harm to friends than enemies of liberty. The Democrats lost Maryland, but gained Pennsylvania and four other Northern States. This enabled them to retain the Presidency and the Senate, as well as to recover the House of Representatives, where they had become weaker than the Republicans. The party of freedom polled eight times as many votes as in 1852, and made its first appearance in the electoral colleges. It carried eleven States. The Whigs had accepted the Know Nothing nominee; and both these neutral parties soon dissolved.

Anarchy in Kansas had been suppressed by United States dragoons; but they did not prevent the adoption of a pro-slavery constitution by bogus elections. Buchanan promptly advised Congress to admit Kansas as a slave State, and declared she was already as much one as Georgia or South Carolina. This opinion he based on the Dred Scott decision by the Supreme Court, that Congress had no power to prohibit slavery in any territory. Douglas insisted on the right of the people of Kansas to "vote slavery up or down." They were enabled by the joint efforts of Republicans and Northern Democrats to have a fair chance to say whether they wished to become a slave State or remain a territory; and the latter was preferred by four-fifths of the voters.

V. The South called Douglas a traitor; but leading Republicans helped the Illinois Democrats, in 1858, to elect the Legislature which gave him another term in the Senate. He might have become the next President if his opponent in the senatorial contest, Abraham Lincoln, had not led the Republican party into the road towards emancipation. On June 16, 1858, he said, in the State convention: "A house divided against itself cannot stand. I believe this government cannot endure permanently half slave and half free.

I do not expect the Union to be dissolved—I do not expect the house to fall—but I do expect it will cease to be divided. It will become all one thing or all the other." Seward took the same position, four months later, in his speech about the "irrepressible conflict." Lincoln held that summer and autumn a series of joint debates with his opponent, before audiences one of which was estimated at twenty thousand. The speeches were circulated by the Republicans as campaign documents; and Lincoln's were remarkable, not only for his giving no needless provocation to the South, but for his proving that slavery ought not to be introduced into any new territory or State by local elections. He represented Douglas as really holding that if one man chooses to enslave another no third man has any business to interfere; and he repudiated the decision in the Dred Scott case, that coloured people "had no rights which the white man was bound to respect." He had more votes that fall than Douglas; but the latter's friends were enabled by the district system to control the Legislature. Douglas was sent back to the Senate. Lincoln gained the national reputation which made him President.

The congressional elections were more favourable to the Republicans than in 1856, for Northern indignation was growing under the stimulus, not only of the new wrong to Kansas, but of attempts to annex Cuba and revive the slave trade. Plans for emancipation were still discussed in the South; and the agitation had reached even Texas. Helper's *Impending Crisis* had gained circulation enough in his own State, North Carolina, to alarm the slaveholders. They knew that they constituted only three-tenths of the Southern voters, and that the proportion was less than one-sixth in Maryland. Helper proved that emancipation would be greatly to the advantage of many men who held slaves, as well as of all who did not. When this was found out by the majority in any Southern State, slavery would begin to fall by its own weight. It had been kept up by popular ignorance; but the prop was crumbling away. This way of emancipation might have been long; but it would have led to friendly relations between whites and blacks, as well as between North and South.

What was most needed in 1859 was that all friends of freedom should work together, and that no needless pretext should be given for secession. Garrison still insisted on disunion, and predicted that the South would not "be able to hold a single slave one hour after the deed is done," but he also maintained, as most abolitionists did, that nothing would be more foolish

than trying to excite a slave insurrection. Precisely this greatest of blunders was committed at Harper's Ferry. If the attempt had been made six months later, or had had even a few weeks of success, it might have enabled the slaveholders to elect at least one more President. The bad effect, in dividing the North, was much diminished by John Brown's heroism at his trial and execution; but great provocation was given to the South, and especially to Virginia, which soon turned out to be the most dangerous of the rebel States. Business men were driven North by the dozen from cities which were preparing for war.

The quarrel between Northern and Southern Democrats kept growing fiercer; and the party broke up at the convention for 1860 into two sectional factions with antagonistic platforms and candidates. Douglas still led the opposition to those Southerners who maintained that the nation ought to protect slavery in the territories. A third ticket was adopted by neutrals who had been Whigs or Know Nothings, and who now professed no principle but a vague patriotism. The Republicans remained pledged to exclude slavery from the territories; but they condemned John Brown, and said nothing against the Fugitive Slave Law or in favour of emancipation in the District of Columbia. Their leaders had favoured free trade in 1857; but the platform was now made protectionist, in order to prevent Pennsylvania from being carried again by the Democrats. Illinois and Indiana were secured by the nomination of Lincoln. He was supported enthusiastically by the young men throughout the North: public meetings were large and frequent; torchlight processions were a prominent feature of the campaign. The wealth and intellect of the nation, as well as its conscience, were now arrayed against slavery; but the clergy are said to have been less active than in 1856. Lincoln had the majority in every Northern State, except New Jersey, California, and Oregon. He also had 17,028 votes in Missouri, and 8042 in other slave States which had sent delegates to the Republican convention. Not one of the Southern electors was for Lincoln; but he would have become President if all his opponents had combined against him.

VI. The South had nothing to fear from Congress before 1863, but she had lost control of the North. Kansas would certainly be admitted sooner or later; and there would never be another slave State, for the Republican plan for the territories was confirmed by their geographical position. The free States might soon become so numerous and populous as to prohibit the return of fugitives, abolish slavery in the District of Columbia, repeal the

clause of the Constitution which allowed representation for slaves, and forbid their transportation from State to State. It was also probable, in the opinion of Salmon P. Chase, afterwards Secretary of the Treasury, and of many leading Southerners, that under Federal patronage there might soon be a majority for emancipation in Maryland, Kentucky, and other States (see *Life of Theodore Parker*, by Weiss, vol. ii., pp. 229, 519). The vote of thanks given to Parker in 1855 by the hearers of his anti-slavery lecture in Delaware, showed that abolitionism would eventually become predominant in the Senate, as it was already in the House of Representatives.

This prospect was especially alarming to the comparatively few men who owned so many slaves that they could not afford emancipation on any terms. Their wealth and leisure gave them complete control of politics, business, public opinion, and social life in the cotton States; where both press and pulpit were in bondage. Their influence was much less in the farming States than in 1850; but they had since come into such perfect union among themselves, as to constitute the most powerful aristocracy then extant. Their number may be judged from the fact that there were in 1850 about six thousand people in the cotton States who owned fifty slaves or more each.

It was in the interest of these barons of slavery that South Carolina seceded soon after the election, and that her example was followed by Georgia and all the Gulf States before Lincoln was inaugurated. The Garrisonists wished to have them depart in peace; but there was a strong and general preference for another compromise. Lincoln and other Republicans insisted that the territories should be kept sacred to freedom, and that "The Union must be preserved." The question was settled by those aggressions on national property which culminated in the bombardment of Fort Sumter. Lincoln's call to arms was answered by a great uprising of the united North. Loyalty to the nation burst forth in so fierce a flame that abolitionists who had been trying for many years to extinguish it now welcomed it as the destined destroyer of slavery.

War had been declared for the sole purpose of suppressing rebellion; and nothing more could at first have been attempted without violating the Constitution. Fugitives were sent back promptly by Federal generals, and anti-slavery songs forbidden in the camps. This policy seemed necessary to keep the North united, and prevent secession of doubtful States. Some of

those already in revolt might thus, it was hoped, be induced to return voluntarily, or be conquered easily. These expectations were soon disappointed. A few of the slave States were kept in subjection by military force; but the people of the others united in a desperate resistance, with the aid of the slaves, who supplied the armies with food and laboured without complaint in camps and forts. But little was accomplished by the immense armies raised at the North; for the discipline was at first lax, and the generals were inefficient. Many defeats of Union armies by inferior forces showed how difficult it is for a nation that has enjoyed many years of peace to turn conqueror.

VII. The innate incompatibility of war and liberty was disclosed by the unfortunate fact that even Lincoln was obliged to consent unwillingly to war measures of a very questionable sort; for instance, the conscription and that Legal Tender Act which was really a forced loan, and which has done much to encourage subsequent violations of the right of property by both Republicans and Democrats in Congress. More harm than good was done to the Union cause by arbitrary arrests for talking and writing against the war. Phillips declared, in December, 1861, that "The right of free meetings and a free press is suspended in every square mile of the republic." "At this moment one thousand men are bastilled." Hale and other Republican Senators remonstrated; and so patriotic an author as Holmes said that teapots might be dangerous, if the lids were shut. All political prisoners but spies were released by the President early in 1862; and there were no more arbitrary arrests except under plea of military necessity.

Failures of Union generals encouraged opposition to the war from men who still preferred compromise; and their disaffection was increased by the passage, in March, 1863, of a bill establishing a conscription and putting all the people under martial law. The commander of the military district that included Ohio issued orders which forbade "declaring sympathy for the enemy," and threatened with death "all persons within our lines who harbour, protect, feed, clothe, or in any way aid the enemies." These orders were denounced as unconstitutional at a public meeting before more than ten thousand citizens. Many wore badges cut from the large copper coins then in use and bearing the sacred image and superscription of Liberty. This practice brought the nickname "Copperheads" upon people who longed to have the South invited back on her own terms. Such a policy was recommended at the meeting by Vallandigham, who had recently

represented Ohio in Congress. He called upon the people to vote against the "wicked war," and said he would never obey orders aimed against public discussion.

For this speech he was arrested at night, by soldiers who broke into his house, tried by court-martial, and sentenced on May 7, 1863, to imprisonment during the remainder of the war. A writ of *habeas corpus* was refused by the United States Court, which admitted itself "powerless to enforce obedience." At the clang of war, laws are silent.

Indignation meetings in great cities voted that "The Union cannot be restored without freedom of speech." Loyal newspapers regretted that Vallandigham was under "a penalty which will make him a martyr." A petition for his release was sent to Lincoln, who had not ordered the arrest and admitted that it was not justified by the speech. He concluded that the culprit's behaviour towards the army had been so dangerous that he had better be sent South, beyond the lines. This was done at once; but the agitator was allowed to return through Canada in the last summer of the war. Even Lincoln found it difficult to respect individual liberty under the pressure of military necessity. A strong government was needed; and that fact has opened the way for Congress to interfere with private business, for instance in changing the tariff, during the latter part of the century much more frequently and extensively than had been done before. Another significant fact is that the old controversy about internal improvements has died away since our government was centralised by war; and much money is wasted under that pretext by Congress.

VIII. The impossibility of putting down the rebellion without interfering with slavery gradually became plain, even to men who had formerly hated abolitionism. The only question was how to turn what was the strength of the Confederacy into its weakness. In March, 1862, Congress forbade the army to return fugitives; and many thousand fled into the Union camps, where they did good service, not only as teamsters and labourers, but even as soldiers. The number under arms amounted finally to more than a hundred thousand; and they did some of the best fighting that took place during the war. The colour prejudice at the North yielded slowly; but the leading Republicans saw not only the need of more soldiers, but the justice of setting free the wives and children of men who were risking death for the nation. An Emancipation League was formed during the first gloomy winter

of the war; and Frederick Douglass said on the Fourth of July amid great applause: "You must abolish slavery, or abandon the Union"; "for slavery is the life of the rebellion."

Lincoln was already thinking of setting free the slaves in all the States which should continue in rebellion after the close of the year; and his draft of a proclamation, announcing this purpose, was read to the Cabinet on July 22, 1862. The army in Virginia had been so unfortunate that summer as to cause a postponement; but the victory of Antietam was followed by the publication, on September 22d, of the formal notice that emancipation might be proclaimed on the 1st of January. How welcome the new policy was to loyal citizens may be judged from the approbation expressed by the clergy of all denominations, even the New School Presbyterian, Episcopalian, and Roman Catholic. When New Year's Day dawned there was much doubt whether the promise would be fulfilled. Abolitionists and coloured people met in Boston and other cities, and waited hour after hour, hoping patiently. It was evening before the proclamation began to pass over the wires. It promised freedom to all slaves in Arkansas, Texas, Mississippi, Alabama, Florida, Georgia, South Carolina, and North Carolina, besides most of those in Louisiana and Virginia. Tennessee and some other States were not mentioned, because held to have been brought back into the Union. There was to be freedom thenceforth wherever the Stars and Stripes waved. No wonder that the news caused great audiences to shout or weep with joy, and many to spend the night in praise and prayer. The North was now inspired by motives amply sufficient to justify even a war of conquest; and her men and money were given freely, until superiority in resources enabled General Grant to close the war in April, 1865. The revolted States came back, one by one, and left slavery behind. Even where it had not been formally abolished, it was practically extinct. Douglass was right in saying "It was not the destruction, but the salvation of the Union, that saved the slave."

An amendment to the Constitution, which swept away the last vestiges of slavery, and made it for ever impossible in the United States, was adopted on December 18, 1865. It had been proposed two years before; but the assent of several States then actually in revolt would have been necessary to secure the majority of three-fourths necessary for adoption of an amendment. It was by no means certain that even the nominally loyal States would all vote unanimously for emancipation. In order to increase the

majority for the Thirteenth Amendment, the admission of Nevada and Colorado as States was voted by Congress, despite some opposition by the Democrats, in March, 1864. Nevada had a population of less than 43,000 in 1870. There were not 46,000 people there in 1890, and there had been a decline since 1880. It is not likely that her inhabitants will ever be numerous enough to justify her having as much power in the Senate as New York or Pennsylvania. Senators who represent millions of constituents have actually been prevented from passing necessary laws by Senators who did not represent even twenty-five thousand people each. Nevada is still the worst instance of such injustice; but it is by no means the only one; and these wrongs can never be righted, for the Constitution provides that. "No State, without its consent, shall be deprived of its equal suffrage in the Senate." The Thirteenth Amendment did not, I think, come into force a day earlier than it would have done if Nevada had never been admitted, for the *bona-fide* States came forward with unexpected willingness. Colorado was not fully admitted before 1876. Lincoln's favouring the bills for admitting these States was a serious error, though the motive was patriotic. His beauty and grandeur of character make the brightest feature of those dark, sad years. No name stands higher among martyrs for freedom.

IX. There is no grander event in all history than the emancipation of four million slaves. This was all the more picturesque because done by a conquering army; but it was all the more hateful to the former owners. They refused to educate or enfranchise the freedmen, and tried to reduce them to serfdom by heavy taxes and cruel punishments for petty crimes. The States which had seceded were kept under military dictators after the war was over; and their people were forced to accept the Fourteenth Amendment, which gave protection to coloured people as citizens of the United States.

In 1867 there were twenty-one Northern States; but only Maine, New Hampshire, and Vermont gave the ballot freely to illiterate negroes without property. Massachusetts had an educational test for all voters; there were other restrictions elsewhere; and no coloured men could vote in Pennsylvania, New Jersey, or the North-west. In fact, very few had ever voted anywhere when Congress gave the suffrage to all the freed men for their own protection, with no discrimination against illiteracy.

The result of this measure in the District of Columbia was that unscrupulous politicians gained strong support from needy and ignorant

voters of all colours. Public money was spent recklessly; taxation became oppressive; and the public debt grew to alarming size. On June 17, 1874, when Grant was President and each branch of Congress was more than two-thirds Republican, the House of Representatives voted, ten to one, in favour of taking away the suffrage, not only from the blacks who had received it seven years before, but even from the whites who had exercised it since the beginning of the century. All local government was entrusted to three commissioners appointed by the President and confirmed by the Senate. There was no opposition; for the arrangement seemed only temporary. It proved permanent. Even taxation without representation has been thought better than negro suffrage; and the citizens of the national capital remain in 1899 without any voice in their own municipal government.

The problem has been still more difficult in those eleven States which had to accept negro suffrage, in or after 1867, as a condition of restoration to the Union. The extension of franchise made in all the States by the Fifteenth Amendment, in 1870, seemed such a blessing to the Republicans that Frederick Douglass was much censured for holding that it might possibly have been attained without special supernatural assistance. It soon became plain, however, that Congress ought to have given the spelling-book earlier than the ballot. The suffrage proved no protection to the freedman; for his white neighbours found that he could be more easily intimidated than educated. Congress tried to prevent murder of coloured voters by having the polls guarded by Federal troops and the elections supervised by United States marshals. The *Habeas Corpus* Act was suspended by President Grant in districts where the blacks outnumbered the whites. It was hard to see what liberty had gained.

The negro's worst enemies were his own candidates. They had enormous majorities in South Carolina; and there, as Blaine admits, they "brought shame upon the Republican party," "and thus wrought for the cause of free government and equal suffrage in the South incalculable harm." Between 1868 and 1872 they added ten millions by wanton extravagance to the State debt. Large sums were stolen; taxes rose to six per cent.; and land was assessed far above its value, with the avowed purpose of taking it away from the whites. Such management was agreed at a public meeting of coloured voters under Federal protection, in Charleston, in 1874, to have "ruined our people and disgraced our State." Negro suffrage was declared

by the New York Evening Post to have resulted in "organising the ignorance and poverty of the State against its property and intelligence."

This took place all over the South, and also in Philadelphia, New York, and other northern cities. Here the illiterate vote was largely European; and the corruption of politics was facilitated by the absorption of property-holders in business. There was great need that intelligent citizens of all races, parties, and sections should work together to reform political methods sufficiently to secure honest government. Some progress has already been made, but by no means so much as might have been gained if the plundered taxpayers at the South had made common cause with those at the North in establishing constitutional bulwarks against all swindlers whose strength was in the illiterate and venal vote.

Unfortunately, prejudice against negroes encouraged intimidation; and fraud was used freely by both parties. When elections were doubted, Republican candidates were seated by Federal officials and United States soldiers. These latter were not resisted; but the Southern Democrats made bloody attacks on the negro militia. One such fight at New Orleans, on September 14, 1874, cost nearly thirty lives. What was called a Republican administration collapsed that day throughout Louisiana; but it was soon set up again by the army which had brought it into power.

At last the negroes found out that, whoever might conquer in this civil war, they would certainly lose. They grew tired of having hostile parties fighting over them, and dropped out of politics. The Republicans held full possession of the presidency, both branches of Congress, the Federal courts, the army, the offices in the nation's service, and most of the State governments; but they could not prevent the South from becoming solidly Democratic. The new governments proved more economical, and the lives of the coloured people more secure. The last important result of negro suffrage in South Carolina and Louisiana was an alarming dispute as to who was elected President in 1876. The ballot has not been so great a blessing to the freedmen as it might have been if it had been preceded by national schools, and given voluntarily by State after State.

These considerations justify deep regret that emancipation was not gained peaceably and gradually. Facts have been given to show that it might have been if there had been more philanthropy among the clergy, more principle among the Whigs, and more wisdom among the abolitionists.

CHAPTER V. EMERSON AND OTHER TRANSCENDENTALISTS

I. The best work for liberty has been done by men who loved her too wisely to vituperate anyone for differing from them, or to forestall the final verdict of public opinion by appealing to an ordeal by battle. Such were the men who took the lead in establishing freedom of thought in America. Very little individual independence of opinion was found there by Tocqueville in 1831; and the flood of new ideas which had already burst forth in England was not as yet feeding the growth of originality in American literature. This sterility was largely due to preoccupation with business and politics; but even the best educated men in the United States were repressed by the dead weight of the popular theology; and Channing complained that the orthodox churches were "arrayed against intellect." The silence of the pulpit about slavery is only one instance of the general indifference of the clergy to new ideas. We shall see that at least one other reform was opposed much more zealously. The circulation of new books and magazines from Europe was retarded by warnings against infidelity; and colleges were carefully guarded against the invasion of new truth.

Intercourse with Europe was fortunately close enough for the brightness of her literature and art to attract many longing eyes from New England. Goethe, Schiller, Fichte, Jean Paul, Mme. de Stâel, and Rousseau won readers in the original, as well as in translations; and the influence of Shelley, Wordsworth, Coleridge, and Carlyle increased rapidly. Plato and Kant found many worshippers, and a few students. The plain incapacity of orthodoxy to solve the pressing moral and intellectual problems of the day permitted young people who knew nothing about science to welcome the idea that the highest truth is revealed by intuitions which transcend experience and should supersede logic. This system is peculiarly that of Schelling, who was then expounding it in Germany; but the credit for it in America was given to his disciples, and especially to Coleridge. A few admirers of these authors formed the Transcendental Club in Boston, in September, 1836; and the new philosophy made converts rapidly. Severity of climate and lack of social amusements favoured introspection. Thinkers

welcomed release from the tyranny of books. Lovers of art were glad of the prospect of a broader culture than was possible in the shadow of Puritanism. Reformers seized the opportunity of appealing from pro-slavery texts and constitutions to a higher law. Friends of religion hoped that the gloom of the popular theology would be dispelled by a new revelation coming direct from God into their souls.

II. A mighty declaration of religious independence was made on July 15, 1838, when Emerson said to the Unitarian ministers: "The need was never greater of new revelation than now." "It cannot be received at second hand." There has been "noxious exaggeration about the person of Jesus." "Cast aside all conformity, and acquaint men at first hand with Deity." "The old is for slaves." Much controversy was called out by the publication of this address. It was preceded by another in which educated men were told that they must believe themselves "inspired by the Divine Soul which inspires all men." "There can be no scholar without the heroic mind." "Each age must write its own books." Emerson had also sent out in 1836 a pamphlet entitled *Nature*; and one of its first readers has called it "an 'open sesame' to all thought, and the first we had ever had." Still more important were the essays on "Heroism" and "Self-Reliance," which were part of a volume published in 1841. Then Emerson's readers were awakened from the torpor of submission to popular clergymen and politicians by the stern words: "Whoso would be a man must be a nonconformist." "Insist on yourself: never imitate." "The soul looketh steadily forwards." "It is no follower: it never appeals from itself." The Russian Government was so well aware of the value of these essays as to imprison a student for borrowing them. A Lord Mayor in England acknowledged that their influence had raised him out of poverty and obscurity. Bradlaugh's first impulse to do battle for freedom in religion came from Emerson's exhortation to self-reliance.

The author's influence was all the greater, because he was already an impressive lecturer. There was much more demand, both in England and in America, between 1830 and 1860, for literary culture and useful knowledge than was supplied by the magazines and public libraries. The Americans were peculiarly destitute of public amusements. Dancing, playing cards, and going to the theatre were still under the ban; and there was not yet culture enough for concerts to be popular. There was at the same time much more interest, especially in New England, in the anti-slavery movement than has been called out for later reforms; for these have been much less

picturesque. The power with which Phillips and Parker pleaded for the slave was enough to make lectures popular; but I have known courses attended, even in 1855, by young people who went merely because there was nowhere else to go, and who came away in blissful ignorance of the subjects. Deeper than all other needs lay that of a live religion. Emerson was among the first to satisfy this demand. His earliest lecture, in 1833, took a scientific subject, as was then customary; but he soon found that he had the best possible opportunity for declaring that "From within, or from behind, a light shines through upon things and makes us aware that we are nothing, but the light is all." Invitations were frequent as early as 1844, though the audience was usually small; and his genius became generally recognised after his return, in 1848, from a visit to England. There scholarship was high enough to give him, as early as 1844, thousands of readers for that little book on *Nature*, of which only a few hundred copies had been sold in America. Invitations to lecture came from all parts of Great Britain, and in such numbers that many had to be declined. The aristocracy of rank as well as of intellect helped to crowd the halls in Manchester, Edinburgh, and London. Once at least, he had more than two thousand hearers. The newspapers reported his lectures at such length that much of his time was spent in writing new ones. He had not intended to be anyone's guest; but invitations were so numerous and cordial, that he could seldom escape into solitude. He wrote to his wife, "My reception here is really a premium on authorship."

Success in England increased his opportunities, as well as his courage, to speak in America. Invitations grew more and more frequent, and compensation more liberal. His thrilling voice was often heard, thenceforth, in the towns and cities of New England. In 1850, he went to lecture at St. Louis, and met audience after audience on the way. During the next twenty years he spent at least two months of discomfort, every winter, lecturing in city after city throughout the free States. Everywhere he gave his best thought, and as much as possible of it, in every lecture. Logical order seemed less important; and he spent much more time in condensing than in arranging the sentences selected from his note-books. Strikingly original ideas, which had flashed upon him at various times, were presented one after another as if each were complete in itself. The intermixture of quotations and anecdotes did not save the general character from becoming often chaotic; but the chaos was always full of power and light. Star after

star rose rapidly upon his astonished and delighted hearers. They sometimes could not understand him; but they always felt lifted up. Parker described him in 1839 as pouring forth "a stream of golden atoms of thought"; and Lowell called him some twenty years later "the most steadily attractive lecturer in America." These young men and others of like aspirations walked long distances to visit him or hear him speak in public. The influence of his lectures increased that of the books into which they finally crystallised. In 1860, he had made his way of thinking so common that his *Conduct of Life* had a sale of 2500 copies in two days. His readers were nowhere numerous, outside of Boston; but they were, and are, to be found everywhere.

Lovers of liberty on both sides of the Atlantic were brought into closer fellowship by books singularly free from anti-British prejudice; but he was so thoroughly American that he declared, even in London, that the true aristocracy must be founded on merit, for "Birth has been tried and failed." This lecture was often repeated, and was finally given in 1881 as his last word in public. Introspective and retiring habits kept him for some time from engaging actively in the reforms which were in full blast about 1840; but Lowell said he was "the sleeping partner who has supplied a great part of their capital." His words about slavery were few and cold before the Fugitive Slave Bill was passed in 1850. Indignation at this command to kidnap made him publicly advise his neighbours to break the wicked law. He spoke in support of a Free Soil candidate in 1852, and for the Republican party in 1854; but John Brown called out much more of his praise than any other abolitionist. The attempt of the Garrisonians to persuade the North to suffer the seceders to depart in peace won his active aid; but the speech which he tried to deliver on their platform, early in 1861, was made inaudible by a mob of enthusiasts for maintaining the Union by war. He rejoiced in emancipation; but it was not achieved until he had lost much of his mental vigour. This, in fact, was at its height between 1840 and 1850. His last volumes were in great part made up of his earliest writings. There was no change in his opinions; and his address in 1838 was fully approved by him when he re-read it shortly before his death.

His most useful contribution to the cause of reform was the characteristic theory which underlies all he wrote. In the essays published in 1841, he states it thus: "Every man knows that to his involuntary perceptions a perfect faith is due."... "We know truth when we see it." From first to last he

held that "Books are for the scholar's idle hours."... "A sound mind will derive its principles from insight."... "Truth is always present; it only needs to lift the iron lids of the mind's eye to read its oracles." This was a doctrine much more revolutionary than Luther's. Emerson proclaimed independence of the Bible as well as of the Church. His innate reverence was expressed in such sayings as "The relations of the soul to the divine spirit are so pure, that it is profane to interpose helps." Love of spontaneity made him declare that "Creeds are a disease of the intellect." It was in his indignation at the Fugitive-Slave Law that he said, "We should not forgive the clergy for taking on every issue the immoral side." His treatment of religious institutions was not perfectly consistent; but the aim of all his writings was to encourage heroic thought. He wrote the Gospel of Nonconformity. Personal knowledge of his influence justified Bishop Huntington in saying that he has "done more to unsettle the faith of the educated young men of our age and country in the Christianity of the Bible than any other twenty men combined."

How desirous Emerson was to have the inner light obeyed promptly and fully may be judged from his describing his own habit of writing as follows: "I would not degrade myself by casting about for a thought, nor by waiting for it."... "If it come not spontaneously, it comes not rightly at all." Much of the peculiar charm of his books is due to his having composed them thus. Again and again he says: "It is really of little importance what blunders in statement we make, so only that we make no wilful departure from the truth."... "Why should I give up my thought, because I cannot answer an objection to it?"... "With consistency, a great soul has simply nothing to do."... "Speak what you think now in hard words, and to-morrow speak what to-morrow thinks in hard words again, though it contradict everything you said to-day."... "I hope in these days we have heard the last of conformity and consistency. Let the words be"... "ridiculous henceforward." This is not meant for mere theory. We are told often that "Virtue is the spontaneity of the will."... "Our spontaneous action is always the best."... "The only right is what is after my own constitution, the only wrong what is against it."

III. The passages quoted in the last paragraph are of great importance; for they did more than any others to abolish slavery. Its defenders appealed to the Bible as confidently as to the national Constitution; but the Garrisonians declared with Emerson, that "The highest virtue is always against the law."

They were confident that they knew the truth as soon as they saw it, and had no need to answer objections. The same faith in spontaneous impressions inspired the suffragists, of whom the next chapter will give some account. Agitations against established institutions sprang up thickly under the first step of Transcendentalism. Church, State, family ties, and business relations seemed all likely to be broken up. Lowell says that "Everybody had a mission (with a capital M) to attend to everybody else's business."... "Conventions were held for every hitherto inconceivable purpose." "Communities were established where everything was to be in common but common sense." The popular authors about 1840 were mostly Transcendentalists; and nearly every Transcendentalist was a Socialist. Some forty communities were started almost simultaneously; but not one-half lasted through the second year. One of the first failures was led by a man who had been working actively against slavery, but who had come to think that the only way to attack it was to try to do away with all private property whatever. Brook Farm lasted half a dozen years, with a success due partly to the high culture of the inmates, and partly to some recognition of the right of private ownership. The general experience, however, was that a Transcendentalist was much more willing to make plans for other people, than to conform in his own daily life to regulations proposed by anyone else. The very multiplicity of the reforms, started in the light of the new philosophy, did much to prevent most of them from attaining success. We have seen how slavery was abolished; but no one should regret the failure of most of the Transcendentalist schemes.

The subsidence of Socialism was especially fortunate on account of the frankness with which matrimony was repudiated by the system most in vogue, that of Fourier. He had followed the spontaneous and instinctive impulses of man with the utmost consistency. Other Socialists have been more cautious; but the problem of reconciling family ties with communal life has not been solved. Some of the English Transcendentalists published a pamphlet recommending systematic encouragement of licentiousness; and an American philosopher, who turned Roman Catholic in 1844, declared that free love was "Transcendentalism in full bloom." The term "higher law" was used to support the pretence of some obligation more binding than marriage. A free-love convention was held in New York about 1857; and very lax ideas had been already announced by active apostles of spontaneity known as Spiritualists.

No writer has done more to encourage purity of thought than Emerson. His life was stainless; but perhaps the best proof of this is his saying, "Our moral nature is vitiated by any interference of our will"; and again, "If the single man plant himself indomitably on his instincts, and there abide, the huge world will come round to him." No man ever wrote thus who was not either notoriously corrupt or singularly innocent. Policemen and jailers exist largely for the purpose of preventing people from planting themselves on their instincts—for instance, those which lead to theft, drunkenness, and murder. Socialism would perhaps be practicable if industry were as natural as laziness. Almost all moralists have thought it necessary to insist on constant interference with the instincts. So earnest and able a Transcendentalist as Miss Cobbe gives these definitions in her elaborate treatise on *Intuitive Morals*: "Happiness is the gratification of all the desires of our nature." "Virtue is the renunciation of such of them as are forbidden by the moral law." Theodore Parker insisted on the duty of subordinating "the low qualities to the higher," but Emerson held, as already mentioned, that "Virtue is the spontaneity of the will."

Such language was largely due to his perception that all activity, however innocent, of thought and feeling had been too much repressed by the Puritanical churches, in whose shadow he was brought up. The same mistake was made in the Dark Ages; and the reaction from that asceticism was notorious during the Renaissance. The early Unitarians overrated human nature in their hostility to the Trinitarians, who underrated it; and Emerson went beyond his original associates in the Unitarian ministry because he was more Transcendental. The elevation of his own character encouraged him to hope that our higher qualities are so strong as to need only freedom to be enabled to keep all impure desire in subjection. It was a marked change of tone when in 1876 he allowed these words to be printed in one of his books: "Self-control is the rule. You have in you there a noisy, sensual savage which you are to keep down, and turn all his strength to beauty." Similar passages, especially a censure of the pruriency of Fourierism, occur in essays which were probably written some years earlier, but were not published until after his death. Most of the Transcendentalists have fortunately acknowledged the duty of self-control much more plainly and readily. It is a fair question whether they were more consistent. How does anyone know which of his instincts and impulses to control and which to cultivate? What better light has he than is given either by his own

experience or by that of his parents and other teachers? I acknowledge the power of conscience; but its dictates differ so much in different individuals as to be plainly due to early education. Thus even a Transcendentalist has to submit himself to experience; as he would not do if it were really transcended by his philosophy.

Emerson himself was singularly fortunate in his "involuntary perceptions." Those of most men are dark with superstition and prejudice. It is what we have heard earliest and oftenest that recurs most spontaneously. If all mankind had continued satisfied to "trust the instinct to the end though it can render no reason," we should still believe in the divine right of kings, and the supremacy of evil spirits. There would have been very little persecution if men could have known truth when they saw it. Parker believed devoutly in the intuitions, but he said that Emerson exaggerated their accuracy to such an extent that he "discourages hard and continuous thought." "Some of his followers will be more faithful than he to the false principles which he lays down, and will think themselves wise because they do not study, and inspired because they say what outrages common sense." The danger of following instinctive impressions in regard to the currency has been shown in recent American politics. Anyone who is familiar with scientific methods will see where Emerson's failed. It is true that he prized highly many of the results of science, especially the theory of evolution as it was taught by Lamarck and other forerunners of Darwin. His inability to see the value of investigation and verification is disclosed plainly; and he preferred to have people try to "build science on ideas." He acknowledged that too much time was given to Latin and Greek in college; but his wishes in regard to study of the sciences were so old-fashioned as to call out a remonstrance from Agassiz.

IV. How little scientific culture there was before 1860 may be judged from the rapid growth of Spiritualism. Transcendentalism had shown tremendous strength in helping people escape from the old churches; but it was of little use in building new ones. Churches exist for the express purpose of enabling believers in a common faith to unite in public worship. No society could be so holy as solitude to a sincere Transcendentalist; and the beliefs of his neighbours seemed much less sacred than his own peculiar intuitions. Exceptional eloquence might make him pastor of a large society; but it began to decline when he ceased to speak. Transcendentalism was excellent material for weathercocks, but it had to be toughened by

adulteration with baser metal before it supplied any solid foundation for a new temple.

Most of the people who had lost faith in the old churches were longing after some better way of receiving knowledge about the heavenly world. Millions of Americans and Europeans rejoiced to hear that spirits had begun to communicate by mysterious raps at Rochester, N. Y., on the last day of March, 1848. Messages from the departed were soon received in many places; but the one thing needful was that the room be filled with believers; and a crowded hall was peculiarly likely to be favoured with strange sounds and sights. Here was the social element necessary for founding a new religion. It appealed as confidently as its rivals to miracles and prophecies, while it had the peculiar attraction of being preached mainly by young women. Instinctive impulses were regarded as revelations from the spirit-land, but not considered infallible except by the very superstitious. The highest authority of an intelligent Spiritualist has usually been his own individual intuition. Some of the earliest lectures on that platform had little faith in anything but science, and put their main strength into announcing those revelations of geology which have dethroned Genesis. One of the first teachers of evolution in America was a Spiritualist named Denton, who held a public debate in Ohio, in 1858, when he defended the theory of man's gradual development from lower animals against a preacher named Garfield, who became President of the United States. Some eminent scientists have become converts to Spiritualism; but its general literature has shown little influence from scientific methods of thought.

The advocates of the new religion have owed much of their success to impassioned eloquence. Opposition to Christianity has been expressed boldly and frequently. Girls of seventeen have declared, before large audiences, that all the creeds and ceremonies of the churches are mere idolatry. Among the earliest communications which were published as dictated by angels in the new dispensation were denials of the miracles of Jesus, and denunciations of the clergy as "the deadliest foes of progress." An eminent Unitarian divine declared in 1856, that "the doctrines professedly revealed by a majority of the spirits, whose words we have seen quoted, are at open war with the New Testament." Some moderate Spiritualists have kept in friendly relations with liberal churches; but many others have been in active co-operation with the most aggressive of unbelievers in religion. The speakers at the Spiritualist anniversary in 1897

said to one another, "You and I are Christs, just as Jesus was," and claimed plainly that "our religion" was distinct from every "Christian denomination." Spiritualists have all, I think, been in favour of woman suffrage; and the majority were abolitionists. Some of Garrison's companions, however, deserted in the heat of the battle, saying that there was nothing more to do, for the spirits would free the slaves. Anti-slavery lecturers in the North-west found themselves crowded out of halls and school-houses by trance-speakers and mediums. One of the most eminent of converts made by the latter, Judge Edmonds, was prominent among the defenders of slavery in the free States.

Freedom from any definite creed or rigid code of morality joined with the constant supply of ever-varying miracles in attracting converts. Those in the United States were soon estimated in millions. Spiritualism swept over Great Britain so rapidly that it was declared by the *Westminster Review* to give quite as much promise as Christianity had done, at the same age, of becoming a universal religion. No impartial observer expects that now. Believers are still to be found in all parts of Europe and South America, and they are especially numerous in the United States. Proselytes do not seem to be coming in anywhere very thickly; and the number of intelligent men and women who have renounced Spiritualism, after a brief trial, is known to be large. The new religion has followed the old ones into the policy of standing on the defensive.

One instance of this is the opposition to investigation. A Mediums' National Defence Association was in open operation before 1890. A leading Spiritualist paper suggested in 1876, that the would-be inquirer should be "tied securely hand and foot, and placed in a strong iron cage, with a rope or small chain put tightly about his neck, and fastened to an iron ring in the wall." Early in 1897, some young men who claimed to have exposed an impostor, before a large audience in the Spiritualist Temple in Boston, were prosecuted by his admirers on the charge of having disturbed public worship.

V. During the last quarter of the century, free love has been much less prominent than before in Spiritualistic teachings; but the only Americans who were able to proclaim liberty without encouraging self-indulgence, prior to 1870, were the logical and scholarly Transcendentalists. Theodore Parker, for instance, is to be reckoned among the followers of Hegel rather

than of Schelling; for he tried by hard study and deep thought to build up a consistent system of religion and morality by making deductions from a few central principles which he revered as great primary intuitions, held always and everywhere sacred. His faith in his ideas of God, duty, and immortality was very firm; and he did his best to live and think accordingly. He began to preach in 1836, the year of the publication of Emerson's first book, but soon found his work hindered by an idolatry of the Bible, then prevalent even among Unitarians. Familiarity with German scholarship enabled him to teach his people to think rationally.

His brethren in the Unitarian ministry were alarmed; and a sermon which he preached in Boston against the mediatorship of Jesus made it impossible for him to occupy an influential pulpit. The lectures which he delivered that year in a hall in the city, and published in 1842, won the support of many seekers for a new religion. They voted that he should "have a chance to be heard in Boston"; and on February 16, 1845, he preached in a large hall to what soon became a permanent and famous congregation.

Thither, as Parker said, he "came to build up piety and morality; to pull down only what cumbered the ground." His main purpose to the last was to teach "the naturalness of religion," "the adequacy of man for his functions" without priestly aid, and, most important of all, that superiority of the real Deity to the pictures drawn in the orthodox creeds, which Parker called "the infinite perfection of God." He was singularly successful in awakening the spirit of religion in men who were living without it, but the plainness with which he stated his faith, in sermons which had a large circulation, called out many attacks. Prayers were publicly offered up in Boston, asking that the Lord would "put a hook in this man's jaws, so that he may not be able to preach, or else remove him out of the way and let his influence die with him." No controversy hindered his labouring systematically for the moral improvement of his hearers, who sometimes amounted to three thousand. His sermons are full of definite appeals for self-control and self-culture; and his personal interest in every individual who could be helped was so active that he soon had seven thousand names on his pastoral visiting list. Appeals for advice came from strangers at a distance, and were never neglected.

Not one of the great national sins, however popular, escaped his severe rebuke; and he became prominent as early as 1845 among the preachers against slavery. He was active in many ways as an abolitionist, but was not

a disunionist. He seldom quitted his pulpit without speaking for the slave; and every phase of the anti-slavery movement is illustrated in his published works. Pro-slavery politicians were as bitter as orthodox clergymen against him; and he describes himself as "continually fired upon for many years from the barroom and pulpit." His resistance to the Fugitive Slave Law caused him to be arrested and prosecuted, in company with Wendell Phillips, by the officials of the national Government.

Desire to awaken the people to the danger that lay in the growth of the national sin made him begin to lecture in 1844. Invitations flowed in freely; and he said, after he had broken down under the joint burden of overwork and of exposure in travelling: "Since 1848, I have lectured eighty or a hundred times each year, in every Northern State east of the Mississippi,—once also in a slave State and on slavery itself." This was his favourite subject, but he never missed an opportunity of encouraging intellectual independence; and he found he could say what he pleased. The total number of hearers exceeded half a million; among them were the most influential men in the North; and he never failed to make himself understood. No one else did so much to develop that love of the people for Union and Liberty which secured emancipation. His works have no such brilliancy as Emerson's; but they burned at the time of need with a much more warm and steady light. No words did more to melt the chains of millions of slaves. No excess of individualism made him shrink back, like Emerson, from joining the abolitionists; or discredit them, as Thoreau did, by publicly renouncing his allegiance to Massachusetts in 1854, when that State stood foremost on the side of freedom.

The account of a solitary life in the woods, which Thoreau published that year, has done much to encourage independence of public opinion; and Americans of that generation needed sadly to be told that they took too little amusement, especially out of doors, and made too great haste to get rich. Their history, however, like that of the Swiss, Scotch, and ancient Athenians, proves that it is the industrious, enterprising, money-making nations that are best fitted for maintaining free institutions. As for individual independence of thought and action, the average man will enjoy much more of it, while he keeps himself in comfortable circumstances by regular but not excessive work, than he could if he were to follow the advice of an author who prided himself on not working more than "about

six weeks in a year," and on enduring privations which apparently shortened his days.

Thoreau's self-denial was heroic; but he sometimes failed to see the right of his neighbours to indulge more expensive tastes than his own. The necessary conditions of health and comfort for different individuals vary much more than he realised. Many a would-be reformer still complains of the "luxury" of people who find physical rest or mental culture in innocent ways, not particularly to his own fancy. Such censures are really intolerant. They are survivals of that meddlesome disposition which has sadly restricted freedom of trade, amusement, and worship.

We have had only one Emerson; but many scholarly Transcendentalists have laboured to construct the new morality needed in the nineteenth century. Parker's work has peculiar interest, because done in a terrible emergency; but others have toiled as profitably though less famously. The search after fundamental intuitions has led to a curious variety of statements which agree only in the assumption of infallibility; but the result has been the general agreement of liberal preachers in teaching a system of ethics at once free from superstition, bigotry, or asceticism, and at the same time vigorous enough to repress impure desire and encourage active philanthropy. Theology has improved in liberality, as well as in claiming less prominence. Thus the clergy have come into much more friendly relations with the philosophers than in the middle of the century. Our popular preachers quote Emerson; but really they follow, though often unconsciously, the methods of Hegel and Kant. This increases their sympathy with Parker, who has the advantage over Emerson of having believed strongly in personal immortality. His works are circulated by the very denomination which cast him out. The most popular preachers in many sects openly accept him and Emerson among their highest authorities. Transcendentalism has become the foundation of liberal Christianity.

This agreement is not, however, necessary and may not be permanent. Hegel's great success was in bringing forward the old dogmas with new claims to infallibility. When some of his disciples showed that his methods were equally well adapted for the destruction of orthodoxy, Schelling gave his last lectures in its defence. The singular fitness of traditions for acceptance as intuitions has been proved, late in the century, by the Rev. Joseph Cook in Boston as well as by many speakers at the Concord School

of Philosophy. The reactionary tendency is already so strong that it may yet become predominant. We must not forget that Shelley called himself an atheist, or that among Hegel's most famous followers were Strauss and Renan. Who can say whether unbelief, orthodoxy, or liberal Christianity is the legitimate outcome of this ubiquitous philosophy?

Transcendentalism has been the inspiration of the century. Its influence has been mighty in behalf of political liberty and social progress. But there was no inconsistency in Hegel's opposing the education of women, and denying the possibility of a great republic, or in Carlyle's defending absolute monarchy and chattel slavery, or in Parker's successor in Boston trying to justify the Russian despotism. Transcendentalism is a swivel-gun, which can be fired easily in any direction. Perhaps it can be used most easily against science. The difference in methods, of course, is irreconcilable, as is seen in Emerson; and the brilliant results attained by Herbert Spencer have been sadly disparaged by leading Transcendentalists in the conventions of the Free Religious Association, as well as in sessions of the Concord School of Philosophy.

VI. The necessary tendency of Transcendentalism may be seen in the agitation against vivisection, which was begun in 1863 by Miss Cobbe. She was aided by Carlyle, Browning, Ruskin, Lecky, Martineau, and other Transcendentalists, one of whom, Rev. W. H. Channing, had been prominent in America about 1850. Most of the active anti-vivisectionists, however, belong to the sex which has been peculiarly ready to adopt unscientific methods of thought. It is largely due to women with a taste for metaphysics or theology that the agitation still goes on in Great Britain and the United States.

Attempts ought certainly to be made to prevent torture of animals by inexperienced students, or by teachers who merely wish to illustrate the working of well-known laws. There ought to be little difficulty in securing the universal adoption of such statutes as were passed by Parliament in 1876. Vivisection was then forbidden, except when carried out for the purpose of important discoveries, by competent investigators duly licensed, and in regular laboratories. It was further required that complete protection against suffering pain be given by anaesthetics, though these last could be dispensed with in exceptional cases covered by a special license.

The animal must at all events be killed as soon as the experiment was over. This law actually put a stop to attempts to find some antidote to the poison of the cobra, which slays thousands of Hindoos annually. Professor Ferrier, who was discovering the real functions of various parts of the brain, was prosecuted in 1881 by the Anti-Vivisection Society for operating without a license upon monkeys; but the charge turned out to be false.

The real question since 1876 has been as to whether vivisection should be tolerated as an aid to scientific and medical discovery. Darwin's opinion on this point is all the more valuable, because he hated all cruelty to animals. In April, 1881, he wrote to *The Times* as follows:

"I know that physiology cannot possibly progress except by means of experiments on living animals; and I feel the deepest conviction that he who retards the progress of physiology commits a crime against mankind.... No one, unless he is grossly ignorant of what science has done for mankind, can entertain any doubt of the incalculable benefits which will hereafter be derived from physiology, not only by man but by the lower animals. Look, for instance, at Pasteur's results in modifying the germs of the most malignant diseases, from which, as it so happens, animals will in the first place receive more relief than man. Let it be remembered how many lives, and what a fearful amount of suffering, have been saved by the knowledge gained of parasitic worms, through the experiments of Virchow and others upon living animals."

Another high authority, Carpenter, says that vivisection has greatly aided physicians in curing heart disease, as well as in preventing blood-poisoning by taking antiseptic precautions. Much has been learned as to the value of hypodermic injections, and also of bromide of potassium, chloral, salicylic acid, cocaine, amyl, digitalis, and strychnia. Some of these drugs are so poisonous that they would never have been administered to human beings if they could not have been tried previously on the lower animals. The experiments in question have recently assisted in curing yellow fever, sunstroke, diabetes, epilepsy, erysipelas, cholera, consumption, and trichinosis. The German professors of medicine testified in a body that vivisection has regenerated the healing art. Similar testimony was given in 1881 by the three thousand members of the International Medical Congress; and the British Medical Association has taken the same position.

The facts are so plain that an English judge, who was a vice-president of Miss Cobbe's society, admitted that "vivisection enlarges knowledge"; but he condemned it as "displeasing to Almighty God." It was said to go "hand in hand with atheism"; and several of the Episcopalian bishops, together with Cardinal Manning, opposed it as irreligious.

Transcendentalists are compelled by their philosophy to decide on the morality of all actions solely by the inner light, and not permitted to pay any attention to consequences. Many of them in England and America agreed to demand the total suppression of vivisection, "even should it chance to prove useful." This ground was taken in 1877 by Miss Cobbe's society; and she declared, five years later, in *The Fortnightly*, that she was determined "to stop the torture of animals, a grave moral offence, with the consequences of which—be they fortunate or the reverse—we are no more concerned than with those of any other evil deed." Later she said: "Into controversies concerning the utility of vivisection, I for one refuse to enter"; and she published a leaflet advising her sisters to follow her example. Ruskin took the same ground. These hasty enthusiasts were equally indifferent to another fact, which ought not to have been overlooked, namely, that suffering was usually prevented by the use of anaesthetics, which are indispensable for the success of many experiments. The bill for prohibiting any vivisection was brought into the House of Lords in 1879; But was opposed by a nobleman who presided over the Society for the Prevention of Cruelty to Animals; and it was lost by 16 votes against 97. The House of Commons refused even to take action on the subject, despite four years of agitation. Thus the right of scientific research was finally secured.

Miss Cobbe was one of the noblest of women; but even she was made blind by her philosophy to the right of people who prefer scientific methods to act up to their convictions. Garrison, too, was notoriously unable to do justice to anyone, even an abolitionist, who did not agree with him. There is nothing in Transcendentalism to prevent intolerance. This philosophy has done immense service to the philanthropy as well as the poetry of the nineteenth century; but human liberty will gain by the discovery that no such system of metaphysics can be anything better than a temporary bridge for passing out of the swamps of superstition, across the deep and furious torrent of scepticism, into a land of healthy happiness and clear, steady light.

CHAPTER VI. PLATFORM VERSUS PULPIT

DURING the nineteenth century the authority of preachers and pastors has diminished plainly; and this is largely due to a fact of which Emerson spoke thus: "We should not forgive the clergy for taking on every issue the immoral side." This was true in England, where the great reforms were achieved for the benefit of the masses, and against the interest of the class to which most clergymen belonged. The American pastor seldom differed from his parishioners, unless he was more philanthropic. He was usually in favour of the agitation against drunkenness; and he had a right to say that the disunionism of Phillips and Garrison, together with their systematically repelling sympathy in the South, went far to offset their claim for his support. It was difficult, during many years, to see what ought to be done in the North. When a practical issue was made by the attack on Kansas, the clergy took the side of freedom almost unanimously in New England, and quite generally in rural districts throughout the free States. The indifference of the ministers to abolitionism, before 1854, was partly due, however, to their almost universal opposition to a kindred reform, which they might easily have helped.

I. It was before Garrison began his agitation that Frances Wright denounced the clergy for hindering the intellectual emancipation of her sex; and her first ally was not *The Liberator*, but *The Investigatory* though both began almost simultaneously. She pleaded powerfully for the rights of slaves, as well as of married women, before large audiences in the middle States as early as 1836, when these reforms were also advocated by Mrs. Ernestine L. Rose, a liberal Jewess. These ladies spoke to men as well as women; and so next summer did Miss Angelina Grimké, whose zeal against slavery had lost her her home in South Carolina. Her first public lecture was in Massachusetts; and the Congregationalist ministers of that State promptly issued a declaration that they had a right to say who should speak to their parishioners, and that the New Testament forbade any woman to become a "public reformer." Their action called out the spirited poem in which Whittier said:

*"What marvel if the people learn
To claim the right of free opinion?
What marvel if at times they spurn
The ancient yoke of your dominion?"*

Garrison now came out in favour of "the rights of women," and thus lost much of the support which he was receiving from the country clergy generally in New England. The final breach was in May, 1840, at the meeting of the National Association of Abolitionists in New York City. There came Garrison with more than five hundred followers from New England. They gained by a close vote a place on the business committee for that noble woman, Abby Kelley. Ministers and church members seceded and started a new anti-slavery society, which carried away most of the members and even the officers of the old one. The quarrel was embittered by the vote of censure, passed at this meeting upon those abolitionists who had dared to nominate a candidate of their own for the presidency without leave from Mr. Garrison; but the chief trouble came from the prejudice which, that same summer, caused most of the members of the World's Anti-Slavery Convention in London, to refuse places to Harriet Martineau and other ladies as delegates. This exclusion was favoured by all the eight clergymen who spoke, and by no other speakers so earnestly. Among the rejected delegates were Mrs. Lucretia Mott and Mrs. Elizabeth Cady Stanton; and they resolved, that night, to hold a convention for the benefit of their sex in America.

The volume of essays which Emerson published in 1844 praised "the new chivalry in behalf of woman's rights"; and the other Transcendentalists in America came, one after another, to the same position. Mrs. Stanton and Mrs. Mott called their convention in that year of revolutions, 1848, on July 19th. The place was the Methodist church at Seneca Falls, in central New York. The reformers found the door locked against them; and a little boy had to climb in at the window. The Declaration of Independence, adopted on July 4, 1776, furnished a model for a protest against the exclusion of girls from high schools and colleges, the closing of almost every remunerative employment against the sex, and the laws forbidding a married woman to own any property, whether earned or inherited by her, even her own clothing. This declaration was adopted unanimously; but a demand for the suffrage had only a small majority. Not a single minister is known to have been present; but there were two at a second convention,

that August, in Rochester, where the Unitarian church was full of men and women.

There were more than twenty-five thousand ministers in the United States; but only three are mentioned among the members of the national convention, held at Worcester, Massachusetts, in October, 1850, by delegates from eleven States. As Phillips was returning from this meeting, Theodore Parker said to him, "Wendell, why do you make a fool of yourself?" The great preacher came out a few years later in behalf of the rights of women; but it was long before a single religious newspaper caught up with *The Investigator*.

How the clergy generally felt was shown in 1851, at Akron, in northern Ohio. There Episcopalian, Presbyterian, Baptist, Methodist, and Universalist ministers appealed to the Bible in justification of the subjugation of women. There was no reply until they began to boast of the intellectual superiority of their own sex. Then an illiterate old woman who had been a slave arose and said: "What 's dat got to do with women's rights, or niggers' rights either? If my cup won't hold but a pint, and yourn holds a quart, would n't ye be mean not to let me have my little half-measure full?" The convention was with her; but the Bible argument was not to be disposed of easily. The general tone of both Testaments is in harmony with the familiar texts attributed to Paul and Peter. These latter passages were written, in all probability, when the position of women was changing for the better throughout the Roman Empire: and the original words, asserting the authority of husbands, are the same as are used in regard to the power of masters over slaves. Such language had all the more weight, because the ministers had been brought up as members of the ruling sex. They may have also been biassed by the fact that their profession depends, more than any other, for success upon the unpaid services in many ways of devoted women. Emancipation was by no means likely to promote work for the Church. There was an audience of two thousand at Syracuse, in 1852, when what was called the "Bloomer Convention," on account of the short dresses worn by some members, took up a resolution, declaring that the Bible recognises the rights of women. Mrs. Rose said that the reform had merits enough of its own, and needed no justification by any book. A letter was read from Mrs. Stanton, saying that "among the clergy we find our most violent enemies, those most opposed to any change in woman's position." The accuracy of this statement was readily admitted, after a reverend

gentleman had denounced the infidelity of the movement, in a speech described as "indecent" and "coarsely offensive" in the New York Herald; and the resolution was lost.

The lady who offered it was ordained soon after for the Congregationalist ministry; but she was obliged to confess, at the Woman's Rights' Convention, in 1853, that "the Church has so far cast me off, that to a great extent I have been obliged to go to just such infidels as those around me for aid to preach my Christian views." It was at this meeting that a doctor of divinity, and pastor of a prominent society, denounced the reform so violently that Mr. Garrison called him a blackguard and a rowdy, with the result of having his nose pulled by the champion of the Church militant. There were many such unseemly manifestations of clerical wrath. The *History of Woman Suffrage*, which was edited by Mrs. Stanton and other leading reformers, said, in 1881: "The deadliest opponents to the recognition of the equal rights of women have ever been among the orthodox clergy." The Unitarians were more friendly; but I do not think that the reform was openly favoured, even as late as 1860, by one clergyman in a thousand out of the whole number in the United States. The proportion was even smaller in Europe.

Even as late as 1878, it was resolved by the Woman Suffrage Convention at Rochester, N. Y., "that as the first duty of every individual is self-development, the lessons of self-sacrifice and obedience taught woman by the Christian Church have been fatal, not only to her own vital interests but through her to those of the race." Influences were already at work, however, which have made the relations of platform and pulpit comparatively friendly in this respect.

The women of the North showed their patriotism, during the great war, by establishing and managing the Sanitary Commission, the Freedman's Bureau, and the Woman's Loyal National League. Important elections were carried in 1862 by the eloquence of Anna E. Dickinson, for the Republican party; and it has often since had similar help. The success of the Women's Christian Temperance Union and other partly philanthropic and partly religious organisations, has proved the ability of women to think and act independently. Many of their demands have been granted, one by one; and public opinion has changed so much in their favour, that they ceased long

ago to encounter any general hostility from the clergy in the Northern States.

Even there, however, women still find it much too difficult for them to enter a peculiarly easy, honourable, and lucrative profession. Their elocutionary powers are shown on the stage as well as the platform. Their capacity for writing sermons is plain to every one familiar with recent literature. Their ability to preach is recognised cordially in the Salvation Army, as well as by Spiritualists, Quakers, Unitarians, and Universalists. Much of the pastoral work is done by women, in actual fact; and more ought to be. The Sunday-school, choir, social gathering, and other important auxiliaries to the pulpit are almost entirely in female hands. Women enjoy practically the monopoly of those kinds of church work for which there is no pay; and their exclusion from the kind which is paid highly, in the largest and wealthiest denominations, looks too much like a preference of clergymen to look after the interest of their own sex. The most orthodox churches are the most exclusive; and the same forces which are driving bigotry out of the pulpits are bringing women in.

This reform is one of many in which a much more advanced position has been taken by New England and the far West than by the South; and the American Transcendentalists led public opinion in the section where most of them lived. In Great Britain the struggle has been carried on in the interest of the middle and lower classes, and under much opposition from the class to which most admirers of philosophy belonged. No wonder that one of the keenest critics of Transcendentalism was prominent among the champions in England of the oppressed sex. John Stuart Mill declared, in his widely circulated book on *The Subjection of Women*, that "nobody ever arrived at a general rule of duty by intuition." He held that the legal subjection of wives to husbands bore more resemblance, as far as the laws were concerned, to slavery, than did any other relationship existing in Great Britain in 1869. He did not argue from any theory of natural rights, but pointed out the advantage to society of women's developing their capacities freely. He also insisted on the duty of government not to restrict the liberty of any woman, except when necessary to prevent her diminishing that of her neighbours. This last proposition will be examined in the next chapter. The fact that Mill's great work for freedom was done through the press, and not on the platform, makes it unnecessary to say more about him in this place.

II. Clergymen, like Transcendentalists, in England were generally conservative, or reactionary; and the friends of reform were much more irreligious than in America. Their appeal against the authority of Church and Bible was not to intuition but to science; and they were aided by Lyell's demonstration, in 1830, that geology had superseded Genesis. Working-men were warned in lectures, tracts, and newspapers against immorality in the Old Testament; and even the New was said to discourage resistance to oppression and efforts to promote health, comfort, and knowledge.

The most popular of these champions against superstition and tyranny was Bradlaugh. He began to lecture in 1850, when only seventeen, and continued for forty years to speak and write diligently. His atheism obliged him to undergo poverty for many years, and much hardship. He charged no fee for lecturing, went willingly to the smallest and poorest places, and was satisfied with whatever was brought in by selling tickets, often for only twopence each. He once travelled six hundred miles in forty-eight hours, to deliver four lectures which did not repay his expenses. Many a hall which he had engaged was closed against him; and he was thus obliged to speak in the open air one rainy Sunday, when he had two thousand hearers. At such times his voice pealed out like a trumpet; his information was always accurate; opposition quickened the flow of ideas; and he had perfect command of the people's English. His great physical strength was often needed to defend him against violence, sometimes instigated by the clergy. He had much to say against the Old Testament; but no struggle for political liberty, whether at home or abroad, failed to receive his support; and he was especially active for that great extension of suffrage which took place in 1867. His knowledge that women would vote against him did not prevent his advocating their right to the ballot; but it was in the name of "the great mass of the English people" that he was an early supporter of the cause of Union and Liberty against the slave-holders who seceded.

In 1866 he became president of the National Society of Secularists, who believe only in "the religion of the present life." Most of the members were agnostics; and one of Bradlaugh's many debates was with Holyoake, the founder of secularism, on the question whether that term ought to be used instead of atheism. The society was so well organised that only a telegram from the managers was needed to call out a public meeting anywhere in England. Among Bradlaugh's hearers in America in 1873 were Emerson, Sumner, Garrison, Phillips, and O. B. Frothingham. He won soon after a

powerful ally in a clergyman's wife, who had been driven from her home by her husband because she would not partake of the communion. Mrs. Besant began to lecture in 1874, and with views like Bradlaugh's; but her chief interest was in woman suffrage. Both held strict views about the obligation of marriage; and their relations were blameless.

Bradlaugh's place in history is mainly as a champion of the right of atheists to sit in Parliament. He was elected by the shoemakers of Northampton in 1880, when oaths of allegiance were exacted in the House of Commons. Quakers, however, could affirm; and he asked the same privilege. As this was refused, he offered to take the oath, and declared that the essential part would be "binding upon my honour and conscience." This, too, was forbidden; but there was much discussion, not only in Parliament but throughout England, as to his right to affirm. His friends held two hundred public meetings in a single week, and sent in petitions with two hundred thousand signatures during twelve months. The liberal newspapers were on his side; but the Methodist and Episcopalian pulpits resounded with denials of the right of atheists to enter Parliament on any terms. Among the expounders of this view in leading periodicals were Cardinal Manning and other prominent ecclesiastics. They had the support of the Archbishop of Canterbury, as well as of many petitions from Sunday-schools. Public opinion showed itself so plainly that Bradlaugh was finally allowed by a close vote to make affirmation and take his seat. He was soon forced to leave it by an adverse decision of the judges, but was promptly re-elected.

Again he offered in vain to take the oath. After several months of litigation, and many appeals to audiences which he made almost unanimous, he gave notice that he should try to take his seat on August 3, 1881, unless prevented by force. It took fourteen men to keep him out; and he was dragged down-stairs with such violence that he fainted away. His clothes were badly torn; and the struggle brought on an alarming attack of erysipelas. A great multitude had followed him to Westminster Hall, and there would have been a dangerous riot, if it had not been for the entreaties of Mrs. Besant, who spoke at Bradlaugh's request. His next move was to take the oath without having it properly administered. He was expelled in consequence, but re-elected at once. Thus the contest went on, until the Speaker decided that every member had a right to take the oath which could not be set aside. Bradlaugh was admitted accordingly, on January 13, 1886; and two years later he brought about the passage of a bill by which

unbelievers were enabled to enter Parliament by making affirmation. The Irish members had tried to keep him out; but this did not prevent his advocating home rule for Ireland, and also for India. From first to last he fought fearlessly and steadily for freedom of speech and of the press. His beauty of character increased his influence. Mrs. Besant is right in saying: "That men and women are now able to speak as openly as they do, that a broader spirit is visible in the churches, that heresy is no longer regarded as morally disgraceful—these things are very largely due to the active and militant propaganda carried on under the leadership of Charles Bradlaugh."

III. Similar ideas to his have been presented ever since 1870 to immense audiences, composed mostly of young men, in Chicago, New York, Boston, and other American cities, by Robert G. Ingersoll. Burning hatred of all tyranny and cruelty often makes him denounce the Bible with a pathos like Rousseau's or a brilliancy like Voltaire's. He was decidedly original when he asked why Jesus, if he knew how Christianity would develop, did not say that his followers ought not to persecute one another. In protesting against subordinating reason to faith, Ingersoll says: "Ought the sailor to throw away his compass and depend entirely on the fog?" Among other characteristic passages are these: "Banish me from Eden when you will, but first let me eat of the tree of knowledge!"... "Religion has not civilised man: man has civilised religion."... "Miracles are told simply to be believed, not to be understood."

Ingersoll is not merely a destroyer but an earnest pleader for what he calls the gospel of cheerfulness and good health, "the gospel of water and soap," the gospels of education, liberty, justice, and humanity. He regards "marriage as the holiest institution among men"; but holds that "the woman is the equal of the man. She has all the rights I have and one more; and that is the right to be protected." He believes fully "in the democracy of the family," and "in allowing the children to think for themselves." He is not so much interested as Bradlaugh was in political reform and social progress, but has often taken the conservative side; and his speaking in public has been more like an occasional recreation than a life-work. Some of his lectures have had an immense circulation as pamphlets; and his Biblical articles in the *North American Review* attracted much notice. He is never at his best, however, without an audience before him; and he sometimes writes too rapidly to be strictly accurate.

IV. A better parallel to Bradlaugh is furnished by Mr. B. F. Underwood, who was only eighteen when he began to lecture in Rhode Island. The great revival of 1857 was in full blast; and he showed its evils with an energy which called down much denunciation from the pulpit. He spoke from the first as an evolutionist, though Darwin had not yet demonstrated the fact. To and fro through the Connecticut valley went the young iconoclast, speaking wherever he could find hearers, asking only for repayment of expenses, and sometimes failing to receive even that. His work was interrupted by the war, in which he took an active and honourable part. When peace was restored, he studied thoroughly the *Origin of Species* and the *Descent of Man*; and he began in 1868 to give course after course of lectures on Darwinism in New England, New York, and Pennsylvania. The new view had been nine years before the public, but had received little or no support from any clergyman in the United States, or any journal except *The Investigator*.

For thirty years Mr. Underwood has been busily propagating evolutionism on the platform, as well as in print. No other American has done so much to make the system popular, or has reproduced Herbert Spencer's statements with such fidelity. He has taken especial pains to prove that "evolution disposes of the theory that the idea of God is innate," as well as of the once mighty argument from design. He has said a great deal about the Bible and Christianity, but in a more constructive spirit than either Bradlaugh or Ingersoll. He has discredited old books by unfolding new truth. Among his favourite subjects have been: "What Free Thought Gives us in Place of the Creeds," "The Positive Side of Modern Liberal Thought," "If you Take away Religion, what will you Give in its Place?" "The Influence of Civilisation on Christianity." He has always shown himself in favour of the interests of working-men, and also of women's rights and other branches of political reform. During the twelve years ending in 1881, he lectured five or six times a week for at least nine months out of twelve, often travelling from Canada to Arkansas and Oregon. Occasionally he spoke every night for a month; but he has seldom lectured in summer, except when on the Pacific coast.

His lectures in Oregon in 1871 on evolution awoke much opposition in the pulpits. Two years afterwards he held a debate in that State against a clergyman who was president of a college, and who denounced evolution as in conflict with "the Word of God." Such views were then prevalent in that city; but in 1888 it was found by Mr. Underwood to have become the seat

of the State University, where the new system was taught regularly. Underwood, like Bradlaugh, has always challenged discussion, and he has held over a hundred public debates. The first was in 1867; and some have occupied twenty evenings. Most of his opponents have been clergymen; and a hundred and fifty of the profession were in the audience at one contest in Illinois in 1870. How much public opinion differs in various States of the Union is shown by the fact that nine years later the doors of a hall which had been engaged for him in Pennsylvania were closed against him, merely because he was "an infidel." His friends broke in without his consent; and he was fined \$70. The first lecture which he tried to give in Canada was prevented by similar dishonesty. Another hall was hired for the next night at great expense; but much interruption was made by clergymen; and when suit was brought for damages through breach of contract, the courts decided that bargains with unbelievers were not binding in Canada.

Both Bradlaugh and Underwood have usually spoken *extempore*, but both have been busy journalists. The American agitator wrote as early as 1856 for both *The Liberator* and *The Investigator*. His connection with the latter paper lasted until the time when a serious difference of opinion arose between those aggressive unbelievers who called themselves "freethinkers," or even "infidels," and those moderate liberals who belong to the Free Religious Association, and formerly supported *The Index*. This journal came in 1881 under the management of Mr. Underwood. His colleague, Rev. W. J. Potter, was nominally his equal in authority; but I know, from personal acquaintance with both gentlemen, that the real editor from first to last was Mr. Underwood. It was mainly due to him that much attention was given, both in the columns of the journal and in the meetings of the association, to efforts for secularising the State. He was in charge of *The Index* until it stopped at the end of 1886. In 1882 he held a discussion in Boston with the president of Williams College, and Professor Gray, the great botanist, on the relations between evolution and "evangelical religion." About four hundred orthodox clergymen were present. In 1897 Mr. Underwood was still in his original occupation. Early that year he lectured in Illinois, Indiana, Michigan, Ohio, New York, Connecticut, Rhode Island, Massachusetts, and Canada. He now believes, like Emerson, in "a higher origin for events than the will I call mine."

V. The difference of opinion among liberals, just referred to, grew out of the agitation for a free Sunday, which had been begun by Frances Wright in

1828. A call for "an anti-Sabbath convention" in Boston was issued by some Transcendentalists in 1848, when men had recently been imprisoned in Massachusetts for getting in hay, and in Pennsylvania for selling anti-slavery books. Churches were closed on Sunday against lecturers for any reform, however popular; and even the most innocent amusement was prohibited by public opinion. Only a moderate protest had any chance of a hearing; but Garrison and the other managers insisted in the call that "the first day of the week is no holier than any other," and refused to allow anyone who did not believe this to speak. Very little was said about what the Sunday laws really were; but most of the time was occupied with arguments that the Sabbath was only for the Jews, and that keeping Sunday is not a religious duty. This last assertion called out an earnest remonstrance from Theodore Parker; but his resolutions were voted down. The Garrisonians insisted, as usual, that the big end of the wedge ought to go in first; and their convention was a failure. Twenty-eight years went by without any protest of importance against Sunday laws in America.

Meantime the Free Religious Association was organised in Boston by Unitarian clergymen who were indignant at the recent introduction into their denomination of a doctrinal condition of fellowship. The first public meeting, on May 30, 1867, called out an immense audience. Emerson was one of the speakers; and he held his place among the vice-presidents as long as he lived. A similar position was offered to Lucretia Mott, but she declined on the platform. Her reason was that practical work was subordinated to theological speculation by the announcement in the constitution that the association was organised "to promote the interests of pure religion, to encourage the scientific study of theology, and to increase fellowship in the Spirit." These phrases were altered afterwards; but the association has always been, in the words of one of its leading members "a voice without a hand." Free religious conventions have regularly increased the confusion of tongues in that yearly Boston Babel called "Anniversary Week"; and there have been many similar gatherings in various cities; but not one in four of these meetings has given much attention to any practical subject, like the use of the Bible in the public schools. A vigorous discussion of the Sunday laws of Massachusetts took place in 1876, under peculiar circumstances to be described in the next section; but there was no other until 1887. *The Index* started in 1870; but it was largely occupied with vague speculations about theology; and its discontinuance in 1886 left the

association without any organ of frequent communication among its members, or even an office for business. Dr. Adler, who became president in 1878, tried to awaken an interest in unsectarian education, and especially in ethical culture; but he resigned on account of lack of support; and the Ethical Culture societies were started outside of the association. Comparatively few of its members took any interest in the petitions presented by its direction to the Massachusetts Legislature in 1884 and 1885, asking for taxation of churches, protection of witnesses from molestation on account of unbelief, and rescue of the Sunday law from giving sanctuary to fraud. The president acknowledged in 1892 that there had been a "general debility for practical work." There seems to have been a lack of energy among the managers; and some of the members were too anxious to preserve their individuality, while others had too much regard for ecclesiastical interests. The Parliament of Religions next year, however, showed what good the association had done by insisting continually on fellowship in religion, and keeping its platform open to Jews, Hindoos, and unbelievers, as well as to Christians of every sect.

VI. Prominent among the founders of the Free Religious Association was Francis E. Abbot, who lost his place soon after as pastor of an independent society, because the Supreme Court of New Hampshire decided, on the request of some Unitarians for an injunction against him, that his opinions were "subversive of the fundamental principles of Christianity. He was the first editor of *The Index*; and there appeared in April, 1872, his statement of what are generally recognised as

"THE DEMANDS OF LIBERALISM

"1. We demand that churches and other ecclesiastical property shall no longer be exempt from just taxation.

"2. We demand that the employment of chaplains in Congress, in State legislatures, in the navy and militia, and in prisons, asylums, and all other institutions supported by public money, shall be discontinued.

"3. We demand that all public appropriations for educational and charitable institutions of a sectarian character shall cease.

"4. We demand that all religious services now sustained by the Government shall be abolished; and especially that the use of the Bible in the public schools, whether ostensibly as a text-book or avowedly as a book of religious worship, shall be prohibited.

"5. We demand that the appointment, by the President of the United States, or by the Governors of the various States, of all religious festivals and fasts shall wholly cease.

"6. We demand that the judicial oath in the courts and in all other departments of the Government shall be abolished, and that simple affirmation under the pains and penalties of perjury shall be established in its stead.

"7. We demand that all laws directly or indirectly enforcing the observance of Sunday as the Sabbath shall be repealed.

"8. We demand that all laws looking to the enforcement of "Christian" morality shall be abrogated, and that all laws shall be conformed to the requirements of natural morality, equal rights, and impartial liberty.

"9. We demand that not only in the Constitutions of the United States, and of the several States, but also in the practical administration of the same, no privilege or advantage shall be conceded to Christianity or any other special religion; that our entire political system shall be founded and administered on a purely secular basis; and that whatever changes shall prove necessary to this end shall be consistently, unflinchingly, and promptly made."

He knew how unlikely it was that the Association would agitate for anything; and in January, 1873, he published a call for organisation of liberal leagues, in order to obtain the freedom already asked. Such leagues were soon formed in most of the States, as well as in Germany and Canada. Among the members were Phillips, Garrison, Lucretia Mott, Higginson, and other famous abolitionists, Karl Heinzen and other radical Germans, several Rabbis and editors of Jewish papers, Ingersoll, Underwood, the editor of *The Investigatory* and other active agitators, several wealthy men of business, Collyer, Savage, and other Unitarian clergymen. Hundreds of newspapers supported the movement; and eight hundred members had been enrolled before a convention of the National Liberal League met in Philadelphia, on the first four days of July, 1876. The managers of the International Exhibition in that city had already decided that it should be closed on Sunday, in violation of the rights, and against the wishes, of the Jews, unbelievers, and many other citizens. The Free Religious Association had been requested in vain, at a recent meeting, to remonstrate against this iniquity. The League passed a strong vote of censure without opposition,

and appointed a committee to present a protest which had been circulated during the convention. Resolutions were also passed asserting the right of all Americans to enjoy on Sunday the public libraries, museums, parks, and similar institutions "for the support of which they are taxed," and demanding "that all religious exercises should be prohibited in the public schools."

It was under the influence of this example that the Free Religious Association held a special convention on November 15, 1876, to protest against the Sunday laws of Massachusetts. A Jewish Rabbi complained that more than two thousand Hebrew children in Boston were prevented from keeping holy the day set apart for rest and worship in Exodus and Deuteronomy, and many of them actually obliged by their teachers to break the Sabbath. This was the effect of the law commanding them to go to school on Saturday, which is that "seventh day" whose observance is required by the fourth commandment. Other speakers declared that no legislation was needed to ensure Sunday's remaining a day of rest. Mention was made of the fact that "any game, sport, play, or public diversion," not specially licensed, on Saturday evening, made all persons present liable to be fined. This was already a dead letter; and the theatres had announced with perfect safety twenty years before, in their playbills, "We defy the law." A few months after this convention, its influence was shown in the opening of the Art Museum free of charge to the people of Boston, Sunday afternoons.

Thus the Association began to co-operate with the National League; and the latter soon had the support of more than sixty local organisations. The movement for establishing "Equal Rights in Religion" was uniting Liberal Christians, Jews, independent theists, Spiritualists, materialists, evolutionists, agnostics, and atheists. All were willing to call themselves "Freethinkers" and work together as they have never done since 1877. Then the League felt itself strong enough to call for "taxation of church property," "secularisation of public schools," "abrogation of Sabbatarian laws," and also for woman suffrage, as well as compulsory education throughout the United States. Steps were taken towards nominating Ingersoll on this platform for President of the Republic.

These plans had to be abandoned; the agitation subsided; and the harmony between lovers of liberty from various standpoints was lost. A

fatal difference of opinion was manifest in 1878, in regard to those Acts of Congress called "the Comstock laws."

These statutes forbade sending obscene literature through the mails; and there had been more than a hundred recent convictions. Some of the prosecutions were said to have been prompted by religious bigotry; and there seems to have been unjustifiable examination of mail matter. The most important question was whether the laws ought to be enforced against newspapers and pamphlets about free love and marital tyranny, which were not meant to be indecent but really were so occasionally. A publisher in Massachusetts was sentenced in June, 1878, to two years of imprisonment for trying to mail such a pamphlet; but he was soon released. More severe punishment has been inflicted recently for similar offences. The majority of people in America and England favoured the exclusion by law of indecent literature from circulation; and this course has been considered necessary on account of the known frailty of human nature. The members of the Free Religious Association were willing to have the Comstock laws changed, but not repealed; and they voted, early in 1878, to take no part in what threatened to be an unfortunate controversy. The League, however, was divided on the question whether these laws ought to be amended or repealed. Abbot, Underwood, and other prominent members declared that literature ought to be excluded from the mails or admitted according as it was intentionally and essentially indecent, or only accidentally so. Thus Ingersoll said: "We want all nastiness suppressed for ever; but we also want the mails open to all decent people." Other members held that the Comstock laws ought to be repealed entirely, and no restriction put on the circulation of any literature except by public opinion. This must be admitted to agree with the principle that each one ought to have all the liberty consistent with the equal liberty of everyone else; but this application of the theory cannot be considered politic in agitating for religious freedom. The *Investigator*, *Truthseeker*, and other aggressive papers, however, called for complete repeal; and a petition with this object received seventy thousand signatures.

The National League had voted, in 1876, that legislation against obscene publications was absolutely necessary, but that the existing laws needed amendment. The question whether this position should be maintained, was announced as the principal business to be settled in the convention which met at Syracuse on October 26, 1878. Mr. Abbot, the president, and other prominent officers declared that they should not be candidates for re-

election if the position assumed two years before was not kept. Scarcely had the convention met, when its management passed into the hands of the friends of repeal. They allowed Judge Hurlbut, formerly on the bench in the Supreme Court of the State, to argue in favour of closing the mails against publications "manifestly designed or mainly tending to corrupt the morals of the young." Much respect was due to the author of a book which declared, in 1850, that married women had a right to vote and hold property, as well as that the State "cannot rightfully compel any man to keep Sunday as a religious institution; nor can it compel him to cease from labour or recreation on that day; since it cannot be shown that the ordinary exercise of the human faculties on that day is in any way an infringement upon the rights of mankind." On Sunday morning, October 27th, it was agreed that the question of repeal or reform should be postponed until the next annual convention; but the decision was made a foregone conclusion that afternoon, when three-fifths of the members voted not to re-elect Mr. Abbot and other champions of reform. The defeated candidates left the convention at once, as did Mr. Underwood and many other members, Judge Hurlbut taking the lead. A new league was organised by the seceders; but it was not a success.

The movement for amending, but not repealing, the Comstock laws was given up; and most of those who had favoured it took sides with those who had refused to agitate. There was little interest in "The Demands of Liberalism" thenceforth among the Liberal Christians, Reformed Jews, Transcendentalists, and evolutionists. These and other moderate liberals refuse to call themselves "Freethinkers"; and they make little attempt at collective and distinctive action. The Free Religious Association did nothing towards secularising the laws of Massachusetts between 1876 and 1884. The agitation which began in the latter year ended on May 27, 1887, when the Sunday laws were discussed at Boston in a large and enthusiastic convention. The Legislature had just passed a bill to legalise Saturday evening amusements, as well as boating, sailing, driving, use of telegraph, and sale of milk, bread, newspapers, and medicines on Sunday; the signature of the Governor had not yet been given; but it was agreed that these changes must be made, and for the reason that the old restrictions could not be enforced. Judge Putnam, of the State District Court, told the convention that "the Sunday law, so called, has not in a long, long time been enforced," except by "a prosecution here and there"; and that if it were to be

enforced strictly, the prosecutions would occupy nearly all the week. He opposed any restraint on "entertainments not of an immoral tendency." Mr. Garrison, son of the famous abolitionist, declared that Sunday ought to be "the holiday of the week." Captain Adams, of Montreal, said: "This is not a mere question how much men may do or enjoy on Sunday: it is a question of human liberty, a question whether ecclesiastical tyranny shall still put its yoke on our necks." The tone was bold, but thoroughly practical from first to last.

An earnest protest against closing the Chicago Exposition on the people's day of leisure was made by the F. R. A., in May, 1893; and an important victory in behalf of religious liberty was won in 1898 in Massachusetts. The Sunday laws of this State have been so improved as to permit what are called "charity concerts," and are not made up entirely of ecclesiastical music, to be given for the pecuniary benefit of charitable and religious societies on Sunday evenings. The Legislature which met early in 1898 was asked by representatives of the Monday Conference of Unitarian Ministers, the Women's Christian Temperance Union, and several other religious organisations to alter the law so as to prevent any but "sacred music" from being heard on the only evening when many people in Boston can go to concerts. The officers of the F. R. A. made a formal request to be heard by a committee of the Legislature through counsel, who proved that the "charity concerts" were really unobjectionable, and that the opposition to them was due entirely to zeal for an ancient text forbidding Hebrews to labour on Saturday in Palestine.

The injustice of stretching this prohibition so far as to try to stop concerts on Sunday evenings in America was pointed out by representatives, not only of the F. R. A., but also of the International Religious Liberty Association, which has been formed to protect Christians who have kept the Sabbath on the original day set apart in Exodus and Deuteronomy, from being punished for not prolonging their rest from honest labour over an additional day, first selected by an emperor whose decrees are not worthy of reverence. This association has offices in Chicago, New York City, Toronto, London, Basel, and other cities; and its principles are ably advocated in a weekly paper entitled the *American Sentinel*. Representatives of this organisation assisted those of the F. R. A. in forcing the "charity concerts" question to be decided on its own merits, independent of ancient texts. The members of the legislative committee made a unanimous report against

suppressing these harmless amusements; and their opinion was sustained by their colleagues. This victory was duly celebrated at the annual convention of the F. R. A., in Boston, on May 27, 1898. Among the speakers that afternoon was the secretary of the I.R.L. A., who said: "If any nation under heaven has the right to confiscate one-seventh of my time, and tell how I shall and how I shall not use that, then the whole principle of inherent rights is denied, and it now is simply a matter of policy whether it shall not confiscate two-sevenths, three-sevenths, or seven-sevenths, and take away all my liberty."

Since 1878, the agitation for religious equality has been carried on mainly by materialistic atheists and agnostics, with some assistance from Spiritualists. These aggressive liberals continue to call themselves to Liberty in the Nineteenth Century.

"Freethinkers," and to support the *Investigatory Truthseeker*, and other papers which have much to say against Sunday laws, religious use of the Bible in public schools, and exemption of churches from taxation. They often reprint "The Demands of Liberalism"; and one of these requests has been so amended in Canada as to ask for the repeal of "all laws directly or indirectly enforcing the observance of Sunday or the Sabbath." The attack on the Comstock laws has subsided; and no reference was made to them in 1897 in the call for a convention of the organisation which took the place of the whole system of national and local leagues in 1885. The name then chosen was "The American Secular Union." The words, "and Freethought Federation" were added in 1895, when two kindred associations were consolidated. It was under strong and constant pressure from these aggressive liberals that the great museums of art and natural history in New York were thrown open on Sundays to longing crowds. One of the petitions was signed by representatives of a hundred and twelve labour organisations. The trustees of the Art Museum were induced to open it in the summer of 1891 by the contribution of \$3000, which had been collected by some young ladies for meeting extra expenses. Thirty-eight thousand people took advantage, in August, 1892, of their first opportunity to visit the Museum of Natural History on their one day of leisure; and these visitors were remarkable for good behaviour. There has been a similar experience in the Boston Art Museum ever since the Sunday opening in 1877.

VII. An exciting contest took place at Chicago in 1893. More than fifty nations were co-operating with the people of every one of the United States in commemorating the discovery of America. Disreputable politicians had persuaded Congress to pass a bill, by which closing the Exposition on Sundays was made a condition of receiving aid from the National Treasury. The people of Chicago had given three times as much, however, as Congress; and there was much dissatisfaction among those citizens who had bought stock in the enterprise. The grounds had been kept open to visitors for some months, Sunday after Sunday, until the buildings were formally thrown open on May 1st; and the receipts had been liberal enough to prove that continuance of this course would be greatly to the advantage of these shareholders, while Sunday closing might result in heavy loss. During the first three Sundays of May the gates were kept shut by order of the Board of National Commissioners, made up of members from every State. Their action and that of Congress had been sanctioned by petitions bearing millions of signatures; but it is a significant fact that the alleged signers in Pennsylvania were three times as many as the entire population of the State. Many people had been counted again and again as members of different organisations; and this fraud was committed in other parts of the country. No attempt to find out what the people really wished was made except in Texas; and there the majority was in favour of opening the gates. Sabbatarians acknowledged publicly that they got little support from the secular press; and much opposition was made to them by some of the great dailies, as well as by the organs of aggressive liberalism.

Sunday after Sunday in May the gates were surrounded by immense crowds who waited there vainly, hour after hour. Many of them could evidently not come on other days; and the number was so large that the local directors, who had been elected by the shareholders, voted on May 16th for opening both gates and doors. This action was warmly approved by the leading citizens of Chicago at a public meeting; but Sabbatarians demanded that visitors be kept out by Federal bayonets. The National Commissioners, however, permitted the entrance of a hundred and fifty thousand people on the last Sunday of May. On Monday, the 29th, a judge of Hebrew race, in a State court, pronounced the contract with Congress null and void, because the money had not been fully paid. He decided, accordingly, that there was no excuse for violating the Illinois law, which guaranteed the right of the citizens to visit on Sunday the park where the

Exposition was held. This ensured the admission of visitors on June 4th, and for twenty of the remaining twenty-one Sundays. The Government buildings and many others, however, were closed; numerous exhibits, for instance, one of Bibles, were shrouded in white; machinery was not allowed to run; there were no cheap conveyances about the ground; and there was little opportunity to get food or drink. No wonder that the Sunday attendance was comparatively small; but there were one hundred and forty thousand paying visitors on October 22d and 29th.

This was a victory of the press rather than the platform. There has been no successor to the original Liberty League, and no rival to the Sunday Society. The latter was organised in 1875 in England, where there has been constant agitation since 1853 for opening the British Museum, Crystal Palace, and other public institutions to their owners on Sunday. Dean Stanley was president of this society; and among its members have been Herbert Spencer, Huxley, Tyndall, Charles Reade, Lecky, Miss Cobbe, Mrs. Craik, and many prominent clergymen. The real issue was stated clearly at one of the public meetings by Tyndall as follows: "We only ask a part of the Sunday for intellectual improvement." The justice of this request has been so far admitted that on May 24, 1896, all the national museums and galleries in London were opened for the first time on Sunday. Among these educational institutions from which the owners are no longer shut out are the National Gallery and the South Kensington, British, and Natural History Museums. Many libraries and museums in other parts of England were opened some years earlier.

VIII. Nowhere has the platform done so much to regenerate the pulpit as in Chicago. Religious history has been largely a record of strife. There was little brotherly feeling between clergymen of different sects in America before 1860; but they were often brought into co-operation by the great war. Even Unitarians were shocked to hear Emerson speak with reverence of Zoroaster in 1838; but he won only applause in 1869 when he spoke of the charm of finding "identities in all the religions of men." This was at a convention of the Free Religious Association, which has pleaded from the first for "fellowship in religion," and often made this real upon its platform. The secretary, Mr. Potter, said in 1872, that some of his hearers would live to see "a peace convention" "of representatives from all the great religions of the globe." Chicago was so peculiarly cosmopolitan that the local managers of the Columbian Exposition were glad to have products of the

various intellectual activities of mankind exhibited freely. Ample provision was made for conventions in behalf of education and reform; but what was to be done for religion?

An orthodox citizen of Chicago, Mr. Charles Carroll Bonney, took counsel in 1891 with Rev. J. L. Jones, a Unitarian, who has been preaching for twenty years the essential oneness of all religions. Rabbis, bishops, and doctors of divinity were consulted also; and thus was formed the committee which invited "the leading representatives of the great historic religions of the world for the first time in history," to meet in friendly conference and show what they "hold and teach in common," as well as "the important distinctive truths" claimed for each religion. Thus the Columbian Exposition offered an opportunity "to promote and deepen the spirit of human brotherhood among religious men of diverse faiths," "to inquire what light each religion has afforded or may afford to the other religions of the world," and, finally, "to bring the nations of the earth into a more friendly fellowship in the hope of securing a permanent international peace." Thus was announced the "Parliament of Religions." All the members were to meet as equals; and there was to be neither controversy nor domination. The Archbishop of Canterbury and some leading Protestants in America protested against abandoning the exclusive claims made for Christianity; and similar objections were offered by the Sultan of Turkey. The Jews, Buddhists, and other believers in the ancient religions welcomed the invitation, as did the dignitaries of the Greek Church, and also the Protestants on the continent of Europe, and many members of every Christian sect in the United States. The Catholic archbishops of America appointed a delegate; and many Methodist and Episcopalian bishops agreed to attend the Parliament.

The sessions were held in the permanent building erected in the centre of Chicago to accommodate the intellectual portion of the Exposition. Four thousand people assembled on Monday, September 11, 1893, to see a Roman Catholic cardinal mount the platform at 10 A.M., in company with the Shinto high-priest, an archbishop of the Greek Church, a Hindoo monk, a Confucian mandarin, and a long array of Buddhists and Taoists from the far East. All these dignitaries wore gorgeous robes of various colours. With them were a Parsee girl, a Theosophist, a Moslem magistrate from India, a Catholic archbishop from New Zealand, a Russian and an African prince, a negro bishop, several Episcopalian prelates, Rabbis, and Jewesses,

missionaries returned from many lands, doctors of divinity of various Protestant sects, and the lady managers of the great Fair. A prominent Presbyterian pastor took the chair, and cordial declarations of the brotherhood of religions were made by Catholic archbishops, the Shinto high-priest, a Buddhist delegate, and the Confucian sent by the Emperor of China. Full hearing was given in subsequent sessions to advocates of the Jain religion, which is perhaps the oldest, as well as of the Parsee, Jewish, Moslem, Taoist, and Vedic faiths, besides a score of the leading Christian denominations. The Parliament lasted seventeen days; and the audiences were so large that most of the essays were repeated in overflow meetings. There were also some forty congresses held in smaller halls for speakers who could not find room on the great platforms. One of these meetings was held by Jewesses, of whom nineteen spoke. Some of them were also heard from the platform of the Parliament; as were many clergy women.

Mr. Underwood presided at the Congress of Evolutionists. There was also a convention of the Free Religionists, in connection with the Parliament which they had made possible; but "The Freethought Federation" could get no chance to meet in the great building, or even to sell pamphlets. Mr. Bonney had proposed a union of all religions against irreligion; and this would have been in harmony with the policy adopted by many States of the American Union. Their Sunday laws and similar statutes show a purpose of encouraging all the popular sects alike, with little regard for the rights of citizens outside of these favoured associations. Most of the speakers in the Parliament, especially the Buddhists, were so zealous for the brotherhood of man, that they protested against any discrimination on account of theology. The great audiences gave most applause to the broadest declarations; and the few utterances of Protestant bigotry were plainly out of place. The general tendency of the Parliament was strongly in favour of recognising the equal rights of all mankind, without regard to belief or unbelief. All legislation inconsistent with this principle will be swept away, sooner or later, by that great wave of public opinion which broke forth during the Parliament of Religions. There the golden age of religion began, and war must give place to peace.

CHAPTER VII. THE EVOLUTIONISTS

WE have seen how the Transcendentalists tried to suppress vivisection, in spite of all it has done for the health and happiness of mankind. The sanguinary intolerance of Robespierre and other disciples of Rousseau was described earlier in this volume. And the notorious inability of Carlyle and Garrison to argue calmly with those who differed with them further illustrates the tendency of confidence in one's own infallibility. Only he who knows that he may be wrong can admit consistently that those who reject his favourite beliefs may be right. The Parliament of Religions showed that there has been a growing conviction of the equal rights of holders of all forms of belief and unbelief; this conviction has been promoted by recognition of two great facts: first, that knowledge is based upon experience, and, second, that no one's life is so complete that he has nothing to learn from other people. If they do not believe as he does, it may be merely because experience has taught them truth which he still needs to learn. Each one knows only in part; and therefore no one can afford to take it for granted that anyone else is completely in error.

I. This tolerant method of thought has gained greatly in popularity since Darwin proved its capacity to solve the problem of the origin of man. The possibility that all forms of life, even the highest, are results of a natural process of gradual development has often been suggested by poets and philosophers. The probability was much discussed by men of science early in the nineteenth century; but it was not until 1858 that sufficient evidence was presented to justify acceptance of evolution as anything better than merely a theory. Twenty-one years had then elapsed since Darwin began a long series of investigations. In the first place, he collected an irresistible number of cases of the influence of environment in causing variations in structure, and of the tendency of such variations to be inherited. Most men who accepted these propositions admitted their insufficiency to account for the multiplicity of species; but the explanation became complete when Darwin discovered that any plant or animal which is peculiarly fit for survival in the continual struggle for existence is likely to become largely represented in the next generation. A spontaneous variation which prolongs

the life of its possessor may thus become not only more common but more firmly fixed in successive generations, until a new species is established.

To this tendency Darwin gave the name "natural selection"; but this term literally implies a deliberate choice by some superhuman power. Herbert Spencer proposed the phrase, "survival of the fittest"; but it must be remembered that the fitness is not necessarily that of greater moral worth.

There may be merely such a superiority in strength and cunning as enables savages to devour a missionary. Spencer says that "the expression, 'survival of the fittest,'" merely means "the leaving alive of those which are best able to utilise surrounding aids to life, and best able to combat or avoid surrounding dangers." Weeds are fitter than flowers for natural growth; and Joan of Arc proved unfit to survive in the contest against wicked men.

This discovery of Darwin's made it his duty to avow a view which was so unpopular that he felt as if he were about "confessing a murder." He was making "a big book" out of the facts he had collected, when a manuscript statement of conclusions like his own was sent him by Wallace, who had discovered independently the great fact of the survival of the fittest. Darwin wished at first to resign all claim to originality; but his friends insisted on his taking a share of the honour of the discovery. Accordingly an essay, which he had written in 1844, was read in company with that sent him by Wallace before the Linnæan Society, in London, on July 1, 1858. The importance of the new view was so well understood that the entire first edition, amounting to 1250 copies, of Darwin's *Origin of Species*, which book he wrote soon after, was sold on the day of publication, November 24, 1859. Other editions followed rapidly, with translations into many languages. No book of the century has been more revolutionary.

II. Theologians still insisted on the supernatural creation of each species of plant or animal, and especially of the human race, in its final form. The inference that man had been developed by natural processes out of some lower animal, was easily drawn from the *Origin of Species*, though not expressly stated therein; and there was great alarm among the clergy. An Anglican bishop, who was nicknamed "Soapy Sam" on account of his subserviency to public opinion, declared in a leading quarterly that Darwin held views "absolutely incompatible" with the Bible, and tending to "banish God from nature." Other prominent Episcopalians called the new book "an attempt to dethrone God," and propagate infidelity. Cardinal Manning

denounced the "brutal philosophy" which taught that "There is no God, and the ape is our Adam." Both Catholics and Protestants started anti-Darwinian societies in London, and, in 1863, Huxley saw "the whole artillery of the pulpit brought upon the doctrine of evolution and its supporters." The example of England was followed promptly by France and Germany. America was distracted by civil war; and her men of science were so few and timid that the denunciations of Darwinism which were prompted by the theological and metaphysical prejudices of Agassiz were generally accepted as final decisions. The position of the Unitarians and Transcendentalists may be judged from the fact that, during a period of nearly three years after the publication of the *Origin of Species*, nothing was said about Darwinism in the extremely liberal divinity school where I was then a student. Evolutionism had to look for advocates in America to Spiritualists like Denton or unbelievers like Underwood at that period.

Clerical opposition increased the general unwillingness of scientific men to snatch up new views. As early as 1863, however, Darwin received the support of the famous geologist, Lyell, as well as of a younger naturalist destined to achieve even more brilliant success. Huxley has distinguished himself in arguments against the scientific value of the Bible. Among his other exploits was a demonstration that a chain, in which no link is missing, connects the horse with a small, extinct quadruped possessed of comparatively few equine peculiarities. In this case, transformation of species is an undeniable fact. Other young naturalists in England, as well as in Germany, gradually became willing to push the new view to its last results; and Darwin was encouraged to publish, in 1871, his elaborate account of the origin of our race, entitled *The Descent of Man*. The wrath of the churches blazed forth once more; and Gladstone entered the arena. Englishmen ventured no longer to say much about the differences between Moses and Darwin; for the obvious retort would have been, "So much the worse for Moses." A German Lutheran, however, bade his congregation choose between Christ and Darwin; and the infallibility of Moses was asserted so zealously by a Parisian Catholic as to win formal thanks from the Pope.

America was now wide awake; irreligious tendencies were assigned to evolutionism by the president of Yale, as well as by some Princeton professors; and one of these latter warned believers in the development of man that they would be punished as infidels after death. The verdict of men

of science has at last been pronounced so plainly as to be accepted by thoroughly educated people in the Northern States; but the Southerners are more bigoted. Even so late as 1894, a professor of biology at the University of Texas was dismissed, in violation of contract, for teaching evolutionism. A similar offence had been found sufficient, ten years before, by the Presbyterians of South Carolina, for driving a devout member of their own sect from his chair in a theological seminary. That popular writer on geology, Winchell, was requested in 1878 by a Methodist bishop to resign a professorship at Nashville, Tennessee, where he had expressed doubt of the descent of all men from Adam. The geologist refused to resign, and the chair was suppressed.

Voltaire's chief grievance was the intolerance of Christianity. Paine and Bradlaugh complained that there was much immorality in the Old Testament. The most damaging of recent attacks have been made in the name of science. Genesis and geology had been found irreconcilable before the appearance of Darwinism; but the new system widened the breach. The most serious offence to the theologian, however, was that he could no longer point without danger of contradiction to beneficial peculiarities in the structure of plants and animals, as marks of the divine hand. The old argument about design was met by a demonstration that such peculiarities were apt to arise spontaneously, and become permanent under the pressure of the struggle for existence. The theologian has had to retreat to the position that Darwinism has not accounted for the soul, the intellect, and especially the intuitions.

III. Whether Darwin succeeded or not in this part of his work is not so important as the fact that, several years before he announced his great discovery, an elaborate account of the process by which the powers of thought and feeling have been developed gradually out of the lowest forms of consciousness was given by Herbert Spencer. The first edition of his *Principles of Psychology*, published in 1855, carried the explanation so far as to show the real origin and value of the intuitions. Their importance had been almost ignored by thinkers who relied entirely on individual experience, and greatly overrated by the Transcendentalists; but neither set of philosophers could explain these mysterious ideas. The infallibility of conscience is not to be reconciled with such facts as that Paul thought it his duty to persecute the Christians, or that Garrison, Sumner, John Brown, and Stonewall Jackson were among the most conscientious men of the century.

The ancient Greeks agreed in recognising justice, but not benevolence, among the cardinal virtues; precisely the opposite error was made by Kant and Miss Cobbe; and a tabular view of all the lists of fundamental intuitions which have been made out by noted metaphysicians might be mistaken for a relic from the Tower of Babel. Emerson's religious instincts were not so much impressed as Parker's with the personality of God and immortality; but the difference seems almost insignificant when we remember what ideas of theology arose spontaneously in New Zealand. How widely the intuition of beauty varies may be judged from the inability of aesthetic Chinamen to admire the white teeth and rosy cheeks of an English belle. Intuition is plainly not an infallible oracle; but is it merely a misleading prejudice?

The puzzle was solved when Spencer showed that intuition is a result of the experience of the race. Courage, for instance, was so important for the survival of a primitive tribe in the struggle against its neighbours, that every man found his comfort and reputation depend mainly on his prowess. If he fought desperately he gained wealth, honour, and plenty of wives; but cowards were maltreated by other men and scorned even by the women. The bravest man left the largest number of offspring; and every boy was told so early and earnestly to be courageous as to develop a pugnacious instinct, which has come down to the present day in much greater strength than is needed for the ordinary demands of civilised life. We love war too much, because our ancestors were in danger of not loving it enough for their own safety. As courage ceased to be the one all-important excellence, industry, fidelity, and honesty were found so useful as to be encouraged with a care which has done much to mould conscience into its present shape. Other virtues were inculcated in the same way. The welfare of the family was found to depend largely on the fidelity of wife to husband; and the result was that chastity has held a much higher place in the feminine than in the masculine conscience. So our religious instincts owe much of their strength to the zeal with which our ancestors sought to avert the divine wrath. Thus we have ideas which were originally only vague inferences from primitive experience, but which have gradually gained such strength and definiteness, that they have much more power than if we had thought them out unaided by the past. Spencer himself says, "There have been, and still are, developing in the race certain fundamental moral intuitions" which "are the results of accumulated experiences of utility, gradually organised and inherited," but "have come to be quite independent of conscious

experience." They "have no apparent basis in the individual experiences of utility"; and thus conscience has acquired its characteristic disinterestedness.

When we feel this inner prompting to a brave or honest action which must be done promptly or left undone, it is our duty to act without hesitation or regard to our own interest. We are serving our race in the way which its experience has taught. Suppose, however, that there is time enough for deliberation, and that we see a possibility of harm to our neighbours, our family, or even to our own highest welfare. In this case, we ought to compare the good and evil results carefully. We should also do well to consider what was the decision of the consciences of the best and wisest men under similar circumstances. If we neglect these precautions, we may be in danger of following not conscience but passion. There is also a possibility that conscience may embody only such primitive ideas of duty as have since been found incorrect. This has often been the case with persecutors and monarchists.

Generosity is still too apt to take an impulsive and reckless form which perpetuates pauperism. Spencer has taught us that conscience is worthy not only of obedience, but of education.

Spencer's attempt to substitute a thoughtful for a thoughtless goodness of character has been much aided by his protest against such indiscriminating exhortations to self-sacrifice as are constantly heard from the pulpit. Good people, and especially good women, welcome the idea of giving up innocent pleasure and enduring needless pain. The glory of martyrdom blinds them to the fact that, as Spencer says in his *Psychology*, "Pains are the correlatives of actions injurious to the organism, while pleasures are the correlatives of actions conducive to its welfare." In other words, "Pleasures are the incentives to life-supporting acts, and pains the deterrents from life-destroying acts." Abstinence from pleasure may involve loss of health. Self-sacrifice is scarcely possible without some injury to mind or body; as is the case with people who make it a religious duty to read no interesting books and take scarcely any exercise on Sunday. It is further true that "The continual acceptance of benefits at the expense of a fellow-being is morally injurious"; as "The continual giving up of pleasures and continual submission to pains are physically injurious." Blind self-sacrifice "curses giver and receiver—physically deteriorates the one and morally deteriorates

the other," "the outcome of the policy being destruction of the worthy in making worse the unworthy." No wonder that men are stronger, and also more selfish, than women. Almost all self-sacrifice involves loss of individual liberty. The subjection of women has been deepened by their readiness to sacrifice themselves to those they love; their fondness for martyrdom often leads them into the sin of marrying without love; and generosity of heart facilitates ruin. Women would really be more virtuous if they felt less obligation to their lovers and more to their race.

IV. Spencer's psychological discoveries were corollaries to that great principle of evolution of which he made the following announcement as early as 1857 in the *Westminster Review*. After declaring his belief in "that divergence of many races from one race which we inferred must have continually been occurring during geologic time," he stated that "The law of all progress is to be found in these varied evolutions of the homogeneous into the heterogeneous," or in other words, "out of the simple into the complex." The discoveries of Darwin and Wallace were not announced before 1858, but Spencer avowed in 1852 his belief in "the theory of evolution" or "development hypothesis," according to which "complex organic forms may have arisen by successive modifications out of simple ones." It was without any aid or suggestion from Darwin that Spencer's statement of the law of evolution was brought into the final form published in 1862. Evolution was then described as change, not only from the simple to the complex, but also from the chaotic to the concentric and consolidated, or, in Spencer's own words, "from an indefinite incoherent homogeneity to a definite coherent heterogeneity." Progress, he says, consists in integration as well as differentiation. There is an increase in permanence and definiteness as well as in variety. Higher forms are not only more complex and unlike than lower ones, but also more stable and more strongly marked.

Spencer has been represented by some Transcendentalists as Darwin's pupil; but the whole system just described would, in all probability, have been built up in substantially its present form, if both Darwin and Wallace had kept their discoveries to themselves. The only difference would have been that Spencer could not have been sustained by such a great mass of evidence. All these facts were collected by Darwin merely to prove the physical development of men and other animals from lower forms of life; but Spencer showed that all the phenomena of thought and feeling, as well

as of astronomy, geology, and chemistry, are results of the great laws of integration and differentiation. All human history and social relations can be accounted for in this way. And if this extension had not been given to the principle of evolution, Darwin's discoveries might soon have ceased to have much interest, except for students of natural history. Each of the two great evolutionists helped the other gain influence; but their co-operation was almost as unintentional as that of two luminaries which form a double star.

V. Spencer has done much to diminish intolerance, by teaching, as early as 1862, that all religions are necessary steps in the upward march of evolution.

He has also attempted to reconcile religion and science, by teaching that the one all-essential belief is in a great unknowable reality, which is not only inscrutable but inconceivable. In writing about this supreme power, he uses capitals with a constancy which would look like an assumption of knowledge, if the same habit were not followed in regard to many other words of much less importance. He admits that "We cannot decide between the alternative suppositions, that phenomena are due to the variously conditioned workings of a single force, and that they are due to the conflict of two forces." "Matter cannot be conceived," he says, "except as manifesting forces of attraction and repulsion"; but he also says that these antagonistic and conflicting forces "must not be taken as realities but as our symbols of the reality," "the forms under which the workings of the unknowable are cognisable." This creed is accepted by many American evolutionists. It is the doctrine of one of Spencer's most elaborate and brilliant interpreters, Professor John Fiske, of such popular clergymen as Doctors Minot J. Savage and Lyman Abbott, and of many of the members of that energetic organisation, "The Brooklyn Ethical Association." *The Open Court* of Chicago and other periodicals are working avowedly for "the Religion of Science"; but that is not to be established without much closer conformity to the old-fashioned creeds and ceremonies than has been made by Spencer. His later works seem more orthodox than his earlier ones; but his final decision is that "The very notions, origin, cause, and purpose, are relations belonging to human thought, which are probably irrelevant to the ultimate reality." He has also admitted that the proposition, "Evolution is caused by mind," "cannot be rendered into thought." And he is right in saying that he has nowhere suggested worship.

Whether he has proposed a reconciliation, or only a compromise, whether evolutionism will ever be as popular in the pulpit as Transcendentalism, and whether there is not more reality in the forces of attraction and repulsion than in Spencer's great unknowable, are problems which I will not discuss. Darwin was an agnostic like Huxley, who held that "We know nothing of what may be beyond phenomena," and "Science commits suicide when she adopts a creed." Huxley pronounced the course of nature "neither moral nor immoral, but non-moral," and declared that "The ethical progress of society depends not on imitating the cosmic process but on combating it." The severity of his criticism of the Gospel narratives called out threats of prosecution for blasphemy. He avowed "entire concurrence" with Haeckel, who holds that belief in a personal God and an immortal soul are incompatible with the fundamental principles of evolution. The German scientist argues in his elaborate history of the development of animals, that life is no manifestation of divine power, working with benevolent purpose, but merely the necessary result of unconscious forces, inherent in the chemical constitution and physical properties of matter, and acting mechanically according to immutable laws. The position of Haeckel and Huxley is all the more significant because Frederic Harrison knows of "no single thinker in Europe who has come forward to support this religion of an unknown cause."

VI. A much more important controversy has been called out by Spencer's theory of the limits of government. As early as 1842 he proposed "the limitation of state action to the maintenance of equitable relations among citizens." His *Social Statics* demanded, in 1850, as a necessary condition of high development, "the liberty of each, limited only by the like liberty of all." His ideal would be a government where "every man has freedom to do all he wills, provided he infringes not the equal freedom of any other man." These propositions are repeated in the revised edition of 1892, which differs from the earlier one in omitting a denial of the right of private property in land, and also a demand for female suffrage. How far Spencer had changed his views may be seen in his volume on *Justice*. Both editions of *Social Statics* deny the right of governments to support churches, public schools, boards of health, poorhouses, lighthouses, or mints. Spencer would have titles to land guaranteed by the State, and property-holders protected against unjust lawsuits; but otherwise the government ought to confine itself, he thinks, to managing the army, navy, and police.

This position is defended by an appeal to the fact that the citizen is most energetic and intelligent where he is most free to act for himself. No American is as helpless before pestilence or famine as a Russian peasant, or as afraid to go to a burning house until summoned by the police. A despotism may begin with a strong army; but it ends, like the Roman Empire, in the weakness which it has brought on by crushing the spirit of its soldiers. Strong governments make weak men. Never was there a mightier army than was given by the French Republic to Napoleon. Industrial prosperity depends even more closely than military glory on the energy of men who have been at liberty to think and act freely. People develop most vigorously where they are least meddled with. The average man knows much more than his rulers do about his own private business; and he is active to promote it in ways which secure the general welfare.

Great stress is laid not only in *Social Statics* but in Spencer's book on *The Man versus the State*, and in several essays, on the many times that the British Government has increased an evil by trying to cure it. What is said about its extravagance will not surprise any American who remembers what vast sums are squandered by Congress. The post-office is often spoken of as proof that our Government could run our railroads; but one of Boston's best postmasters said, "No private business could be managed like this without going into bankruptcy." The British Government has a monopoly of the telegraph; and introduction of the telephone was very difficult in consequence. In Victoria, the Postmaster-General has abused his privileges so much as to appoint a "sporting agent" to telegraph the results of a horse-race; and this same highly protectionist colony has had laws forbidding any shop to be open after 7 P.M., except on Saturday, and any woman to work more than forty-eight hours a week in any factory. How governments interfered in former centuries with people's right to feed, clothe, employ, and amuse themselves, seems almost inconceivable at present.

Persecution was one among many forms of mischievous meddling. Locke, in arguing for toleration in 1689, was obliged to take the ground that "The whole jurisdiction of the magistrate reaches only" to securing unto all the people "life, liberty, health," and also "outward things such as money, lands, houses, furniture, and the like." "Government," he said, "hath no end but preservation, and therefore can never have a right to destroy, enslave, or designedly to impoverish the subject." Clearer language was used by those French patriots who declared in the Constitution of 1791 that liberty

consists in ability to do everything which brings no harm to others; and, two years afterwards, that the liberty of each citizen should extend to where that of some other citizen begins. Nearly fifty years later, a theory very like Spencer's was published by Wilhelm von Humboldt, brother of the great naturalist. Among the many writers who have held that government ought not to be merely limited but repudiated totally was Thoreau. It was in 1854 that this zealous abolitionist publicly renounced his allegiance to a great anti-slavery commonwealth, and that he asserted, in *Walden*, the necessity of preserving individual liberty by conforming as little as possible to any social usages, even that of working regularly in order to support one's self and family in comfort. That same year, Spencer showed in his essay on *Manners and Fashion* the difference between a regulation by which public opinion tries to prevent rude people from making themselves unnecessarily disagreeable to their neighbours, and one which encourages dissipation by arbitrarily check-ing innocent amusement. Even in the latter case, however, there is, as he says, but little gain from any solitary nonconformity. Reform must be carried on in co-operation.

That powerful assailant of Transcendentalism, John Stuart Mill, was not an evolutionist; but it was largely due to his liberal aid that the system of differentiation and integration was published. This generosity was consistent with his own position, that all opinions ought to have a hearing, and especially those which are novel and unpopular, for they are peculiarly likely to contain some exposure of ancient error or revelation of new truth. This fact was set forth with such ability in his book, *On Liberty*, in 1859, that several long passages were quoted in the public protest, delivered in Ohio five years later by Vallandigham, against the war then carried on for bringing back the seceded States. Mill holds that neither government nor public opinion ought to interfere with any individual, except "to prevent doing harm to others." He says, for instance, that there would be no tyranny in forcing parents to let their children have education enough to become safe members of society. Such a law could scarcely be justified by the principle of giving all the liberty to each compatible with the like liberty of all. Among the restrictions which Mill mentions as oppressive are those in England and America against selling liquor, gambling, and Sunday amusements. He admits the difficulty of deciding "how far liberty may be legitimately invaded for the prevention of crime."

VII. It was in full conformity with the principles of Mill, Spencer, and Locke that the Constitution of Louisiana, as revised in 1879, declared that the only legitimate object of government "is to protect the citizen in the enjoyment of life, liberty, and property. When it assumes other functions, it is usurpation and oppression." Similar sentiments have been occasionally expressed in political platforms. Such narrow limits have not, so far as I know, ever been observed in the United States or in any other civilised land. Few people love liberty so much as not to be willing that the state should give them security against conflagration and contagious disease. There is also a general demand for such safety as is given by roads, streets, bridges, lighthouses, and life-saving stations. The necessity of hospitals, asylums, and poorhouses is manifest. If all this expense had to be met by public-spirited individuals, it is probable that their wealth would prove insufficient. It is further necessary for the public safety that there should be compulsory vaccination during epidemics of smallpox, confinement of dangerous lunatics and tramps, rescue of children from vicious parents, and maintenance of what ought not to be called compulsory but guaranteed education. Marriage has to be made binding for the protection of mothers as well as children. The thirst for drink needs at least as much restraint as is kept up in Scandinavia. And the tendency of bad money to drive out good is strong enough to justify laws against circulation of depreciated currency.

Public schools are particularly important in America, where presidential and congressional elections are apt to turn on financial issues which can scarcely be understood by men not thoroughly educated. Spencer's objections apply more closely to the European system, that of centralisation of management, than to the American. It is well to know also that he was misled by a hasty reference, perhaps by some assistant, to an English statistician named Fletcher. This high authority did admit, in 1849, that he found "a superficial evidence against instruction." He went on, however, to say much which is not mentioned in *Social Statics*, and which proved the evidence to be only superficial. By classifying crimes according to enormity, he showed that the worst were most frequent in the least educated districts. He also discovered that those counties in England where ability to sign the marriage register was most common were most free from paupers, dangerous criminals, and illegitimate children. "The conclusion is therefore irresistible," says Fletcher, "that education is essential to the security of modern society." Most of the other testimony brought forward in *Social*

Statics is invalidated by Fletcher's method; and Spencer added nothing in the second edition to the insufficient statements in the first.

British education has improved greatly in both quality and quantity since 1876; but the prisons of England and Wales had only two-thirds as many inmates in 1890 as in 1878, and only one-half as large a part of the population. The most dangerous prisoners were only one-third as numerous in 1890 and 1891 as forty-five years earlier; and the percentage of forgers only one-tenth as great as in 1857. We ought further to remember the almost complete unanimity of opinion in favour of free education wherever it is universal.

Public schools in America are all the more useful because they are superintended by town and city officials, elected in great part by men who know them personally. This is also the case with the boards of health, and the managers of poorhouses, cemeteries, public libraries, and parks. Among other subjects of local self-government are the roads, bridges, streets, and sewers. Our large cities are notoriously misgoverned, but it will be easier to raise the character of the officials than to contract their powers. Much is to be hoped from civil service reform, proportional representation, and nonpartisan elections. Town affairs are usually so carefully looked after by people not in office as to be managed for the public welfare. Both in towns and cities the tendency is to enlarge rather than contract the functions of the government. A proposal that any city should let tenements or sell coal more cheaply than is done by individuals, would seem to be for the advantage of everybody except a few payers of heavy taxes. The majority of voters would care little about increase of taxation, in comparison with the prospect of more demand for labour and greater activity in business. It is easy to make extravagance popular where the majority rules. Our State constitutions would probably make it impossible for coal to be sold or tenements let by cities and towns; but these latter often carry on gas-works, water-works, electric roads, and other highly beneficial industries. This may be necessary to check the rapacity of corporations; but otherwise there is too much danger of extravagance, discouragement of individual enterprise, and delay in improving the processes monopolised by the municipality. Some evils would be lessened by a transfer of the control of lighthouses and life-saving stations from the national Government to that of the nearest cities, or else of single States.

Our people are much better able to judge of the success of State than of Federal legislation and management. Of course the chief duties of the State are to pass laws for the protection of life and property against crime, and to manage such indispensable penal, charitable, and educational institutions as are not provided by the municipalities. It is still necessary for the States of our Union to keep up the militia; but perhaps the best thing that could be done for the public safety would be to have tramps kept from crime, and assisted to employment by a State police. Ownership of real estate would be more secure, and sale easier, if titles were guaranteed by the State; and it would also do well, as Spencer suggests, to help people of moderate means resist lawsuits brought to extort money. It seems, at all events, well that our States keep up their boards of health, and their supervision of banks, railroads, steamboats, and factories. There are a great many unnecessary laws, as, for instance, was one in Massachusetts for selling coal below market price. This was fortunately decided to be unconstitutional; but whether this commonwealth ought to continue to supply free text-books, especially in high schools, seems to me questionable. Many individualists object to laws against gambling, selling liquor, and other conduct which does no direct injury except to those who take part voluntarily. There are vicious tendencies enough in human nature, I think, to justify attempts to keep temptation out of sight.

No advantage of this kind can be claimed for the Sunday laws in our Eastern and Southern States. It is certainly desirable to have one day a week of rest from labour and business; but it is equally true that a man's ploughing his field or weeding his garden does not infringe on the liberty of his neighbours, diminish their security of person and property, or encourage their vicious propensities, even on Sunday. It is setting a bad example to break any law; but I do not think that any citizen of Massachusetts was seriously corrupted by resisting the Fugitive Slave Act; and I doubt if any Vermonter was morally the worse for breaking the law in that State against Sunday "visits from house to house, except from motives of humanity or charity, or for moral and religious edification." It is better to have the laws obeyed intelligently than blindly; and those really worthy of respect would have more authority if every prohibition which is never enforced, except out of malice, were repealed. Much aid is given to morality by such religious observances as are voluntary and conscientious; but compulsory observance breeds both slaves and rebels.

How far our Sunday laws are meant to encourage the peculiar usages of the popular sects is seen in the fact that, since 1877, about 150 professed Christians, who had kept the Sabbath on the day set apart in the Bible, were arrested on the charge of having profaned Sunday by such actions as ploughing a retired field, weeding a garden, cutting wood needed for immediate use, or making a dress. They refused to pay any fine; most of them were imprisoned accordingly; in one case the confinement lasted 129 days; two deaths were hastened by incarceration; and in the summer of 1895 eight of these "Saturdarians," as they were nicknamed, were working in a chain-gang on the roads in Tennessee. One of the eight was a clergyman. Among the commonwealths which prosecuted observers of the original Sabbath as Sabbath-breakers were Georgia, Maryland, Missouri, Arkansas, Ohio, Pennsylvania, Massachusetts, and seven other States. Such prosecutions were too much like persecutions; for people who kept neither Saturday nor Sunday were not so much molested. If the Sunday laws were really meant for the public welfare, every citizen would be allowed to choose his own Sabbath, and no one who kept Saturday sacred would be required to rest on Sunday also. Such liberal legislation has actually been passed by Rhode Island and many other States.

How strict the law is against doing business on Sunday may be judged from the fact that in 1896 a decrepit old woman was sent to jail in New York City for selling a couple of bananas, and a boy of fifteen was arrested for selling five cents' worth of coal in January. Three men were fined for selling umbrellas in the street on a rainy Sunday in 1895, and others were arrested for selling five cents' worth of ice. People who have no refrigerators suffer under the difficulty of buying ice, fruit, and meat on a hot Sunday in our Eastern cities.

Sunday laws and customs differ so widely in our various States, that they cannot all be wise and just. Rest from labour and business is secured in Southern California, without State legislation, by the action of public opinion; and were this to become too weak, it would be reinforced by the trades-unions. Personal liberty is not necessarily violated by laws prohibiting disturbance of public worship; but it would be if anyone were compelled to testify in court, or sit on the jury, or do any other business elsewhere, on any day set apart for rest by his conscience and religion. There seems to be little necessity for other legislation, except under peculiar local circumstances to which town and city magistrates are better able than

members of State and national legislatures to do justice. The question, what places of business that have no vicious tendencies ought to be allowed to open on Sunday, might settle itself, as does the question how early they are to close on other days of the week. There needs no law to prevent business being done at night. Stores which could offer nothing that many people need to buy on Sunday, would have so few customers that the proprietors could ill afford to open their doors. Where the demand is as great and innocent as it is for fresh meat and fruit in hot weather, the interest of the proprietor is no more plain than is the duty of the legislator and magistrate. People employed in hotels, stables, telegraph offices, libraries, museums, and parks, can, of course, protect themselves from overwork, as domestic servants do, by stipulating for holidays and half-holidays.

Whatever may be the gain to public health from cessation of labour and business on Sunday, there is no such advantage, but rather injury, from the prohibition of healthy recreations and amusements, which are acknowledged to be perfectly innocent on at least six days of the week. Sunday is by no means so strictly observed, especially in this respect, on the continent of Europe as in the United States. Sabbatarianism is peculiarly an American and British institution; and this fact justifies the position that it is by no means a necessary condition of the security, or even the welfare, of civilised nations. If our Sunday laws cannot be proved to be necessary, they must be admitted to be oppressive. Over-taxation is but a slight grievance compared with the tyranny of sending men and women to jail for inability or unwillingness to pay the fines imposed in 1895 by the State of Tennessee for working on their farms, or in Massachusetts soon after for playing cards in their own rooms. Further consideration of the question, what amusements should be permitted on Sunday, will be found in an appendix.

Such problems are peculiarly unfit for treatment by our central Government. Its chief duty, of course, is protection of our people against invasion and rebellion; and the authority of the President and Congress ought not to be weakened by vain attempts to settle disputes which would be dealt with much more satisfactorily by the cities and towns. A Sunday law too lax for Pennsylvania might be too strict for California. The system of post-offices is too well adapted for the general welfare to be given up hastily; but the Government ought to surrender the monopoly which now makes it almost impossible for citizens to free themselves from dependence on disobliging or incompetent postmasters. I have nothing to say against the

Census, Education, Health, and Patent Bureaus, nor against the Smithsonian Museum, except that our citizens have a right to use their own property as freely on Sunday as on any other day of the week. I do not see why our Government should have more than that of other nations to do with the issue of paper money; but I leave the bank question to abler pens.

The tariff is a much plainer issue. We are told in *Social Statics* that "A government trenches upon men's liberties of action" in obstructing commercial intercourse; "and by so doing directly reverses its function. To secure for each man the fullest freedom to exercise his faculties, compatible with the like freedom of all others, we find to be the state's duty. Now trade-prohibitions and trade-restrictions not only do not secure this freedom, but they take it away, so that in enforcing them the state is transformed from a maintainer of rights into a violator of rights." The obstacles to importation deliberately set up by American tariffs, indirectly check exportation; for unwillingness to buy from any other nation diminishes not only its willingness but its ability to buy our products in return. The United States are actually exporting large amounts of cattle, wheat, and cotton, as well as of boots and shoes, agricultural implements, steel rails, hardware, watches, and cotton cloth. These commodities are produced by Americans who can defy foreign competition. In some cases the tariff enables them to raise their prices at home, to the loss of their fellow-citizens. Prices abroad cannot be raised by our Government. What it can and does do is to burden both farms and factories by duties on lumber, glass, coal, wool, woollen goods, and many other imports. The rates are arranged with a view to increase, not individual liberty or public security, but the profits of managers of enterprises which would not pay without such help. Men who are carrying on profitable industries have to make up part of what is lost in unprofitable ones. In fact, the cost of living is increased needlessly for all our citizens, except the privileged few.

There would be less injustice in aiding new enterprises by bounties; but the proper authorities to decide how much money should be voted for such purposes are the cities and towns. Some of the makers of our national Constitution wished to make tariff legislation in Congress impossible except by a majority of two-thirds; and this might properly be required for all measures not planned in behalf of individual liberty or the public safety. Much of the business now done by the nation ought to be transferred to the States. They took the lead between 1830 and 1870 in improving rivers and

harbours, building railroads, and digging canals. The result of transferring such work to Congress was that in 1890 it voted \$25,000,000 to carry on 435 undertakings, more than one-fourth of which had been judged unnecessary by engineers. Two years later, four times as many new jobs were voted as had been recommended by the House committee. Among these plans was one, in regard to the Hudson River, which was the proper business of the State of New York. The extravagance of our pension system is notorious. If the restriction proposed by Spencer is applicable anywhere, it is to central rather than local governments.

VIII. Great as are the evils of unnecessary laws, Spencer's remedy is too sweeping to be universally supported by evolutionists. Huxley protests against it as "administrative Nihilism," and declares that if his next-door neighbour is allowed to bring up children "untaught and untrained to earn their living, he is doing his best to restrict my freedom, by increasing the burden of taxation for the support of gaols and workhouses which I have to pay." His conclusion is that "No limit is or can be theoretically set to state interference." The impossibility of drawing "a hard and fast line" is admitted even by so extreme an individualist as Wordsworth Donisthorpe, who complains that "Crimes go unpunished in England," while the "Great National Pickpocket" is busy "reading through all the comedies and burlesques brought out in the theatres," "running after little boys who dare to play pitch-farthing," or "going on sledging expeditions to the North Pole."

Lecky agrees so far with Spencer and Mill as to say, in *Democracy and Liberty*, that punishment should "be confined, as a general rule, to acts which are directly injurious to others," and accordingly that "With Sunday amusements in private life, the legislator should have no concern." As a check to over-legislation, he recommends biennial sessions, instead of annual; and he protests against the despotism of trades-unions. His strongest point against Spencer is that sanitary legislation has added several years to the average length of life in England and Wales, prevented more than eighty thousand deaths there in a single year, and actually reduced the death-rate of the army in India by more than four-fifths.

IX. Spencer has succeeded in increasing the number of individualists so much, that Donisthorpe says they can be counted by the thousand, though there were scarcely enough in 1875 in England to fill an omnibus.

Transcendentalism had made individualism comparatively common long before in America. The principle of not interfering with other people, except to prevent their wronging us, is fully applicable, as Spencer says, to the relation of husband with wife, and also to that of parent and teacher with child. It could also be followed with great advantage in the case of domestic servants. There can be no doubt of the correctness of the position, taken in the *Principles of Sociology*, that delight in war has a tendency to stifle love of liberty. Sparta, Russia, and the new German Empire show that where the ideal of a nation is military glory, "The individual is owned by the State." The citizens are so graded, that "All are masters of those below and subjects of those above." The workers must live for the benefit of the fighters, and both be controlled closely by the government. Armies flourish on the decay of individual rights. How difficult it was to avoid this, during some bloody years, even in America, has been shown in Chapter IV. A nation of shopkeepers is better fitted than a nation of soldiers to develop free institutions.

One of Spencer's objections to Socialism is that it would "end in military despotism." Nothing else could replace competition so far as to keep a nation industrious. Spencer is right in saying, "Benefit and worth must vary together," which means that wages and salaries should correspond to value of work. Otherwise, "The society decays from increase of its least worthy members and decrease of its most worthy members."

These facts are so generally known already, that there is less danger than is thought by Spencer, of either the national establishment of Socialism or of a ruinous extension of governmental interference. The average American is altogether too willing to have his wealthy neighbours taxed for his own benefit; but he knows that he can make himself and his family more comfortable by his own exertions than his poor neighbours are; and he is not going to let any government forbid his doing so. He does not object to public libraries, and perhaps would not to free theatres; but he would vote down any plan which would prevent his using his money and time to his own greatest advantage. He is sometimes misled by plausible excuses for wasting public money, and arresting innocent people; but he insists on at least some better pretext than was made for the old-fashioned meddling with food, clothing, business, and religion. He may not call himself an individualist; but he will never practise Socialism.

This sort of man is already predominant in Great Britain, as well as in America; and multiplication of the type elsewhere is fostered by mighty tendencies. The duty of treating every form of religion according to ethical and not theological standards is rapidly becoming the practice of all civilised governments; and persecution is peculiar to Turkey and Russia. These two despotisms form, with Germany, the principal exceptions to the rule that political liberty is on the increase throughout Europe, especially in the form of local self-government. The nineteenth century has made even the poorest people more secure than ever before from oppression and lawless violence, as well as from pestilence and famine. Destitution is relieved more amply and wisely, while industry and intelligence are encouraged by opportunity to enjoy comforts and luxuries once almost or altogether out of the reach of monarchs. The fetters formerly laid on trade of cities with their own suburbs have been broken; and the examples of Great Britain and New South Wales are proving that nations profit more by helping than hindering one another in the broad paths of commerce. Industrial efficiency has certainly been much promoted by the tendency, not only of scientific education but of manual training, to substitute knowledge of realities for quarrels about abstractions. All these changes favour the extension of free institutions and also of individual liberty, wherever peace can be maintained. Industrial nations gain more than warlike ones by encouraging intellectual independence; but the general advantage is great enough to ensure the final triumph of liberty.

APPENDIX: SUNDAY RECREATION

THIS is much more common in New England and Great Britain than it was in the eighteenth century. The dinner has become the best, instead of the worst in the week. Scarcely anyone rises early; and nobody is shocked at reading novels. There is an enormous circulation in both English and American cities of Sunday papers whose aim is simply amusement. There is plenty of lively music in the parlours, as well as of merry talk in which clergymen are ready to lead. People who have comfortable homes can easily make Sunday the pleasant-est day of the week.

For people who cannot get much recreation at home, there are increasing opportunities to go to concerts, picture-galleries, and museums. Among the reading-rooms thrown open on Sunday in America about 1870 was that of the Boston Public Library; and no difference is now made in this great institution among the seven days, except that more children's books and magazines are accessible on Sunday. What important museums are now open in London, Boston, and New York have been already mentioned in Chapter VI. These opportunities are still limited; but there is no obstacle, except that of bad weather, to excursions on foot or bicycle, behind horse or locomotive, in electric car or steamboat, to beaches, ponds, and other places of amusement. The public parks are crowded all day long in summer; and people who go to church in the morning have no scruple about walking or riding for pleasure in the afternoon. These practices were expressly sanctioned by Massachusetts in 1887, and by New Jersey in 1893; and the old law against Sunday visiting has been repealed since 1880 in Vermont.

The newer States have taken care not to pass such absurd statutes. I believe that the majority of our people were willing, as for instance was that prominent Episcopalian, Bishop Potter, to have the Chicago Exposition open on Sundays. Theatres and baseball grounds attract crowds of visitors in our cities, especially those west of the Alleghanies. Whatever changes are made in the East will probably be in the direction of greater liberty. The only question is how fast the present opportunities of recreation ought to be increased.

No one would now agree with Dr. Chalmers in calling the Sabbath "an expedient for pacifying the jealousies of a God of vengeance." Good people have ceased to think, as the Puritans did, that "Pleasures are most carefully to be avoided" on every day of the week, or that "Amity to ourselves is enmity against God." Preachers no longer recommend "abstaining not only from unlawful pleasures, but also from lawful delights." Popular clergymen now say with Dr. Bellows: "Amusement is not only a privilege but a duty, indispensable to health of body and mind, and essential even to the best development of religion itself." "I put amusement among the necessities and not the luxuries of life." "It is as good a friend to the church as to the theatre, to sound morals and unsuperstitious piety as to health and happiness,... an interest of society which the religious class instead of regarding with hostility and jealousy, ought to encourage and direct." "There is hardly a more baleful error in the world than that which has produced the feud between morality and amusement, piety and pleasure."

The fact is that pleasure means health. As I have said in a newspaper entitled *The Index*: "It is a violation of the laws of health for anyone, not absolutely bed-ridden or crushed by fatigue, to spend thirty-six hours without some active exercise in the open air. Trying to take enough on Saturday to last until Monday, is dangerous, and most people have little chance for healthy exercise except on Sunday. The poor, ignorant girl who has had no fresh air for six days ought to be encouraged to take it freely on the seventh. And we all need our daily exercise just as much as our regular food and sleep. The two thousand delegates who asked, in behalf of ninety thousand working men, in 1853, to have the Crystal Palace open on Sundays, were right in declaring that 'Physical recreation is as necessary to the working man as food and drink on the Sabbath.' The fact is that pleasure is naturally healthy even when not involving active exercise. Dark thoughts breed disease like dark rooms. The man who never laughs has something wrong about his digestion or his conscience. Herbert Spencer has proved that our pleasant actions are beneficial, while painful ones are injurious both to ourselves and to our race. (*Principles of Psychology*, vol. i., pp. 278-286; Am. Ed.). Thus Sunday amusements are needed for the general health.

"They are also necessary for the preservation of morality. This consists in performing the actions which benefit ourselves and our neighbours, in other words, pleasant ones, and abstaining from whatever is painful and injurious. It is only in exceptional cases that we can make others happy by suffering

pain ourselves. Now and then the paths of virtue and pleasure diverge; but they always come together again. As a rule, they traverse precisely the same ground and in exactly the same direction. This is very fortunate; for if pleasure were always vicious, virtue would be hateful and impossible. The most blessed of all peacemakers is he who keeps virtue and pleasure from falling out. There is no better text than that which the little girl said she had learned at Sunday-school: 'Chain up a child and away she will go!' Even so strict a man as Dr. Johnson said: 'I am a great friend to public amusements, for they keep people from vice.' Is there no need of them on the day when there is more drinking, gambling, and other gross vice than on any other? Need I say what day keeps our policemen and criminal courts most busy, or crowds our hospitals with sufferers from riotous brawls? Has not the experience of two hundred and fifty years justified those English statesmen who showed themselves much wiser than their Puritan contemporaries in recommending archery, dancing, and other diversions on Sunday, because forbidding them 'sets up filthy tippling and drunkenness?' To keep a man who does not care to go to church from getting any amusement, is to push him towards the saloon. And not only the laws against liquor selling, but others even more necessary for our safety, would be much better enforced if we did not encourage lawlessness by keeping up statutes which our best men and women violate without scruple and with impunity, or which actually prevent good people from taking such recreation as they know they ought to have. Outgrown ordinances should not be suffered to drag just and necessary laws down into contempt. "Nobody wants to revive those old laws of Massachusetts Bay which forbade people to wear lace, or buy foreign fruit, or charge more than a fixed price for a day's work. No more Quakers will ever swing from a Boston gallows merely for preaching. But our laws against Sunday amusements are in the same spirit as that which hung Mary Dyer. In old times, government kept continually telling people what to do, and took especial pains to make them go to church on Sunday. If they stayed away, they were fined; if they did not become members, they were not allowed to vote; if they got up rival services, they were hung; if they took any amusement on Sunday, they were whipped. All four classes of laws for the same unjust end have passed away, except that against Sunday recreation. This still survives in a modified form. But even in this shape it is utterly irreconcilable with the fundamental principles of our government. All American legislation, from the Declaration of

Independence, rests on the great truth that our government is founded in order to secure us in our unalienable rights to life, liberty, and the pursuit of happiness. Our State is a limited partnership for mutual protection. We carry it on in order to make our freedom more complete; and we tolerate no restrictions on ourselves except such as are necessary conditions of the greatest possible liberty. These principles are already fully acknowledged on six days of the week, but only partly on the seventh. Still, there is a growing recognition of the likeness between laws against Sunday amusements and such prohibitions of eating meat in Lent as once caused people to be burned alive."

A weekly day of rest is a blessing; but David Swing is right in saying that "Absolute rest, perfectly satisfactory to horse and dog, is not adequate to the high nature of man." Complete torpor of mind and body is more characteristic of a Hindoo fakir than of a Christian saint. Should those who wish to rest as much as possible on Sunday sleep in church? There is nothing irreligious in fresh air. The tendency of outdoor exercise to purify and elevate our thoughts is so strong that Kingsley actually defended playing cricket on Sunday as "a carrying out of the divineness of the Sabbath." If there is no hostility between religion and amusement on six days of the week, there cannot be much on the seventh.

No Protestants are more religious than the Swedes and Norwegians. Everybody goes to church; there is theological teaching in the public-schools; and advocacy of liberal religious views was punished in 1888 with imprisonment. No Scandinavian objects, so far as I know, to indoor games, croquet, dancing, or going to the theatre on Sunday; and these amusements are acknowledged to be perfectly proper throughout continental Europe. No one who allows himself any exercise or recreation on Sunday has a right to say that his neighbours do not need more than he does. Lyman Beecher could not preach his best on any day when he did not work hard at sawing wood or shovelling sand in his cellar. There would be less dyspepsia on Monday if there were more exercise on Sunday. Herbert Spencer tells us that "Happiness is the most powerful of tonics. By accelerating the circulation of the blood, it facilitates the performance of every function; and so tends alike to increase health where it exists, and to restore it when it has been lost. Hence the essential superiority of play to gymnastics."

A Bible Dancing Class is said to have been organised, in deference to such facts, in New Jersey by an Episcopalian pastor, who perhaps wishes to accomplish Jeremiah's prediction of the Messianic kingdom, "Then shall the virgin rejoice in the dance." Among other liberal clergymen is Brooke Herford, who says: "We want Sunday to be the happiest day in all the week. Keep it free from labour, but free for all quiet, innocent recreations." Rev. Charles Voysey wrote me in 1887, lamenting the immorality arising "from the curse of having nothing to do or nowhere to go on Sunday afternoons and evenings." "Young persons especially," he said, "would be better, and morally more safe, for greater opportunities of innocent pleasure and games at the hours of enforced idleness on the Sunday."

The spirit of the legislators is changing like that of the clergy. The first laws against Sunday amusement were passed by men who thought all pleasure vicious on every day of the week. Our present statutes are kept in force by people who like amusement, and get all they want of it; but who make it almost impossible for their poor neighbours, in order to conciliate ecclesiastical prejudice. "They bind heavy burdens and grievous to be borne and lay them on men's shoulders"; but they themselves do not feel the weight.

Whatever may be the advantage of keeping Sunday, it cannot be kept religiously when it is kept compulsorily. Rest from unnecessary labour and business on one day every week may be for the public welfare; but this rest is not made more secure by indiscriminate prohibitions of amusement. The idlest man is the most easily tempted to disturb his neighbours. No man's property is more safe or his personal liberty more secure because his neighbours are liable to be fined for playing golf. Laws against Sunday recreation do not protect but violate individual liberty. A free government has no business to interfere with the right of the citizens to take healthy exercise and innocent amusement whenever they choose.

These considerations would justify a protest, not only against the Sunday laws made by Congress for the District of Columbia, but also against the statutes of every State in the Union, except Arizona, California, Idaho, Louisiana, and Wyoming. "Whoever is present at any sport, game, play, or public diversion, except a concert of sacred music, or an entertainment given by a religious or charitable society, the proceeds of which, if any, are to be devoted exclusively to a religious or charitable purpose," on what is

called "the Lord's day" in Massachusetts is liable to a fine of five dollars; the penalty for taking part may be fifty dollars; and the proprietor or manager may be fined as much as five hundred dollars. New Jersey still keeps her old law against "singing, fiddling, or other music for the sake of merriment"; and express prohibitions of "any sport" are still maintained by Connecticut, Maine, and Rhode Island. Prominent among other States which forbid amusements acknowledged innocent on six days of the week, are New Hampshire, New York, Pennsylvania, and Vermont. Many of our States show particular hostility to card-playing, dancing, and theatre-going. The fact that fishing was practised by some of the Apostles on Sunday has not saved this quiet recreation from being prohibited by more than twenty commonwealths.

If every Sunday law were a dead letter, it ought to be repealed, because it tends to bring needed laws into contempt; but among recent results of Sunday legislation are the following. In 1876 some children were fined for playing ball in Rhode Island; so, about this time, in Massachusetts, were a boy for skating, a young man for playing lawn-tennis, and a merchant for fishing with his little son. In 1894 two men were fined \$10 each for playing golf on a lonely hill, in the commonwealth just mentioned; five boys under fifteen arrested for playing marbles in New York City; and every member of a baseball club in Pennsylvania fined. In 1895 a man and a boy of fifteen were fined \$20 each for fishing in New York; and the attempt of some clergymen, aided by police, to break up a show in Missouri, caused a tumult in which men's heads were broken by clubs, while women and children were trampled underfoot. On the first Sunday that the London galleries and museums were thrown open to their owners, May 24, 1896, two men were shot dead in Attleboro, Mass., by a policeman who had been ordered to break up a clambake. In that same year and State, a manager was fined \$70 for allowing *Yankee Doodle* to be performed in the Boston Theatre; three men were arrested for bowling; half a dozen Jews who had been playing cards in a private house were fined \$10 or \$20 each, and those who could not pay were sent to jail. Among the Sabbath-breakers arrested in 1897 were a number of newsboys at the national capital, nine golfers in Massachusetts, a young man for holding one end of a rope over which some little girls were skipping in New York City, and also the manager of a show in New Jersey, who spent ten days in jail. Fines were levied in 1898 for playing golf in Connecticut, and twenty-five fishermen were arrested on

one Sunday in Buffalo, N. Y. Such are the risks which still accompany innocent and healthy amusements in the Eastern States. Many such arrests are made in order to collect fees, or gratify malice; and neither motive ought to be encouraged by the friends of religion.

Some magistrates in Long Island, N. Y., are believed, while still holding that baseball breaks the Sabbath, to have discovered that golf does not. It is further said that on July 9, 1899, some baseball men who had been playing a Sunday game to a large crowd saved themselves from arrest by using their bats and balls to imitate golfing as soon as a policeman appeared in their grounds.

None of the Sunday laws is so mischievous as the decree of Mrs. Grundy against all forms of recreation not practised by the wealthy and fashionable. These people have so much time on six days of the week for active outdoor sport and indoor public entertainments, that they make little attempt to indulge in such recreations on Sunday. People who have only this one chance of playing ball, or dancing, or going to stereopticon lectures, concerts, and operas, suffer in health by having these recreations made unpopular as well as illegal. The climate of New England and New York, as well as of Great Britain and Canada, has unfortunately been so arranged that there are a great many cold and rainy Sundays, when much time cannot be spent pleasantly in walking or riding. This matters little to people who get all the amusement they want in their parlours. But what becomes of people who have no parlours? For instance, of servant-girls who have no place where they can sing or even laugh? Shop-girls and factory-girls find their little rooms, Sunday after Sunday, too much like prisons. Young men are perhaps even more unfortunate; for they go to the saloon, though this is often closed without any better place of amusement being opened. Why should every week in a democratic country begin with an aristocratic Sunday, a day whose pleasures are mainly for the rich?

Libraries and museums are blessed places of refuge; but "What are they among so many?" The residents of the District of Columbia are particularly unfortunate, as the Smithsonian Museum, National Library, and other buildings, which are open during six days, are kept shut on Sunday. Congress seems to be of the opinion that working people need no knowledge of natural history, except what they can get from sermons about Jonah's whale and Noah's ark. Washington is not the only city whose rich

men ought to remember the warning of Heber Newton: "Everything that tends to foster among our working people the notion of class privilege is making against the truest morality in our midst. As they look upon the case, it is the wealthy people, whose homes are private libraries and galleries of art, who protest against the opening of our libraries and museums to those who can afford no libraries and buy no pictures. Sabbatarianism is building very dangerous fires to-day."

We should all be glad to have more intellectual culture given on Sunday. One way of giving it would be for the churches to open public reading-rooms in the afternoon. This would be decidedly for their own interest; and so would be delivery of evening lectures on history, biography, and literature. The Sunday-schools in England found it necessary, even as late as 1850, to give much time to teaching reading and writing as well as the higher branches. Sunday-school rooms in America, which now are left useless after Sunday noon, might be employed in teaching English to German, Italian, and Scandinavian immigrants during the afternoon and evening. Classes might also be formed in vocal music, light gymnastics, American and English history and literature, physiology, sociology, and political economy. Such changes would make our churches all the more worthy of the founder, who "went about doing good."

The observance of Sunday as a day of rest from labour and business will be all the more popular as it is made precious to irreligious people. They are numerous enough to have a right to ask that the public school-houses be opened for free classes in French, German, drawing, and modelling; botany, chemistry, and bird-lore; cooking, sewing, and wood-work. If teachers of these branches were employed on Sunday by our cities, less money would be needed for police. Our industrial interests would certainly gain by having this system carried out as far, for instance, as is done by Lyons and Milan, which have special Sunday-schools for teaching weaving. Goldsmiths are instructed by similar schools in Austria, and blacksmiths in Saxony. The full advantage of Sunday classes of the various kinds here suggested might not perhaps be seen until a taste for them could be made general, but doing this would go far to diminish the taste for saloons.

The first step, however, which ought to be taken by our legislatures is the repeal of all laws hindering the sale of tickets on Sunday to exhibitions of pictures or curiosities, concerts, stereopticon lectures, or other instructive

entertainments which are acknowledged inoffensive during the rest of the week. How far dramatic performances and other very attractive forms of public amusement should be permitted to take place on Sunday is a question which ought to be settled by municipal authorities, with due reference to each special case. The people whose feelings ought to be considered are not those who wish to stay away from such places. They can easily do that without help from the police. The people who ought to be heard, first and last, are those who wish to get innocent amusement on their one day of leisure; and the only thing which the police need do is to see that they do get it without being defrauded or tempted into vice. Only the actual existence of such temptation can justify interference with dancing or card-playing in a private house. The Sunday reforms most needed, however, are those which will promote out-door exercise and mental culture.

LIST OF DATES

1776. Declaration of American independence, July 4th.

1780. Emancipation in Massachusetts and Pennsylvania.

1783. Peace between IL S. A. and Great Britain, September 3d.

1785. Great prosperity of British factories about this time.

1787. Slavery prohibited north of Ohio River; slave-trade opposed in England; Bentham's Principles of Morals and Legislation published.

1788. Constitution of U. S. A. ratified by a sufficient number of States, June 21st.

1789. Bastille taken, July 14th.

1791. Paine's Rights of Man, Part L, published, March 13th; Louis XVI. accepts the new constitution, September 14th.

1792. France a republic, September 21st.

1793. Slavery abolished in French colonies, February 4th.

1795. Insurrection in Paris crushed by Bonaparte, October 5th; free public schools founded throughout France.

1796. Bonaparte commander of army of Italy, March 4th.

1797. French Directory makes itself absolute, September 4th; Venice ceded by France to Austria.

1798. Irish rebellion, May 23d.

1799. Usurpation by Bonaparte, November 10th.

1800. Election of Jefferson; Schelling's Transcendental Idealism published.

1801. Inauguration of Jefferson, March 4th.

1802. Birth of Victor Hugo, February 26th; Lamarck's Recherches published.

1803. Hayti declares herself independent, January 2d; death of Toussaint in prison, April 27th; birth of Emerson, May 25th; Emmet's insurrection in

Ireland, July 23d.

1804. The Code Napoleon announced, January; Napoleon pro-Liberty in the Nineteenth Century claimed Emperor, May 18th; crowned, December 2d; Schiller's William Tell published.

1805. Battle of Austerlitz, December 2d.

1806. Death of Schiller, May 9th; birth of J. S. Mill, May 20th; battle of Jena, October 14th; Berlin decree of Napoleon against commerce with Great Britain, November 21st.

1807. Slave-trade prohibited by Great Britain, March 25th; Peace of Tilsit, July 7th, raises Napoleon to height of power; embargo laid by U. S. A., December 22d; Oken announces the vertebral analogy of the skull; Hegel's *Phaenomenologie des Geistes* published.

1808. Rebellion of Spaniards against French rule; witchcraft mob in England; Goethe's Faust, Part I, published.

1809. Birth of Darwin, February 12th; revolt of Tyrolese under Hofer, April 8th; states of the Church annexed to France, May 17th; death of Paine, June 8th; Pope imprisoned, July 6th; divorce of Josephine, December 15th; Lamarck's *Philosophie Zoologique* published.

1810. Hofer shot, February 20th; marriage of Napoleon with Austrian Archduchess, April 1st; post-offices required to open every Sunday in U. S. A., April 30th; revolt against Spanish rule of Buenos Ayres, May 25th, and of Chili, September 18th.

1811. Nottingham riots against machinery, November.

1812. Birth of Dickens, February 7th; war against Great Britain declared by U. S. A., June 18th; Wellington enters Madrid, August 12th; Moscow burned, September 14th; Byron's *Childe Harold*, Coleridge's *Friend*, and Hegel's *Logik* published.

1813. Wellington invades France, October 7th; battle of Leipsic, October 16th, 18th, and 19th; Francia ruler of Paraguay; Unitarian disabilities removed in England; Shelley's *Queen Mab* and Owen's *New View of Society* published.

1814. Napoleon is deposed by Senate, April 1st, and abdicates, April 11th; liberal constitution introduced by Louis XVIII., May; Washington taken and burned by British, August 24th; Peace of Ghent between U. S. A.

and Great Britain, December 24th; Congress of Vienna opens November 3d; graves of Voltaire and Rousseau violated.

1815. Battle of New Orleans, January 8th; Waterloo, June 18th; controversy of Unitarians and Trinitarians in U. S. A.; last heretic burned in Mexico; Lamarck publishes the first volume of his *Histoire Naturelle*.

1817. Shelley's children taken from him on account of his opinions, March 26th; demonstration at the Wartburg, October 18th; unusual poverty in England; her authors and orators made liable to imprisonment without a trial; Ben-tham demands suffrage for men and women not illiterate; Shelley's *Revolt of Islam* published.

1818. Chili liberated by battle of Maipu, won by San Martin, April 5th; religious tests abolished in Connecticut; Hannah M. Crocker's *Rights of Women* published.

1819. Assassination of Kotzebue, March 23d; Carlsbad Conference, August 1st; "Peterloo" massacre at Manchester, August 16th; Shelley's *Prometheus Unbound* published.

1820. Revolution in Spain, January 1st; and at Naples, July 2d; assassination of French princes, February 13th, causes reaction against liberalism; birth of Herbert Spencer, April 27th; Owen's plan of Socialism proposed, May 1st; conference of Troppau, December 8th; Missouri Compromise; Sydney Smith asks, "Who reads an American book?"; Irving's *Rip Van Winkle* and *Legend of Sleepy Hollow* published.

1821. Brazil begins a revolt, January 1st, as do Greece and Sardinia in April, and Peru in July; death of Napoleon, May 5th; Venezuela and Colombia made free by battle of Carabobo, won June 24th, by Bolivar; Austria supreme in Italy; Lundy begins his *Genius of Universal Emancipation*.

1822. Death of Shelley, July 8th; independence of Brazil proclaimed, September 8th; massacre at Scio; Fourier's book on Association published.

1823. Spanish patriots crushed by French army, April; Monroe Doctrine announced, December 1st; British Anti-Slavery Society formed; Victor Hugo's *Odes and Ballads* published.

1824. Mexico a republic, January 31st; Bolivar, dictator of Peru, February 10th, defeats Spaniards at Ayacucho, December 9th; death of Byron, April 19th; accession of Charles X., September 16th; repeal of

statutes forbidding English labourers to combine or emigrate; Westminster Review founded.

1825. Much opposition to slavery in Kentucky, Maryland, and North Carolina; many socialist communities founded in U. S. A.; elective courses of study at Harvard College, and also at the University of Virginia, where attendance at religious exercises is made voluntary; Coleridge's *Aids to Reflection* published.

1826. Citizens of New York petition for repeal of Fugitive Slave Law, and for emancipation in the District of Columbia.

1827. Battle of Navarino, October 20th; Taylor sent to prison for blasphemy, October 24th.

1828. Test Act repealed; Frances Wright lectures against clergy.

1829. Jackson inaugurated March 4th; Catholic Emancipation Act signed, April 13th; Miss Wright opens a Hall of Science in New York City on Sunday, April 25th; James Mill's *Analysis* and Fourier's *Industrial New World* published.

1830. Independence of Greece acknowledged by Turkey, April 25th; accession of William IV., July 26th; revolution at Paris begins July 27th; King's troops driven out, July 29th; he is succeeded by Louis Philippe, August 9th; revolts in Brussels, Warsaw, and Dresden; independence of Belgium acknowledged, December 26th; Hetherington sent to prison for six months for publishing *The Poor Man's Guardian*; Victor Hugo's *Hernani* acted; Tennyson's *Poems* and Lyell's *Principles of Geology* published.

1831. First number of *The Liberator* January 1st, and of *The Investigator*, April 2d; Carlile sent to prison for his writings, January 10th; Cobbett tried and acquitted, July 31st; massacre of fifty-five white men, women, and children by slaves in Virginia, Sunday, August 21st; Warsaw surrenders to Russians, September 7th; Reform Bill defeated by bishops, October 7th; Jamaica insurrection, December 22d; free trade convention in Philadelphia; Victor Hugo's *Notre Dame de Paris* published.

1832. New England Anti-Slavery Society founded in Boston, January 1st (becomes Mass. A. S. in 1836); death of Goethe, March 22d; the insurrection at Paris described in *Les Misérables*, June 5th and 6th; Reform Bill passed and signed, June 7th; Jackson re-elected, November 6th; woman suffrage lecture in London, December 2d; Jackson's proclamation against

attempt of South Carolina to secede, December 11th; bloody resistance to tithes in Ireland; Elliott's Corn Law Rhymes published.

1833. Gradual reduction of tariff voted by Congress, March 1st; death of Bentham, June 6th; Act of Parliament for emancipation in West Indies passed August 28th; American Anti-Slavery Society founded at Philadelphia, December; pro-slavery mobs there and in New York City; municipal suffrage extended in Scotland; unsectarian public schools in Ireland; first free town library in U. S. A. founded at Peterboro, N. H., and opened Sundays thenceforth; Emerson's first lecture; Carlyle's *Sartor Resartus* published.

1834. Emancipation in West Indies takes place, August 1st; new poor law in England, August 14th; insurrection headed by Mazzini in Italy.

1835. Death of Cobbett, June 16th; anti-slavery periodicals taken from post-office at Charleston, S. C., and burned by mob, July; convent at Charlestown, Mass., burned by a mob, August; Garrison mobbed in Boston, and other abolitionists in New York and Vermont, October 21st; extension of municipal suffrage in England; Tocqueville's *Democracy in America* and Strauss's *Life of Jesus* published.

1836. Transcendental Club founded in Boston, September; Parker begins to preach; tithes commuted in England; taxes on newspapers reduced; dissenters permitted to marry without disobedience to conscience; Emerson's *Nature* and Dickens' *Pickwick Papers* published.

1837. Discussion of slavery in House of Representatives suppressed, January; Miss Grimké's anti-slavery lectures, June; Emerson's address on *The American Scholar*, August 31st; Anti-Slavery Convention of N. E. Methodists, October 25th; Carlyle's *French Revolution* published.

1838. Emerson's Divinity School Address, July 15th; Kneeland imprisoned sixty days, that same summer, for blasphemy; Pennsylvania Hall burned by a pro-slavery mob; Irish tithe system reformed; daguerreotypes invented; Atlantic crossed by steam; railroad from London to Birmingham; Channing's *Self-Culture* published.

1839. Anti-Corn-Law League organised, March 20th; unsectarian common schools in England; great Chartist petition; Pope forbids attendance at the scientific congress at Pisa.

1840. Penny postage, January 10th; nomination of candidate for President, April 1st, by Liberty party; quarrels in May among abolitionists; World's Anti-Slavery Convention at London, in June, refuses seats to female delegates; local self-government in Irish cities; protest of American Catholics against sectarianism of public schools; *The Dial* begins; Carlyle's *Heroes and Hero Worship* published.

1841, Hetherington imprisoned in England for publishing *Letters to the Clergy*, and the editor of the *Oracle of Reason* for attacking the Bible; Emerson's first volume of *Essays* published.

1842. Garrison calls on free States to secede, May; death of Channing, October 2d; Brook Farm started, as are many communities about this time; Spencer's theory of the limits of government published, 1844. Morse proves value of telegraph by announcing nomination of Frelinghuysen for Vice-President by Whigs, May 1st; disunion banner publicly accepted by Garrison, June 1st; annexation of Texas and reduction of tariff decided by election on November 5th; rule against discussing slavery repealed by House of Representatives; Lowell's *Poems* published.

1845. Parker begins to preach regularly in Boston, February 16th; potato rot in Ireland, August; *Vestiges of Creation* published.

1846. Mexico invaded by U. S. troops, March; free trade established in England, June 25th, and bill to reduce American tariff signed, June 26th; first volume of Grote's *Greece* and first number of Lowell's *Biglow Papers* published.

1847. Mexicans defeated at Buena Vista by General Taylor, February 22d and 23d; death of O'Connell, May 15th.

1848. Revolution in Paris, February 22d; King abdicates, February 24th; insurrections in Munich, Vienna, Berlin, Venice, and Milan in March, afterwards in other cities; "spirit rappings" at Rochester, N.Y., begin March 31st; Chartist demonstration at London, April 10th; Emancipation decreed by French Republic, April 27th; socialist insurrection at Paris, June 23d, 24th, 25th, and 26th; "Woman's Rights" Convention at Seneca Falls, N. Y., July 19th; revolt in Ireland, July 29th; Buffalo Convention of Free Soilers, August 9th; Kossuth dictator of Hungary, September 25th; State constitution and town ordinances made in October by citizens of California without Federal sanction; pro-slavery defeat at election of Taylor, November 7th; flight of Pope from Rome, November 24th; Louis Napoleon

president of France, December 10th; Lowell's Vision of Sir Launfal, Fable for Critics, and Biglow Papers published, 1849. Defeat of King of Sardinia by Austrians at Novara, March 23d, prevents liberation of Italy; Rome captured by French, July 3d; Hungarian army surrendered to Russians by Gorgei, August 13th; Venice taken by Austrians, August 28th; Emancipation Convention in Kentucky.

1850. Death of Wordsworth, April 24th, and of President Taylor, July 9th; Fugitive Slave Bill signed, September 18th; first national "Woman's Rights" Convention at Worcester, Mass., October 23d and 24th; Bradlaugh's first lecture; Hawthorne's Scarlet Letter, Spencer's Social Statics, and Tennyson's In Memoriam published.

1851. London Great Exhibition opens May 1st; a fugitive slave rescued at Boston, Sunday, February 16th, another at Syracuse, N. Y., October 1st; usurpation of Louis Napoleon, December 2d, 1851.

1852. Uncle Tom's Cabin published, March 20th; death of Frances Wright, and accession of Napoleon III., December 2d; Herbert Spencer announces the principle of Differentiation.

1854. Repeal of Missouri Compromise proposed by Douglas, January 23d; return of Burns, a fugitive slave, from Boston, June 2d; U. S. Constitution publicly burned by Garrison, July 4th; Kansas election carried by border ruffians, November 29th; Thoreau's Walden published.

1855. Spencer's Psychology and Walt Whitman's Leaves of Grass published, 1856. Sumner assaulted, May 22d..

1857. Disunion Convention, Worcester, Mass., January 15th; death of Béranger, July 16th, and of Comte, September 5th; tariff reduced twenty per cent, in U. S. A.; Buckle's History of Civilisation, vol. i., published.

1858. Essays by Darwin and Wallace read in public, July 1st; Jews admitted to Parliament by act passed July 23d; death of Robert Owen, November 17th; Lincoln and Douglas campaign in Illinois.

1859. Austrians defeated at Magenta, June 4th, and Solferino.

June 24th; Lombardy annexed to Sardinia by treaty of Villafranca, July 11th; John Brown takes possession of Harper's Ferry, Sunday, October 16th, and is tried November 2d; Darwin's Origin of Species published, November 24th; John Brown hung, December 2d. 1860. Split of Democratic party, April 30th; death of Theodore Parker, May 10th; Garibaldi enters Naples,

September 7th; election of Lincoln, November 6th; secession of South Carolina, December 20th; annexation of two Sicilies to Sardinia, December 26th; Mill on Liberty published.

1861. Confederate States of America organised, February 8th; protective tariff passed, March 2d; Russian serfs emancipated, March 3d; Lincoln inaugurated, March 4th; Victor Emmanuel King of Italy, March 17th; Fort Sumter bombarded, April 12th, surrendered, April 13th; Lincoln's proclamation, Monday, April 15th, calls all the North to arms; death of Cavour, June 6th; Union defeat at Bull Run, Sunday, July 21st.

1862. Paper money made legal tender in U. S. A., February 25th; return of fugitives from slavery by army or navy forbidden, March 13th; negro soldiers, April; death of Thoreau, May 6th, and of Buckle, May 29th; disastrous campaign of McClellan in Virginia ends by his retreat, July 8th; Union victory at Antietam, September 19th; emancipation announced as a possible war measure by Lincoln, September 22d; Union defeat at Fredericksburg, December 13th; Victor Hugo's *Les Misérables* published, also Spencer's *First Principles* containing his full theory of Integration and Differentiation.

1863. Lincoln proclaims emancipation, January 1st; signs bills suspending Habeas Corpus Act and establishing conscription, March 3d; Union defeat at Chancellorsville, May 3d; Vollandigham sentenced, May 7th; battle of Gettysburg, July 1st, 2d, and 3d, ending in a Union victory; Vicksburg surrendered to General Grant, July 4th; Mississippi opened by surrender of Port Hudson, July 9th; Union victories at Lookout Mountain, November 24th, and Chattanooga, November 25th; Fenian Convention at Chicago, November 25th; Darwinism much opposed by European clergy about this time.

1864. General Grant takes command of all the Union armies, March 12th; undecisive battles in the Wilderness and at Spottsylvania, May 5th-10th; Fugitive Slave Act repealed, June 23d; Nevada admitted, October 31st; Lincoln re-elected, November 8th; Sherman marches from Atlanta, November 16th, and enters Savannah, December 22d.

1865. Death of Cobden, April 2d; Richmond entered by coloured cavalry, April 3d; Lee surrenders, April 9th; Lincoln shot, Good Friday, April 14th, dies April 15th; slavery abolished by Thirteenth Amendment, December 18th; Lecky's *Rationalism* published.

1866. Prussian victory over Austria at Kônîggratz, July 3d; Venice part of Kingdom of Italy, November 4th.

1867. First convention of the Free Religious Association, May 30th; suffrage extended in England, August 15th; Home Rule in Hungary.

1868. Fourteenth Amendment in force, July 28th; Cuban declaration of independence, October 10th.

1869. Irish Church disestablished, July 26th; witnesses allowed to affirm in Great Britain.

1870. Death of Dickens, June 9th; Napoleon III. defeated at

Sedan, September 1st; France a republic, September 4th; Rome part of the kingdom of Italy, October 9th; Inger-soll begins to lecture; Home Rule agitation in Ireland, 1871. Paris surrendered to Prussians, January 28th; Communists supreme there, March 18th, suppressed, May 28th; emancipation in Brazil; Darwin's Descent of Man published.

1872. Death of Mazzini, March 10th; secret ballot in England; Abbot's "Demands of Liberalism" published in The Index (which began January 1, 1870).

1873. Spain a republic, February 11th; death of J. S. Mill, May 8th; American Liberal League, September 1st.

1874. Military usurpation at Madrid, January 3d; death of Sumner, March 11th; citizens of District of Columbia disfranchised, June 17th; Alphonso XII. king of Spain, December 30th; Mrs. Besant begins to lecture; Victor Hugo's Ninety-Three published.

1875. Sunday Society organised at London.

1876. Centennial Exhibition at Philadelphia opens, May 10th, and convention of Liberal League, July 1st; disputed election for President, November 7th; Sunday convention in Boston, November 15th; vivisection restricted in England; Cuban rebellion suppressed, 242 Liberty in the Nineteenth Century.

1877. Museum of Fine Arts in Boston open in and after March on Sundays.

1878. Anti-clerical resolution passed by Woman Suffrage Convention, Rochester, N. Y., July; split of Liberal League at Syracuse, N. Y., Sunday,

October 27th; Professor Winchell obliged to leave Nashville, Tenn., for evolutionism.

1879. Specie payment resumed in U. S. A., January 1st; death of Garrison, May 24th; Henry George's Progress and Poverty published.

1880. Bradlaugh refused his seat in Parliament, May 21st; many patriots banished to Siberia.

1881. Czar Alexander II. assassinated, March 13th, anti-Jewish mobs on and after April 27th; Bradlaugh excluded by force, August 1st.

1882. Death of Longfellow, March 24th, of Darwin, April 18th, of Emerson, April 27th, and of Garibaldi, June 2d.

1883. Foote and Ramsay, English journalists, sentenced respectively to twelve and nine months in prison for blasphemy.

1884. Death of Wendell Phillips; February 2d; Cleveland elected President, November 4th; Professor Woodrow dismissed from Presbyterian Theological Seminary at Columbia, S. C, for teaching evolution, December 12th.

1885. Death of Victor Hugo, May 20th, and of General Grant, July 23d.

1886. Bradlaugh takes his seat, January 13th; railroad strike in

Missouri suppressed by Federal troops, March; bloody conflict of Chicago anarchists with police, May 4th; statue of Liberty unveiled in New York Harbour, October 28th.

1887. Chicago anarchists hung, November 11th.

1888. U. S. tariff reduced by Mills Bill, July 21st; Cleveland defeated, November 6th; imprisonment in Sweden for blasphemy; Bellamy's Looking Backward published.

1889. Brazil a republic, November 15th; death of Browning, December 12th.

1890. Australian ballot tried in Rhode Island, April 2d; U. S. tariff raised by McKinley Bill, passed by the 4 Billion Dollars Congress, and signed October 1st.

1891. Death of Bradlaugh, January 30th, and of Lowell, August 12th; Jews expelled from Moscow in April, and much persecuted this year and in 1892; New York Museum of Art opened on Sunday, May 31st, to 10,000 visitors.

1892. Death of Walt Whitman, March 26th, of Whittier, September 7th, and of Tennyson, October 6th; bill excluding Chinese from U. S. A. signed, May 5th; Congress votes for closing Chicago Exposition on Sundays, July 19th; Cleveland re-elected, November 8th; New York Museum of Natural History open Sundays; revised edition of Spencer's Social Statics published.

1893. Chicago Exposition formally opened May 1st, first open Sunday, May 28th; Parliament of Religions begins Monday, September 10th, 10 a.m.

1894. Death of Kossuth, March 20th, of Holmes, October 7th, of

Lucy Stone, October 18th, and of Tyndall, December 4th; Debs, leader of a riot in Chicago, enjoined by U. S. judges, July 2d, and put down by Federal troops; reduction of U. S. tariff, August 2d; Home Rule approved by House of Commons, September 1st, refused by House of Lords, September 8th; universal suffrage and extension of local self-government in England; a professor in University of Texas dismissed for evolutionism.

1895. Death of Frederick Douglass, February 20th, and of Huxley, June 29th; rebellion in Cuba; men arrested in New York City for selling ice, umbrellas, etc., on Sunday; eight men who had worked on that day, after keeping Saturday as the Sabbath, forced to labour in the chain-gang in Tennessee.

1896. British Museum, National Gallery, and other institutions opened to the public on Sunday, May 24th, and afterwards; two Sabbath-breakers shot dead that same day by a policeman in Massachusetts; death of William Morris, October 3d; Democratic candidates defeated on a free-silver platform, November 3d.

1897. Dingley Bill to increase tariff, signed July 24th; death of Henry George, October 27th.

1898. War declared by U. S. A. against Spain, April 21st; death of Gladstone, Ascension Day, May 19th; independence of Cuba secured by treaty, August 12th.

1899. Death of Ingersoll, July 21st.

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